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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

September 29, 2026

WEBVTT

1
00:00:00.000 --> 00:00:01.000
Boardroom: Teams?

2
00:00:02.060 --> 00:00:04.120
Boardroom: We are going to get started.

3
00:00:05.290 --> 00:00:21.629
Boardroom: All right. Quiet down, please. If you would like to continue your conversations, you're welcome to take them outside. All right. I'm calling to order the Berkeley City Council meeting. Today is Tuesday, September 29, 2026. It is 6:04 PM. If we could start off with the roll, please.

4
00:00:22.200 --> 00:00:36.329
Boardroom: Certainly, and Mayor, before we take the roll, I just want to point out that Councilmember Humbert is participating in the meeting this evening under the Just Cause provision of the Brown Act, so we'll go through that script quickly, and then we'll take the roll.

5
00:00:36.540 --> 00:00:55.379
Boardroom: Councilmember Humbert is intending to participate in this meeting remotely pursuant to the Brown Act under the Just Cause justification. A quorum of the Council is participating in person at a single physical location that is identified on the agenda, open to the public, within the boundaries of the agency, and meets accessibility requirements.

6
00:00:55.380 --> 00:00:57.740
Boardroom: This satisfies the requirements of the Brown Act.

7
00:00:58.150 --> 00:01:03.339
Boardroom: Councilmember Humbert has notified us of their need to participate remotely.

8
00:01:03.850 --> 00:01:11.530

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Boardroom: Councilmember Humbert, if you would please provide a general description of the circumstances relating to your need to appear remotely at this meeting.

9
00:01:12.600 --> 00:01:18.469
Mark Humbert: Thank you, Madam Clerk. Yeah, I woke up with a rotten cold to which I don't want to expose anyone else.

10
00:01:19.090 --> 00:01:21.369
Boardroom: Thank you, Councilmember. Sorry to hear.

11
00:01:21.620 --> 00:01:36.490
Boardroom: If you could also please publicly disclose whether there are any other individuals 18 years of age or older present in the room at your remote location, and if so, the general nature of your relationship with such individuals.

12
00:01:37.240 --> 00:01:38.730
Mark Humbert: There is no one else present.

13
00:01:39.290 --> 00:01:45.660
Boardroom: Thank you. Councilmember Humbert, you are reminded that you must participate through both audio and visual technology.

14
00:01:46.840 --> 00:01:49.400
Boardroom: Okay, and with that, we'll proceed to the roll.

15
00:01:49.660 --> 00:01:51.260
Boardroom: Councilmember Kesarwani?

16
00:01:51.740 --> 00:01:56.380
Boardroom: Here. Taplin? Present. Bartlett? Here. Tragop?

17
00:01:56.490 --> 00:02:01.130
Boardroom: Present. O'Keefe? Here. Blackaby? Here. Munapara?

18
00:02:01.360 --> 00:02:02.030
Boardroom: Here.

19
00:02:02.520 --> 00:02:03.400
Boardroom: Humbert?

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20
00:02:03.590 --> 00:02:04.260
Mark Humbert: Present.

21
00:02:04.510 --> 00:02:07.650
Boardroom: And Mayor Ishii, here. Thank you.

22
00:02:07.800 --> 00:02:11.280
Boardroom: Okay, thank you very much. Oops.

23
00:02:12.070 --> 00:02:22.599
Boardroom: All right, so we are going to start off with the ceremonial matters, and I would like to start with a proclamation for John Kaner.

24
00:02:22.830 --> 00:02:24.570
Boardroom: John, would you like to come up?

25
00:02:25.190 --> 00:02:26.110
Boardroom: Hey.

26
00:02:30.100 --> 00:02:33.800
Boardroom: John, thank you so much for all of your years of service.

27
00:02:33.800 --> 00:02:56.139
Boardroom: You have been an incredible partner and an incredible advocate for the downtown. It has really been such an honor to be able to work with you. Your work is legendary, and although we're really excited to work with the person who's replacing you, Kara's wonderful, we love her. You know, we also know that you will be missed, so thank you so much for all of your continued work.

28
00:02:56.140 --> 00:03:00.690
Boardroom: But also just your involvement in the city, advocating for a number of different issues.

29
00:03:00.720 --> 00:03:04.079
Boardroom: So, recognizing and celebrating John Kaner.

30
00:03:04.200 --> 00:03:28.210
Boardroom: Whereas John Kaner has served with distinction as Chief Executive Officer of the Downtown Berkeley Association for 17 years, guiding the transformation and stewardship of Downtown Berkeley into a dynamic, resilient, and nationally recognized model for equitable urban

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vitality. And whereas over more than three decades, John has brought exceptional leadership across the business, nonprofit, and community development sectors.

31
00:03:28.210 --> 00:03:38.259
Boardroom: Demonstrating rare expertise in strategic visioning, economic development, organizational growth, and cross-sector collaboration that has delivered lasting and measurable impact.

32
00:03:38.260 --> 00:03:54.409
Boardroom: And whereas under his leadership, the Downtown Berkeley Association has strengthened the economic and cultural fabric of the city of Berkeley, supporting local businesses, advancing innovative placemaking initiatives, and fostering a thriving, inclusive, and welcoming downtown for residents, workers, students, and visitors alike.

33
00:03:54.410 --> 00:04:04.620
Boardroom: And whereas John has demonstrated extraordinary civic leadership through decades of service on numerous boards, commissions, and community organizations, including the Berkeley Chamber of Commerce.

34
00:04:04.620 --> 00:04:26.810
Boardroom: Berkeley Public Schools Fund, Berkeley Partners for Parks, Aurora Theater Company, Willard Neighborhood Association, and the City of Berkeley Disaster and Fire Safety Commission, helping to shape the civic, cultural, and educational landscape of Berkeley. And whereas John Kaner's legacy is defined by visionary leadership, steadfast public service, and profound dedication to strengthening communities.

35
00:04:26.810 --> 00:04:33.410
Boardroom: Leaving an indelible mark on the city of Berkeley and setting a standard of excellence for generations to come.

36
00:04:33.630 --> 00:04:53.629
Boardroom: Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, hereby proudly recognize and celebrate John Kaner for his exceptional leadership, transformative contributions, and enduring commitment to the people and vitality of Berkeley, and extend the city's deepest gratitude for his remarkable service. Thank you, John.

37
00:05:14.300 --> 00:05:16.640
Boardroom: Sorry, is your mic on?

38
00:05:18.330 --> 00:05:19.040
Boardroom: Okay.

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39
00:05:25.480 --> 00:05:27.570
Boardroom: Yeah, that'll be a better fit for the mic.

40
00:05:29.840 --> 00:05:32.060
Boardroom: Is this working now? Okay.

41
00:05:32.440 --> 00:05:46.739
Boardroom: In particular, I'm proud of the work we did in BART Plaza. As I said, if we didn't get BART Plaza right, we didn't get downtown right, and we really didn't get the city right as the portal, the downtown. And then also the construction of the new hotel as part of the downtown area plan.

42
00:05:46.740 --> 00:05:54.549
Boardroom: was a major accomplishment. I'm also really proud of the community we've built with the merchants, property owners, arts organizations.

43
00:05:54.550 --> 00:05:59.070
Boardroom: Non-profits, students, residents, neighbors, and social service providers.

44
00:05:59.250 --> 00:06:02.789
Boardroom: But as we all know, there's still a lot of work to be done, Cara.

45
00:06:03.680 --> 00:06:09.500
Boardroom: We still have 17 stalled housing projects. We have high retail vacancy rates.

46
00:06:09.810 --> 00:06:23.609
Boardroom: And we have public space projects yet to be completed. Addison Catenary Lighting Project, Harold Way Placemaking, Civic Center, Vision Plan, Upper Center Street, Oxford for All, and even the Shattuck-Avline Greenway.

47
00:06:24.390 --> 00:06:39.180
Boardroom: Good news is that with the DVA board and the new leadership with Cara Hoosier, we have the team to meet these goals or many of these goals and working collaboratively with the mayor, council, city manager, and staff.

48

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00:06:39.370 --> 00:06:44.969
Boardroom: UC Berkeley, Berkeley City College, Berkeley High, and all the other important stakeholders.

49
00:06:45.050 --> 00:07:03.579
Boardroom: I might add, there's also really strong business leadership now in place in the city, which makes me feel really good. With CARA's leadership, the DBA, Beth Rosner at the Chamber, and Jeffrey Chirp to visit Berkeley, and Alex Knox on Telegraph, really the strongest team, which is a nice legacy to leave behind.

50
00:07:03.860 --> 00:07:17.240
Boardroom: Thank you for the honor and privilege of serving downtown and Berkeley community for nearly 17 years. I look forward to years ahead of friendship and civic engagement as a retired citizen. Thank you very much.

51
00:07:33.630 --> 00:07:34.370
Boardroom: I'm on my own.

52
00:07:50.470 --> 00:07:51.190
Boardroom: Thank you.

53
00:08:11.200 --> 00:08:15.739
Boardroom: We also had an adjournment in memory that I would like to read as well.

54
00:08:18.330 --> 00:08:22.050
Boardroom: Tonight we are adjourning in memory of Jean Nakamura.

55
00:08:22.400 --> 00:08:39.989
Boardroom: Below is a statement from Rebecca Chung and community recognizing Nakamura's contributions to BUSD, its students, and our community. I believe the family's not able to join, but watching online, and we will read the statement since they are, are not here to do so.

56
00:08:40.679 --> 00:08:56.589
Boardroom: Gene dedicated more than 35 years to the Berkeley Unified School District, devoting his career to educating and mentoring young people. He started his teaching career at Thousand Oaks, later moving to Malcolm X and then Willard, where he taught students from first grade through eighth grade.

57
00:08:56.810 --> 00:09:10.460

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Boardroom: In 1989, he was promoted to assistant principal at Willard Junior High, where the principal, Chris Lim, and his co-lead — and he co-led the school in his recognition as a California Distinguished School in 1996.

58
00:09:10.830 --> 00:09:27.589
Boardroom: Gene retired from this district in 2006 while serving as vice principal at Longfellow Middle School. He was honored as Berkeley Unified School District's Educator of the Year in 2006, the year of his retirement, for his outstanding accomplishments to Berkeley schools.

59
00:09:28.150 --> 00:09:39.050
Boardroom: Beyond the classroom, Jean made an extraordinary impact on California high school athletics as the varsity girls basketball coach at Berkeley High School from 1984 to 2007.

60
00:09:39.260 --> 00:09:49.800
Boardroom: Coach Knock built one of the state's premier programs. Over his 24-year coaching history, his teams won 15 North Coast section championships.

61
00:09:49.800 --> 00:09:59.580
Boardroom: seven North Coast championships, and two California state championships, establishing Berkeley High as one of the premier girls basketball programs in the state.

62
00:09:59.900 --> 00:10:14.190
Boardroom: In recognition of his remarkable coaching career and lasting contributions to the sport, he was named Cal High Sports California State Coach of the Year for girls basketball in 1991, and he was inducted into the California Coaches Hall of Fame in 2010.

63
00:10:14.370 --> 00:10:25.620
Boardroom: He was most recently honored at the Valkyries Japanese Heritage Night in 2025 with the Power Forward Award, a community leadership award that recognizes everyday champions who make their communities a better place.

64
00:10:26.030 --> 00:10:45.409
Boardroom: At his public celebration of life on August 8, 2026, in the Donahue Gym at Berkeley High School, family, friends, former colleagues, students, and players all shared about how he touched so many lives. He taught discipline, teamwork, resilience, sportsmanship, and integrity to generations of students and athletes.

65

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00:10:45.410 --> 00:10:48.230
Boardroom: Many of whom remained close to him throughout their lives.

66
00:10:48.880 --> 00:10:53.560
Boardroom: They described how he taught success and life lessons so much more than basketball or math.

67
00:10:53.660 --> 00:11:00.489
Boardroom: He believed in people. He pushed students and players because he knew they could do more, and they never wanted to let him down.

68
00:11:01.210 --> 00:11:12.250
Boardroom: Gene took pride in helping family, friends, and neighbors whenever they needed a hand. Those who knew him will remember a humble man of quiet strength, unwavering integrity, and endless generosity.

69
00:11:12.250 --> 00:11:23.180
Boardroom: Whether in the classroom or on the basketball court, he led by example. He believed in the power of education, the value of hard work, and the importance of treating everyone with dignity and respect.

70
00:11:23.430 --> 00:11:35.650
Boardroom: Gene Nakamura has left his mark on the city of Berkeley and its people with his kindness, wisdom, encouragement, and competitive spirit that always wanted the best for Berkeley's students and community.

71
00:11:37.640 --> 00:11:40.780
Boardroom: So we will be adjourning tonight in honor.

72
00:11:41.130 --> 00:11:42.490
Boardroom: of Coach Nakamura.

73
00:11:46.750 --> 00:11:48.380
Boardroom: We have…

74
00:11:48.630 --> 00:12:00.089
Boardroom: One more item. Oh, is John still here? I just realized I have flowers here for him. Sorry. Okay. All right. I will get those to John. Sorry about that.

75
00:12:00.390 --> 00:12:09.059
Boardroom: Oh, okay. All right. Well, we have one more surprise item for all of you this evening.

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76
00:12:09.780 --> 00:12:13.699
Boardroom: Julie, could you please come up to the front?

77
00:12:18.700 --> 00:12:19.850
Boardroom: These are for us.

78
00:12:21.000 --> 00:12:21.680
Boardroom: 4.

79
00:12:24.380 --> 00:12:25.280
Boardroom: For me.

80
00:12:27.730 --> 00:12:43.610
Boardroom: She's quietly cursing me. I can do it not quiet. OK. So many of you, most of you probably know Julie Sinai, who has served as my chief of policy for the last two years.

81
00:12:43.610 --> 00:12:48.810
Boardroom: Julie has been just an incredible, I know I'm getting emotional already. I haven't even read anything yet.

82
00:12:48.810 --> 00:13:03.610
Boardroom: Julie has just been a really incredible force, not only in our office, but for the City of Berkeley, and this will actually be her last City Council meeting. So, I have a very special proclamation for…

83
00:13:03.680 --> 00:13:08.870
Boardroom: Julie, this evening, in recognition of Julie Sinai.

84
00:13:09.750 --> 00:13:18.820
Boardroom: Whereas Julie has been a resident of Berkeley for over 30 years, where she has been deeply involved in her community and raised her two children, Joseph and Tirza.

85
00:13:18.960 --> 00:13:34.169
Boardroom: And whereas Julie has been a staple in the city of Berkeley schools and foundation work since 2012, including serving as a school board member from 2013 to 2014, and again from 2018 to 2022 during the COVID-19 pandemic.

86
00:13:34.210 --> 00:13:42.780

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Boardroom: Bringing her expertise in public health and local government to the forefront, as our communities work to address the needs of students, faculty, and staff.

87
00:13:43.180 --> 00:14:01.279
Boardroom: And whereas Julie has dedicated her time and boundless energy to working behind the scenes on numerous bond and tax measures from both the city and BUSD, her work was instrumental in getting these measures passed, and in turn raising millions of dollars in revenue for much-needed projects and services.

88
00:14:01.350 --> 00:14:26.149
Boardroom: And whereas Julie has worked in many roles throughout the city of Berkeley, including as a policy advisor and chief of staff to Mayor Tom Bates, who's also here this evening, director of local government and community relations for UC Berkeley, and chief strategy officer at Lifelong Medical, finally retiring in 2024, and whereas she came out of retirement to work with Mayor Adina Ishii and is making her second retirement official.

89
00:14:26.360 --> 00:14:43.309
Boardroom: So that she can spend more time with her family, including her very cute granddaughter, Stella. And whereas Julie's passion for social justice, her wealth of institutional knowledge, and her ability to see complex problems and figure out a way forward are just a few things that have made her an asset to the city of Berkeley.

90
00:14:44.460 --> 00:14:57.890
Boardroom: And whereas she mind, holding onto a sense of humor and playful curiosity, making her a beloved member of Team Ishii and the community who will be deeply missed when she enters the next chapter of her life, retirement.

91
00:14:58.240 --> 00:15:10.549
Boardroom: Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby declare September 29th as Duly Sinai Day in the City of Berkeley.

92
00:15:11.620 --> 00:15:17.259
Boardroom: Thank you for all your hard work and dedication serving the city and its residents.

93
00:15:17.490 --> 00:15:18.470
Boardroom: Thank you, Joe.

94

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00:15:33.620 --> 00:15:36.510
Boardroom: Would you like to say a few words?

95
00:15:39.440 --> 00:15:43.859
Boardroom: This was not expected, so I have nothing prepared.

96
00:15:44.250 --> 00:15:46.650
Boardroom: I can't say how honored

97
00:15:46.820 --> 00:15:52.390
Boardroom: And what a pleasure it's been to serve you, Mayor Ishii, and to come back from rewirement.

98
00:15:52.650 --> 00:15:59.270
Boardroom: And to be able to work with all of you on the council, our honorable council members,

99
00:16:00.590 --> 00:16:11.830
Boardroom: Thank you for the opportunity. Thank you, Mayor Bates, for all the years we worked together. Thank you to my husband for all of the patience.

100
00:16:11.850 --> 00:16:24.890
Boardroom: He's put in for all of the political activities and the like that we do. It's an honor to serve Berkeley. And to be able to serve it both publicly and quietly behind the scenes is truly a pleasure.

101
00:16:25.100 --> 00:16:32.919
Boardroom: So thank you. This is, what do they say? This is not goodbye. This is like see you later. I will be back as a constituent.

102
00:16:33.370 --> 00:16:48.739
Boardroom: District 5? And just thank you for all of your work and your tireless effort, because it is not easy to be up there. And I really appreciate each and every one of you, and I appreciate you, Mayor Ishii. Thank you.

103
00:17:03.510 --> 00:17:04.200
Boardroom: Oh.

104
00:17:07.800 --> 00:17:09.509
Boardroom: Here you go.

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105
00:17:09.810 --> 00:17:10.630
Boardroom: you

106
00:17:19.400 --> 00:17:21.950
Boardroom: Just the mayor stop.

107
00:17:25.450 --> 00:17:29.180
Boardroom: Mayor Topper, one, two, three, four.

108
00:17:49.860 --> 00:17:53.039
Boardroom: Okay, thank you. Thank you all.

109
00:17:54.180 --> 00:18:01.380
Boardroom: Okay, so… We will now move on to city manager comments.

110
00:18:02.740 --> 00:18:20.799
Boardroom: Thank you, Madam Mayor. Only one comment, which is that I need to remove item 21 on the consent calendar, which is the contract with One Workplace Construction for window replacement at 1947 Center. The, they pulled out, so we need to regroup, so I need to pull that from the agenda. That's all, thank you.

111
00:18:21.580 --> 00:18:29.789
Boardroom: Thank you. Thank you very much. Okay, and then I think online… is our auditor.

112
00:18:30.470 --> 00:18:33.519
Boardroom: Madam City Auditor, I'm just looking for you.

113
00:18:33.860 --> 00:18:36.380
Jenny Wong: Hi there! Good evening!

114
00:18:36.680 --> 00:18:50.139
Jenny Wong: Mayor and Council, I'm under the weather today, so I'm calling in. Excuse me. Tonight, I'd like to share a couple of information items on the agenda with you. These are on the status of audit recommendations.

115
00:18:51.190 --> 00:19:10.639
Jenny Wong: Valerie Watson, First, I'd like to provide an update from HR. This is on the 2019 audit of the city's domestic violence policy response. We initiated this audit because having a comprehensive policy

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can help provide the proper response to the important issue of domestic violence to keep employees safe.

116
00:19:10.730 --> 00:19:30.080
Jenny Wong: In this audit, we found that Berkeley's domestic violence leave policy for employees did not fully align with the state requirements and model policy elements at the time of the audit. We also found that Berkeley could adopt practices to provide a more supportive domestic violence response, such as reach and education.

117
00:19:30.400 --> 00:19:34.130
Jenny Wong: Since the last audit update in 2025,

118
00:19:34.270 --> 00:19:52.290
Jenny Wong: I wanted to say that HR has implemented the last open, updated administrative 2.21 titled, Leave Policy for Absence Related to Acts of Violence. This policy incorporates model policy elements and includes guidance for employees experiencing acts of violence.

119
00:19:52.290 --> 00:20:09.239
Jenny Wong: During this period, HR launched training materials on the updated policy on the city's employee training platform, ensuring city staff have read and understood the new policy. So I really just want to thank HR again for implementing these recommendations.

120
00:20:09.240 --> 00:20:13.799
Jenny Wong: To support employees and make the workplace safer in response to our audit.

121
00:20:15.060 --> 00:20:16.480
Jenny Wong: Secondly.

122
00:20:16.820 --> 00:20:32.080
Jenny Wong: My office also followed up, excuse me, on the 2024 audit of restaurant inspections. Two of the findings were that the Environmental Health Division did not track spending on its food inspections program to publish the inspection.

123
00:20:32.330 --> 00:20:45.529
Jenny Wong: for all permitted food facilities in Berkeley. Since the last update in February of this year, the Division implemented the recommendation to track and report how food inspection program revenues were used.

124

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00:20:45.540 --> 00:20:58.830
Jenny Wong: So that's good news. However, the division has not resumed publishing the food facility inspections data online after it was removed in 2024 from the city's open data portal.

125
00:20:59.030 --> 00:21:10.129
Jenny Wong: The division is preparing to launch the new inspections database, but has postponed the release from September of this year to later in the fall.

126
00:21:10.450 --> 00:21:23.770
Jenny Wong: I'm sorry from summer to fall of this year, according to the division, full implementation of the remaining open recommendations depends on the release of the new inspections, database or council approval of support

127
00:21:23.770 --> 00:21:32.000
Jenny Wong: to support additional staffing. We will present our next status report to Council for this audit, next year.

128
00:21:32.230 --> 00:21:33.250
Jenny Wong: Thank you.

129
00:21:34.260 --> 00:21:36.450
Boardroom: Thank you, Madam City Auditor.

130
00:21:38.340 --> 00:21:44.929
Boardroom: Very good. Okay. All right, so we will now take public comment on non-agenda matters.

131
00:21:54.660 --> 00:21:55.399
Boardroom: Can you hear me?

132
00:22:08.180 --> 00:22:09.700
Boardroom: Just give me a moment here.

133
00:22:11.230 --> 00:22:12.650
Boardroom: 1…

134
00:22:17.940 --> 00:22:20.150
Boardroom: 2, 3.

135

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00:22:23.830 --> 00:22:25.730
Boardroom: 4 and 5.

136
00:22:33.150 --> 00:22:46.290
Boardroom: All right, we've drawn five cards in no particular order for the in-person speakers, and then we will take the speakers, on Zoom, and each speaker will have one minute.

137
00:22:46.490 --> 00:22:52.070
Boardroom: And again, the speakers in no particular order, you can go ahead and come on up, are Oliver Davis.

138
00:22:53.340 --> 00:22:54.850
Boardroom: Bobo?

139
00:22:55.310 --> 00:22:57.060
Boardroom: Lisa Teague.

140
00:22:57.810 --> 00:22:59.520
Boardroom: Steve Tracy.

141
00:22:59.760 --> 00:23:01.160
Boardroom: And Russell Bates.

142
00:23:01.480 --> 00:23:03.209
Boardroom: Please come forward if your name is called.

143
00:23:13.720 --> 00:23:15.670
Boardroom: Hi, everyone. Should I start?

144
00:23:16.390 --> 00:23:23.229
Boardroom: Please go ahead. Hi, good evening. So my name is Oliver Davis, and I wanted to speak tonight about

145
00:23:23.340 --> 00:23:30.999
Boardroom: some issues that our neighborhood in Ocean View is having with the clearing of the Ocean View homeless encampment.

146
00:23:31.580 --> 00:23:47.689
Boardroom: And I just… so it's a very, complicated topic, but I want to address two specific concerns that we have. Since the encampment has been cleared, or partially cleared, several new sites have been created.

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147
00:23:47.850 --> 00:23:52.350
Boardroom: And, some of them very close to, our kids' preschool.

148
00:23:52.400 --> 00:24:03.410
Boardroom: And so I have been following a little bit the situation, and I understand that several sites have been approved for specific people who need some ADA accessibility.

149
00:24:03.450 --> 00:24:14.949
Boardroom: accommodation. But my question to you tonight is, is it a appropriate location to have those sites be right in front of 2 preschools for 9th and Camellia.

150
00:24:15.020 --> 00:24:18.650
Boardroom: And same thing for Duck's Nest on Fort and Camellia.

151
00:24:18.650 --> 00:24:43.530
Boardroom: So my kids play right in front every day right next to that site. So that's my question. Thank you. So, we don't usually go back and forth to answer questions, but, we are having a public meeting about this, and I do just want to make sure it's clear for folks that we aren't approving any sites for people to move to. So I know that that's, a little bit of a point of confusion, so I just want to make sure that's clear and my staff will come talk to you.

152
00:24:43.530 --> 00:24:44.790
Boardroom: Thank you. Thank you.

153
00:24:47.580 --> 00:24:49.819
Boardroom: All right, next speaker, come on up.

154
00:24:56.110 --> 00:25:03.040
Boardroom: Good evening. I'm Lisa Teague. I am here representing the Behavioral Health Commission.

155
00:25:03.140 --> 00:25:10.380
Boardroom: I am currently the acting chair of the Berkeley Behavioral Health Commission, and we need your help.

156
00:25:11.180 --> 00:25:17.940
Boardroom: We need bodies in the commission, particularly a veteran.

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157
00:25:18.100 --> 00:25:37.270
Boardroom: a member of the Berkeley Unified School District, and, a young person from 18 to 26. I have some flyers, I came with equipped, that I will hand to you, and,

158
00:25:38.450 --> 00:25:48.469
Boardroom: You should have received a letter from the Berkeley Mental Health this morning, I think, or yesterday.

159
00:25:48.480 --> 00:26:03.590
Boardroom: But I also have copies of that letter to provide to you. So, 4 seconds left. I hope you all can help us firm up our commission numbers. Thank you. Thank you. Thanks so much. We'll take a look.

160
00:26:09.490 --> 00:26:13.430
Boardroom: Okay, sorry, thank you.

161
00:26:14.290 --> 00:26:34.210
Boardroom: Hi, I'm a firm believer in the think globally, act locally. This is acting locally, being here tonight. I want to think about the genocide that's going on in Gaza right now, that they want to move to the West Bank. It's an ongoing situation there. We're not supposed to give

162
00:26:34.240 --> 00:26:40.839
Boardroom: Weapons to be used offensively, but yet every weapon that's being sent or given.

163
00:26:41.090 --> 00:26:43.870
Boardroom: To design the sensitivity is being used.

164
00:26:44.160 --> 00:26:54.920
Boardroom: to… Oppress, suppress, and kill people, young people. Snipers shooting young people in the head.

165
00:26:55.310 --> 00:27:03.469
Boardroom: We're getting kind of sick of that, and it might be a good idea, since people are feeling a little friendlier now, is to

166
00:27:03.950 --> 00:27:17.770
Boardroom: reconsider the voting, against the ceasefire and vote for the ceasefire. Remember, from the river to the sea, make occupied Palestine 48 Zionist 3. Thank you very much. Thank you.

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167
00:27:29.380 --> 00:27:35.710
Boardroom: Good evening. I'm a resident and property owner in Berkeley here to talk about affordable housing.

168
00:27:36.000 --> 00:27:40.020
Boardroom: A very hot topic you are all very focused on.

169
00:27:40.240 --> 00:27:43.029
Boardroom: At least you were in February when you approved.

170
00:27:43.600 --> 00:27:47.260
Boardroom: a project 2109 Virginia.

171
00:27:48.340 --> 00:27:51.990
Boardroom: That project has 15% affordable housing.

172
00:27:56.250 --> 00:28:02.590
Boardroom: People might wonder… In a 3-story zone, how did an 8-story project get approved?

173
00:28:03.240 --> 00:28:11.380
Boardroom: Well, 55 units… With 30% affordable, Council didn't approve

174
00:28:11.790 --> 00:28:17.929
Boardroom: it going to 110 units. The state of California, with their density bonus, superseded that.

175
00:28:18.820 --> 00:28:31.600
Boardroom: Let's keep it at the current height zone of three stories, and we get affordable housing, and we get an eight-story building. If it's up zoned to seven, we get no affordable housing.

176
00:28:31.790 --> 00:28:33.260
Boardroom: Thank you.

177
00:28:39.520 --> 00:28:43.489
Boardroom: I'm, listed as Bobo in there, as a…

178
00:28:44.690 --> 00:28:48.810
Boardroom: Bad joke. And I'm seating my… Stephen out.

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179
00:28:51.420 --> 00:29:02.119
Boardroom: I am Dr. Steven Alpert. The Council's vote for protected bike lanes on Hopkins demonstrates, yet again, this Council's willingness to misrepresent facts and violate City policy.

180
00:29:02.540 --> 00:29:18.439
Boardroom: The introduction of that proposal, quote, given new information presented by the fire department, that pedestrian and bike safety infrastructure on Hopkins Street retains workable emergency access was utterly deceitful, implying that Fire Chief Sprague had reviewed the proposal.

181
00:29:18.680 --> 00:29:29.340
Boardroom: A complete street study was never conducted for Hopkins as required by the city's bicycle plan. Page 16, with the heading Complete Streets Corridor Studies, reads.

182
00:29:29.490 --> 00:29:36.140
Boardroom: Providing a complete network does not require dedicated facilities for all transportation modes on every street.

183
00:29:36.670 --> 00:29:53.319
Boardroom: For bikeway planning, Berkeley considers both arterial and collect roads and parallel streets as part of the Complete Streets corridor. The Council's refusal to consider bike lanes on parallel Ada and Rose Streets violated city policy, resulting in a well-deserved

184
00:29:53.460 --> 00:29:56.420
Boardroom: Lawson, you deserve it.

185
00:29:57.630 --> 00:30:11.539
Boardroom: Okay, is there… are there any comments online? It looks like there are a few. Yes, we do have some hands raised online. This is for non-agenda public comment. Our first speaker is Nathan Mizell.

186
00:30:21.300 --> 00:30:23.490
Boardroom: Nathan, myself? Oh, there we go.

187
00:30:35.260 --> 00:30:36.800
Boardroom: Nathan, are you there?

188
00:30:41.340 --> 00:30:43.190
Nathan Mizell: Yes, I'm sorry, can you hear me?

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189
00:30:43.470 --> 00:30:45.689
Boardroom: Yes, we can hear you.

190
00:30:46.080 --> 00:30:47.909
Nathan Mizell: Okay,

191
00:30:48.140 --> 00:30:58.000
Nathan Mizell: Damn, this non-agenda, supposed to be on agenda. Just want to thank the council for their work on appointing a new PAB director. Thank you for appointing someone with a good background. Appreciate the work. Have to go. Thanks.

192
00:30:58.690 --> 00:31:04.529
Boardroom: Thanks. That's on the agenda. But you gave your comments. So thank you. Thanks for your comment.

193
00:31:05.990 --> 00:31:11.720
Boardroom: All right, our next speaker is the caller with the phone number ending in 211.

194
00:31:12.000 --> 00:31:13.699
Boardroom: You are our next speaker.

195
00:31:15.500 --> 00:31:22.270
1510****211: Hi, this is Ed. I did email you an email about your gas. It is monstrous chemical. It is.

196
00:31:22.420 --> 00:31:27.670
1510****211: It does cause not just temporary, but permanent damage to the eyes and to the lungs.

197
00:31:27.800 --> 00:31:33.579
1510****211: My ex-wife, my wife, as you call her my wife, Ann Dixon, she was a Berkeley High School teacher.

198
00:31:33.820 --> 00:31:34.779
1510****211: You had asthma.

199
00:31:34.940 --> 00:31:39.860
1510****211: Every time, in 1969, you know, they were spraying gas across the city.

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200
00:31:40.050 --> 00:31:44.170
1510****211: She almost died. I had to hold her to… drive her to Alta Beats.

201
00:31:44.290 --> 00:31:45.330
1510****211: Civil life.

202
00:31:45.530 --> 00:31:47.939
1510****211: Bob, to your guest. No way.

203
00:31:48.150 --> 00:31:51.810
1510****211: On the other hand, I'd like to bring back our business.

204
00:31:52.590 --> 00:31:57.180
1510****211: Mayor Ishii, give me a call. I'll request a meeting with you.

205
00:31:57.300 --> 00:31:58.660
1510****211: In front of everybody.

206
00:31:58.800 --> 00:32:00.510
1510****211: Settle our matter with you.

207
00:32:00.940 --> 00:32:06.219
1510****211: We contributed over a million dollars in tax money and business licensing to the City of Berkeley Treasury.

208
00:32:06.490 --> 00:32:09.059
1510****211: Long time. 62 years in business.

209
00:32:10.320 --> 00:32:14.720
1510****211: Have a good day. I will call again about other issues, Gaza and some other issues.

210
00:32:15.320 --> 00:32:16.070
1510****211: Good night.

211
00:32:18.340 --> 00:32:19.400
Boardroom: Thank you.

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212
00:32:19.930 --> 00:32:22.399
Boardroom: Our next speaker is Maria Sol.

213
00:32:23.500 --> 00:32:25.600
maria sol: Oh, thank you so much.

214
00:32:25.870 --> 00:32:28.400
maria sol: And that's why I'm calling in. I…

215
00:32:28.520 --> 00:32:31.050
maria sol: You have such a packed agenda for this.

216
00:32:31.150 --> 00:32:32.520
maria sol: Second meeting.

217
00:32:33.460 --> 00:32:43.889
maria sol: And I just want to express my gratitude, not necessarily for the outcome, although I am utterly elated, but for the process.

218
00:32:44.190 --> 00:32:49.240
maria sol: Because somehow or another, we managed, through all of these many months.

219
00:32:49.450 --> 00:32:52.060
maria sol: To speak and listen to one another.

220
00:32:52.640 --> 00:33:01.430
maria sol: To express our concerns, and… Think about it, but also feel it, and care about it.

221
00:33:01.750 --> 00:33:04.359
maria sol: So I am just jubilant?

222
00:33:04.830 --> 00:33:16.710
maria sol: that the process of this brought us more together, even if we disagree, and hope that we can continue working peacefully and harmoniously. Thank you very much.

223
00:33:18.250 --> 00:33:19.460
Boardroom: Thanks, Maria.

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224
00:33:20.800 --> 00:33:23.340
Boardroom: Our next speaker is Della Luna.

225
00:33:25.530 --> 00:33:32.860
Della Luna (she/her) Huichun: Hello, I wanted to speak about crosswalk and crosswalk safety for pedestrians.

226
00:33:32.970 --> 00:33:45.620
Della Luna (she/her) Huichun: And as a driver, I am the pedestrian. I noticed the uptick and how careful one has to be just to walk in the city of Berkeley. And then specifically, I wanted to speak about the crosswalk.

227
00:33:45.850 --> 00:33:58.639
Della Luna (she/her) Huichun: at the Ashby BART station across MLK. That one has been under construction for about 6 months, and it's not clear what's going on, but you've also turned it into, like, a railway construction, where it's no longer straight, it's a zigzag.

228
00:33:59.300 --> 00:34:15.090
Della Luna (she/her) Huichun: So… and then the lights that look like railroad crossings are covered, so it's not an operational, but it has been modified, but now pedestrians are just walking across in the bike lane, the green painted bike lane. No one's using the crosswalk.

229
00:34:15.280 --> 00:34:27.830
Della Luna (she/her) Huichun: And so I just wanted to juxtapose that with this unfinished crosswalk, and then other crosswalks that need repainting. I'm sure you all saw there was another incident, I believe it was with a bicycle? No, it was a pedestrian, on Telegraph.

230
00:34:27.830 --> 00:34:30.070
Boardroom: Thank you. Thanks, Stella. Thanks for your comment.

231
00:34:31.650 --> 00:34:36.689
Boardroom: All right, and our final online speaker is David's phone.

232
00:34:39.840 --> 00:34:47.969
David!’s iPhone: Hi, I just wanted to speak briefly in response to an earlier comment. It is…

233
00:34:48.650 --> 00:35:03.200

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David!’s iPhone: It's sort of unconscionable to me, the way that we, in our political debates, the way that we, are willing to pull in the fire department and to, politicize the fire department.

234
00:35:03.290 --> 00:35:10.679
David!’s iPhone: In order to make a point. You know, somebody emails the fire chief, and he replies, and it's supposed to be some scandal.

235
00:35:10.860 --> 00:35:15.630
David!’s iPhone: The fact is that opponents of street safety will grasp at any straw.

236
00:35:17.160 --> 00:35:29.620
David!’s iPhone: to… to… to try to protect their street parking. And, you know, those 3 to 5 people who die on our streets every year, you know, too bad about them, I guess.

237
00:35:29.900 --> 00:35:34.240
David!’s iPhone: This idea of, oh, it wasn't one lane, it was two lanes.

238
00:35:34.620 --> 00:35:39.959
David!’s iPhone: 26 feet is 26 feet, and I have to go now, so thank you guys so much. Bye.

239
00:35:40.990 --> 00:35:41.930
Boardroom: Thank you.

240
00:35:43.270 --> 00:35:50.839
Boardroom: All right, and that was our last raised hand, and 10 speakers. Okay, thank you all so much.

241
00:35:51.350 --> 00:35:56.040
Boardroom: Everyone is in a hurry to give their comment today. All right.

242
00:35:57.020 --> 00:36:09.730
Boardroom: We are now moving on to our consent calendar, but we have 2 urgency items that are coming from my office in partnership with Council members, Luna Parra, Blackaby, and Trey Gubb.

243
00:36:10.590 --> 00:36:21.690
Boardroom: And there are urgent items I'd like to have us accept them to be added to the consent calendar. So moved. Second. Okay, can we take the roll on that, please?

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244
00:36:22.970 --> 00:36:33.469
Boardroom: This is to accept the two urgent items from the Mayor. Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Tragop? Aye. O'Keefe? Yes.

245
00:36:33.640 --> 00:36:35.020
Boardroom: Blackaby? Yes.

246
00:36:35.190 --> 00:36:36.510
Boardroom: Luna Parra? Yes.

247
00:36:36.660 --> 00:36:37.600
Boardroom: Humbert?

248
00:36:37.600 --> 00:36:38.380
Mark Humbert: Yes.

249
00:36:38.680 --> 00:36:55.670
Boardroom: And Mayor Ishii? Yes. And just to be clear, this is for a resolution to oppose Proposition 43, which limits the voters' ability to raise revenues for local government services, and resolution in support of Prop 1, the Veterans and Affordable Housing Bond Act of 2026.

250
00:36:56.160 --> 00:36:58.440
Boardroom: All right, very good.

251
00:36:58.820 --> 00:37:08.859
Boardroom: Okay, and so yeah, these are all propositions that will be coming for before the voters this election. And as a reminder to folks, ballots drop October 5th.

252
00:37:09.010 --> 00:37:21.389
Boardroom: And it's really important to get information out to the public about both of these. And these items are supported by Cal Cities, which is how we brought them here today. So thank you.

253
00:37:21.730 --> 00:37:29.400
Boardroom: All right. Very good. I am going to move us over to comments on consent calendars. So, Councilmember Taplin.

254
00:37:29.760 --> 00:37:34.500

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Boardroom: Thank you very much, Madam Mayor, and good evening, everyone. Thanks for being here. It's great to see some new faces.

255
00:37:34.820 --> 00:37:37.259
Boardroom: And familiar faces as well.

256
00:37:37.620 --> 00:37:49.849
Boardroom: I want to. We've got some great news in the waterfront tonight, so I want to draw everyone's attention to item number 2, which is the contract amendment for team Golo to use South Cove West Lot repaving project.

257
00:37:52.240 --> 00:37:59.480
Boardroom: As well as item number 10, the contract amendment for Anchor CM for on-call waterfront project and construction management services.

258
00:38:03.590 --> 00:38:16.010
Boardroom: and I want to thank Council Bertragu for joining me on. Item 27. This is my Cal Sailing Club's final 2026 open house relinquishment of Council office budget funds from general funds and grant of such funds.

259
00:38:16.010 --> 00:38:25.250
Boardroom: And I want to thank Mayor Ishii for also joining as a co-sponsor, as well as Councilor Gunapara. Councilor Tregroup, you are now a co-sponsor. So I say that now into the record.

260
00:38:25.680 --> 00:38:45.400
Boardroom: And I invite everyone to, contribute what you can, and also I invite everyone here to join us on Sunday at our open house. I'm a member of Cal Sailing, and I, I have had the pleasure of volunteering to give guest rides on the keelboats, and, one of my favorite things to do

261
00:38:45.400 --> 00:38:56.509
Boardroom: ever is to sail Kill Bill through the gaps in the pier. We don't take the guests on that, but, but if you join the club, you'll get to do that one day. So I hope to see you all there Sunday. Thank you.

262
00:38:57.750 --> 00:39:15.810
Boardroom: Thank you. Yeah, he's a great sailor, so. Alright, we're gonna go Councilmember Blackaby, and then Councilmember Trageb, and then online to Councilmember Humbert. Great, thank you, Madam Mayor. First I just want to comment on item 8, which is the appointment of, Mary Oppler as our new,

263

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00:39:15.810 --> 00:39:39.479
Boardroom: Director of Police Accountability. I just want to say how excited I think we all are to be filling this role. Mary went through a rigorous interview process. I know we all really enjoyed meeting with her and talking with her in closed session, and I'm just really excited for the leadership she's going to bring to the city and to the office. And I think at this point, with a full complement of board members and a new director.

264
00:39:39.580 --> 00:39:47.169
Boardroom: the, PAB will be kind of at full strength, and look forward to, the partnership with, with her and with, with the PAB moving forward.

265
00:39:47.280 --> 00:40:05.520
Boardroom: Item 27, thanks Councilmember Taplin for bringing it. I'd like to contribute $100 from our office account towards that. On item 28, thank you for, to Councilmember Tragab for bringing that item about the Sinbad Voyage restoration. We'd like to contribute $100 towards that.

266
00:40:05.520 --> 00:40:17.729
Boardroom: I wanted to mention item 29. We're offering a resolution from our office honoring September's Childhood Cancer Awareness Month. Thank you to Councilmember Bartlett for co-sponsoring with us.

267
00:40:17.730 --> 00:40:35.399
Boardroom: It's a resolution that honors September as Childhood Cancer Awareness Month. Childhood cancer is the leading cause of death by disease in children, and much more can be done to raise awareness about and find cures for this deadly disease, and so it's a way of bringing recognition and awareness of this important matter.

268
00:40:35.580 --> 00:40:39.990
Boardroom: Item 30 also wanted to thank

269
00:40:40.020 --> 00:40:52.980
Boardroom: the Mayor, Councilmember Luna Parr, and Councilmember Bartlett for joining me. We're introducing a resolution declaring October 18th to 24th as United Against Hate Week in Berkeley, which is an annual tradition for many years.

270
00:40:52.980 --> 00:41:02.299
Boardroom: in Berkeley, I would just encourage folks, who can make it. There's a screening of a great film called Minnesota Neighbors, a documentary about,

271

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00:41:02.300 --> 00:41:06.549
Boardroom: Minneapolis's and St. Paul's response to the ICE raids.

272
00:41:06.550 --> 00:41:17.919
Boardroom: That's being produced, here, in California, with participation from folks in Berkeley. That screening is October 21st, 7pm at the Grand Lake theater.

273
00:41:18.010 --> 00:41:34.940
Boardroom: And then on item 31, would be happy to contribute $100 from our office account towards the Music in the Elmwood Festival. And then one more request on the consent calendar, we have item 36 on our agenda on the action calendar, which is,

274
00:41:35.010 --> 00:41:53.179
Boardroom: the Surveillance Technology Ordinance Submission for Mutual Air Support. The Police Accountability Board has reviewed that as in concurrence with that. They made one slight, adjustment where they asked that, the language in the policy around audits

275
00:41:53.360 --> 00:41:57.159
Boardroom: Be, incorporated, and so my…

276
00:41:57.340 --> 00:42:01.949
Boardroom: My suggestion and my ask would be that we could move this item to consent.

277
00:42:02.180 --> 00:42:10.029
Boardroom: accept the PAB's suggestion to clearly state the surveillance technology ordinance audit requirements in the policy.

278
00:42:10.170 --> 00:42:25.339
Boardroom: And direct the police department to insert the actual surveillance technology ordinance language about audits verbatim into the policy, just to make that completely consistent and clear. I think with that, we'll satisfy PAB's ask.

279
00:42:25.500 --> 00:42:32.510
Boardroom: And so I'd ask that we make that adjustment and move the item to consent with permission of my colleagues.

280
00:42:33.870 --> 00:42:38.369
Boardroom: So you're making that motion? Yes, to move to second with that change.

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281
00:42:38.720 --> 00:42:44.949
Boardroom: Could you repeat the motion for for some? Yeah, it's item 36. It's the move that action item to consent.

282
00:42:45.050 --> 00:43:03.249
Boardroom: The only tweak, which was… you'll see it in Supplemental 1 from the Police Accountability Board. They had asked that there be, one extra line of language about the audit requirements, which the Police Department also supports, and so I'd like to move that item to consent, and then direct the Department to insert

283
00:43:03.350 --> 00:43:15.450
Boardroom: the actual language from the surveillance technology ordinance about audits to insert that verbatim into the policy, so that the ordinance and the policy are consistent when we talk about audits.

284
00:43:16.080 --> 00:43:25.690
Boardroom: Okay, so we have a motion on the floor, we have a second. Oh, if it's, the will of the Council can be voted on as part of the consent calendar? Yeah. Yeah, thank you.

285
00:43:25.860 --> 00:43:26.770
Boardroom: There you go.

286
00:43:26.850 --> 00:43:41.290
Boardroom: Okay. And actually, you're reminding me, thank you very much, that I'm also supposed to read something and change to item number 13. So, we had received some email, emails. Councilmember Tragab and I had received some emails with some concerns.

287
00:43:41.290 --> 00:43:48.909
Boardroom: About item 13, wanting to make sure that the City Council had received the surveillance technology report.

288
00:43:48.910 --> 00:44:10.120
Boardroom: Before we voted on the surveillance technology, return of the RFP that's coming to Council. And so, this slight change really just changes the date, so that we'll still get that report in November. And then moving forward, it will be in March. So, the language has changed to say the first March surveillance…

289
00:44:10.600 --> 00:44:21.099

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Boardroom: The first March surveillance technology report submitted following the effective date of the ordinance amending this section shall be submitted at the first regular council meeting in March 2020.

290
00:44:21.530 --> 00:44:23.259
Boardroom: Oh, this is 8.

291
00:44:23.640 --> 00:44:29.180
Boardroom: Is that right? March 2028. And shall cover the period from October 1st, 2026,

292
00:44:29.270 --> 00:44:46.389
Boardroom: through December 31st, 2027, so that no period is omitted from annual reporting as a result of the transition to a calendar year reporting period. After review of the surveillance technology report, Council may make modifications to surveillance use policies.

293
00:44:47.570 --> 00:44:48.490
Boardroom: Okay.

294
00:44:48.710 --> 00:45:03.789
Boardroom: Yes. Any concerns with that change? Just to confirm, so what that'll do is we'll still have the audit… sorry, we'll still have the surveillance technology report this October. November. This November, sorry. And then we'll pick up again the following year.

295
00:45:04.320 --> 00:45:14.040
Boardroom: Yeah. Yes. Okay. So we don't move, because I know there was concern, we heard from the public, that there would be a gap, and… Right. So we would do it this November, and then the following March.

296
00:45:15.050 --> 00:45:16.070
Boardroom: Great, thank you.

297
00:45:16.260 --> 00:45:17.370
Boardroom: Thank you.

298
00:45:17.590 --> 00:45:18.440
Boardroom: Okay.

299
00:45:18.530 --> 00:45:41.999
Boardroom: And then one other thing I'm supposed to read into the record is that also for Mary Opler, who is listening online literally on her way

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here to Berkeley, I am supposed to read specifically that we are adopting a resolution approving the appointment of Mary Opler as director of police accountability and approving an employment agreement effective October 5, 2026.

300
00:45:42.030 --> 00:45:45.280
Boardroom: At a salary of $230,000.

301
00:45:45.320 --> 00:46:02.740
Boardroom: And, I do just want to say on a personal note that we're really excited to have you, Mary. If you're listening, it's so important that we have a Director of Police Accountability. There was really strong support from both our community members and also our Council, who were involved in the selection process.

302
00:46:02.740 --> 00:46:26.760
Boardroom: And I'm really looking forward to having the public meet her. We're we're going to definitely think of ways that we can make sure she gets out into the community and and meets with folks. So, thank you very much, Mary. And we will thank Kathy Lee, who may or may not be online. When she actually is departing her position, she's still going to be serving as sort of an adviser to help with the transition. So, just so folks know about that. And and when

303
00:46:26.760 --> 00:46:32.500
Boardroom: she has her final meeting, we will say more about Kathy. Thank you. Okay, go ahead, Councilmember Trico.

304
00:46:33.160 --> 00:46:42.129
Boardroom: Thank you, Madam Mayor. First, I would like to sincerely thank Kathy Lee for her service to the Office of Police Accountability.

305
00:46:42.320 --> 00:46:43.210
Boardroom: And…

306
00:46:43.520 --> 00:46:58.990
Boardroom: of course, many other, departments within the city, and give a warm welcome to Mary Opler to, lead Berkeley's team of devoted community service leaders as the next, DPA.

307
00:46:59.150 --> 00:47:10.650
Boardroom: I would like to thank my co-sponsors of item 28, as well as those who also choose to give to the restoration of Sinbad's voyage.

308

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00:47:10.650 --> 00:47:21.219
Boardroom: warms my heart to see the swift and passionate community action that has gone into the Moro's restoration, which is nearing its completion, I would add.

309
00:47:21.390 --> 00:47:41.030
Boardroom: To items 27 and 31, I would like to thank Councilmember Taplin for, the co-sponsorship of, his Cal Sailing Club item. I would like to give $100 each from my G13 account to, both items, and would like to also thank Councilmember

310
00:47:41.030 --> 00:47:44.800
Boardroom: Hamburg for his music in the Elmwood item.

311
00:47:45.170 --> 00:47:48.420
Boardroom: And…

312
00:47:48.710 --> 00:48:00.580
Boardroom: I would like to thank our police department for applying and receiving additional funding through grants. It takes a lot of time and effort to find, submit, and be successful in qualifying for grants.

313
00:48:00.730 --> 00:48:04.599
Boardroom: It is a very meaningful contribution to our city.

314
00:48:05.090 --> 00:48:21.300
Boardroom: And speaking of grants, I am very pleased that item 18, the Alameda County Transportation Commission Comprehensive Investment Program 2028 and one Bay Area grant for application is coming before us tonight.

315
00:48:21.300 --> 00:48:25.640
Boardroom: It will provide significant funding opportunities.

316
00:48:25.940 --> 00:48:32.440
Boardroom: To make the Sacramento crossings, safer,

317
00:48:32.610 --> 00:48:48.879
Boardroom: spanning a significant portion of my district, starting on Channing, and is critical to the work that my office has been doing over the last 2 years. But this will help complete it.

318
00:48:51.360 --> 00:48:56.009
Boardroom: on item 26, the vision 2050 plan.

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319
00:48:56.070 --> 00:49:15.969
Boardroom: I am honored to have been able to be part of the plan. I want to thank the mayor for appointing me to that committee, and I'm excited to see it move forward, and I thank the mayor for bringing forward an asset management plan tonight. I think it's really critical to the success of this effort.

320
00:49:16.350 --> 00:49:28.579
Boardroom: Lastly, very grateful to the mayor for adding me onto the resolution in support of prop one and opposing prop 43.

321
00:49:28.670 --> 00:49:38.670
Boardroom: And, thank you to staff for working diligently with us to end.

322
00:49:38.670 --> 00:49:53.539
Boardroom: to the police chief as well for being amenable to this very important change in when the next status report will come as part of.

323
00:49:53.720 --> 00:49:59.929
Boardroom: Prop 14. I'd like to thank my colleagues for all the other important items on the consent calendar.

324
00:50:00.610 --> 00:50:09.679
Boardroom: Thank you, Councilmember. We're going to go online to Councilmember Humbert, and then we'll go Councilmember O'Keefe, Kesarwani, Bartlett, then Lunapara.

325
00:50:11.160 --> 00:50:11.740
Mark Humbert: No?

326
00:50:11.940 --> 00:50:16.999
Mark Humbert: Thank you, Madam Mayor, on on one of my before I start my comments.

327
00:50:17.120 --> 00:50:24.740
Mark Humbert: I think the clerk has a comment to make about a scrivener's error with respect to one of my consent items.

328
00:50:24.740 --> 00:50:48.009
Boardroom: Yes, thank you, Councilmember Humbert, and apologies. Just wanted to note for the record that staff enthusiastically but incorrectly added a few co-sponsors to item 31, Music in the Elmwood. That item is

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from Councilmember Humbert and will be noted such in the record. Those co-sponsors were correctly added to the sister city item.

329
00:50:48.010 --> 00:50:52.179
Boardroom: So again, apologies and thank you for allowing me to make this statement for the record.

330
00:50:54.260 --> 00:51:02.530
Mark Humbert: Thank you, Madam Clerk, and if anybody would like to to join as a co-sponsor. Now that it's just me on the item I'd be grateful.

331
00:51:02.600 --> 00:51:18.369
Mark Humbert: I want to start with some response to Auditor Wong's comments tonight. I want to thank her and her staff for their continued work on the restaurant health inspection and data availability issues. I have to say I'm

332
00:51:19.640 --> 00:51:39.219
Mark Humbert: stern, because I don't think it is that these critical data remain inaccessible to the public online. I'd like to see this issue fixed by the beginning of the next calendar year at the latest, and if I have the privilege of remaining on this body in the New Year, I'd welcome the opportunity to work with Staff and my colleagues to bring forward an item

333
00:51:39.280 --> 00:51:58.839
Mark Humbert: as a priority, setting a clear deadline for these data to be restored online in some fashion, even if it's just the Pdf. Postings that Council Member O'keefe spoke about previously. I mean, that's got to be possible, you know, to take some photographs of documents and post them if we can't do it more elegantly.

334
00:52:00.330 --> 00:52:17.130
Mark Humbert: Item number 8, the appointment of Director of Police Accountability, Mary Opler. I want to offer a hearty welcome to her. She's joining as our new Director of Police Accountability. It was a privilege to serve on the initial selection committee.

335
00:52:17.130 --> 00:52:34.079
Mark Humbert: where incoming Director Opler really impressed us with her breadth of knowledge and experience, and her overall demeanor and commitment and approach to police accountability. I'm really excited to have Director Opler coming aboard and look forward to working together.

336
00:52:34.450 --> 00:52:54.140

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Mark Humbert: Let me move through here quickly. I'd like to be noted on item 27 as donating $250 to the Cal Sailing Club for my my office account. With respect to item number 28, I'd like to donate that. That's the restoration of the

337
00:52:54.410 --> 00:53:05.680
Mark Humbert: of the the Sinbad voyage mural. I'm really pleased to hear from Council Member Treegov that it's almost, you know, completed. I'd like to offer a thousand dollars

338
00:53:06.080 --> 00:53:06.810
Mark Humbert: Hmm.

339
00:53:07.100 --> 00:53:09.689
Mark Humbert: office account.

340
00:53:10.170 --> 00:53:22.689
Mark Humbert: Thank you. Council Member Blackaby for item number 29 and 30. Those are really important items. With respect to music and the Elmwood. I want to thank

341
00:53:22.870 --> 00:53:38.050
Mark Humbert: And that's item 31. I want to thank the Elmwood Business Association and all of the Elmwood merchants for their hard work on this festival. I hope someday some of our civic arts funding will be set aside for this really wonderful event.

342
00:53:38.150 --> 00:53:49.849
Mark Humbert: but it has been a privilege to be able to continue to support this this event for my office budget, and to offer some stability for another 2 years. Now, with respect to item

343
00:53:49.850 --> 00:53:59.639
Mark Humbert: 32, which is my consent. Item, reaffirmation of the sister city relationship between the city of Berkeley and the city of Palma, Soriano, Cuba.

344
00:53:59.680 --> 00:54:07.529
Mark Humbert: I'd like to thank my co-sponsors, Councilmember Blackaby, Councilmember Lunapara, and our Mayor.

345
00:54:07.710 --> 00:54:20.230

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Mark Humbert: and I want to also thank Tom Miller, Jack Kurzweil, former Mayor Tom Bates, and former Mayor and State Senator Lonnie Hancock for bringing this item to me, and for all their work on the effort.

346
00:54:20.310 --> 00:54:32.860
Mark Humbert: I know we've had a long evening, and we have more to come. So I'm going to read a very abridged 2 min version of this resolution and invite people to read it in full online to learn more about this truly great humanitarian work.

347
00:54:33.320 --> 00:54:46.489
Mark Humbert: whereas the city of Berkeley has a long and proud legacy as an international city, maintaining sister city relationships around the world that advance friendship, cultural and educational exchange and solidarity.

348
00:54:46.540 --> 00:55:05.250
Mark Humbert: and whereas the city of Berkeley established a sister city relationship with Palma Soriano on May 14, th 2,002, almost 25 years ago, whereas the city sister relationship is focused on helping Palma Soriano develop an environmentally sound, locally built clean water system

349
00:55:05.430 --> 00:55:18.150
Mark Humbert: Whereas on December 2012, then Mayor Tom Bates and then State Senator Lonnie Hancock visited Palma Soriano, and Berkeley residents and organizations have sustained this relationship over many years.

350
00:55:18.340 --> 00:55:26.629
Mark Humbert: Whereas the city of Berkeley has historically stood with communities seeking to chart their own destiny and to secure a healthy environment for their people.

351
00:55:26.750 --> 00:55:37.980
Mark Humbert: Now, therefore, it be resolved that the city reaffirms the sister city relationship between the city of Berkeley and the city of Palma, Soriano, Cuba.

352
00:55:38.180 --> 00:55:42.849
Mark Humbert: Thank you. That's that's my trimmed version. Thank you very much.

353
00:55:43.120 --> 00:55:47.610
Boardroom: Thank you very much, Councilmember Humberg. Can we go with Councilmember O'Keefe, please?

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354
00:55:48.320 --> 00:55:59.890
Boardroom: Thank you, Madam Mayor. A couple of things. First, welcome, Mary Opler. I'm very, very excited to have you on board in this very important position.

355
00:56:00.170 --> 00:56:20.000
Boardroom: I'm really grateful to have somebody so well qualified for the position, so many different experiences, bringing, bringing so many different experiences to the position. And also, you know, fortunately, we have had a very well qualified person, so thank you to, to, Director Lee for your service, and we'll have a chance to do that more formally later. But anyway, just very excited about Item 8.

356
00:56:20.440 --> 00:56:25.730
Boardroom: Item 28, the Sinbad's Voyage Restoration.

357
00:56:26.300 --> 00:56:31.010
Boardroom: I love public art, I love murals, especially when they're meaningful like that one.

358
00:56:31.200 --> 00:56:45.099
Boardroom: I almost said was, but is, as it's being restored. I… I just really want to thank, Councilmember Tragoop for bringing the item. I want to donate $500, which I thought would… would land more impressively until Humbert donated $1,000, but that's okay.

359
00:56:45.300 --> 00:57:02.909
Boardroom: Yeah, I want to donate $500 for that restoration, and I just want to say, you know, vandalism is a crime, but vandalizing art is a special kind of crime, and it's, it's real horrible that that happened. So, I really thank you so much for doing that. It's really, it's a good, opportunity for us all to, to make that gesture.

360
00:57:02.970 --> 00:57:08.419
Boardroom: And I hope it's helpful. I'd also like to donate $100 to item 27 and item 31. Sound great?

361
00:57:08.520 --> 00:57:25.359
Boardroom: of those things. And then, lastly, yeah, Councilmember Humbert already, teed me up for this. Item 37, which is the Restaurant Inspection Audit Status Report. Yeah, I was pretty dismayed to read that and to hear about it from Auditor Wong,

362

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00:57:26.250 --> 00:57:35.109
Boardroom: Yeah, I had I had sort of asked I still don't understand why the information cannot be put online and I need to understand that and actually.

363
00:57:35.380 --> 00:57:43.669
Boardroom: and also why it's taking so long. And I would actually like to publicly ask Councilmember Tregup, who is the chair of the Health Life

364
00:57:43.860 --> 00:57:54.330
Boardroom: I have to get this right, Health, Life, Enrichment, Equity, and Community Committee that I'm on and he's the chair, I would like to ask to refer that item to our next meeting, please.

365
00:57:54.330 --> 00:58:07.310
Boardroom: So that's not really an official motion, but… Done. Okay, thank you. So that's… I'm looking forward to having a conversation then to try to understand why… what's happening. Maybe we just don't understand the situation, but it seems really frustrating, and it's not acceptable.

366
00:58:07.410 --> 00:58:24.380
Boardroom: So, that's… sorry to end on a downer, but, you know, the mural, yay. I apologize for interrupting your comments. Did you… just to clarify, that's not a formal motion of the Council to refer the item? No, I'm just publicly calling for it. Okay, I think it's the Chair's discretion.

367
00:58:24.690 --> 00:58:31.719
Boardroom: Is that right? Yeah, so it's just his discretion. The committee can add an item at their next meeting if they so choose. Yes, thank you.

368
00:58:33.100 --> 00:58:39.639
Boardroom: Okay, thank you very much, Councilmember O'Keefe. We're gonna go Councilmember Kesarwani, then Bartlett, then Luna Parr.

369
00:58:40.630 --> 00:58:59.569
Boardroom: Okay, thank you very much, Madam Mayor. So, I would like to be recorded as donating $100 to the Cal Sailing Club's final 2026 open house. Thank you, Councilmember Taplin. I'd like to be recorded as donating $100 to restoring the Sinbad Voyage. Thank you, Councilmember Tregub.

370
00:58:59.570 --> 00:59:12.419

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Boardroom: And for item 31, I'd like to be recorded as donating $100 to the music in the Elmwood Festival. Thank you, Councilmember Humbert. And I also just want to wish a very warm welcome to Mary Opler.

371
00:59:12.490 --> 00:59:24.399
Boardroom: who is joining our city team as our new director of the Police Accountability Board. It's great to have a new permanent appointment to that important position. Thank you very much.

372
00:59:25.060 --> 00:59:27.719
Boardroom: Thank you very much. Councilmember Bartlett.

373
00:59:28.880 --> 00:59:40.310
Boardroom: Thank you, Madam Mayor, and, quite a few hits tonight here. I wanna first welcome again, as my colleagues have welcomed the new director of police accountability. It's been quite a search. Happy to have you aboard.

374
00:59:42.290 --> 00:59:43.640
Boardroom: The,

375
00:59:45.910 --> 01:00:01.030
Boardroom: Yes, the Cal Sailing Club would like to donate $200 to this event. And people should check this out. The Cal Sailing Club is one of two public sailing clubs in the world. And it's really top notch, and it's for everybody.

376
01:00:01.190 --> 01:00:10.080
Boardroom: $28, $200 for Mr. Turgub and your wonderful item around the Sinbad mural. Is this the dancer Sinbad, or the…

377
01:00:10.370 --> 01:00:28.969
Boardroom: the comedian, or the… the fictional character. Either way, I support it. And then, and I also thank Councilmember Blackaby for your wonderful work on, honoring Childhood Cancer Awareness Month. You know, very, very touching, very powerful. And again, reinvigorating the United Against Hate Week, Resolution 2026.

378
01:00:29.070 --> 01:00:40.279
Boardroom: And Councilor Humbert, I'd like to donate $200 to, the Music and Elmwood Festival. Come down, it's a great event. And then lastly, I'd like to recognize my colleague, Vice Mayor O'Keefe.

379
01:00:40.320 --> 01:00:58.790

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Boardroom: Your tenure, I think, ends this week as Vice Mayor, and it's, it's been really great, and you know, thank you for your service. I was Mayor for, actually, for, like, one week, when she was out of town. I wasn't literally Mayor, whatever. Yeah, I did, I signed a thing, it was great.

380
01:00:58.830 --> 01:01:01.280
Boardroom: It was a good time.

381
01:01:01.500 --> 01:01:08.989
Boardroom: Okay, thank you Councilmember Littlefarre. Clearly we've been already here been too long. Go ahead.

382
01:01:09.190 --> 01:01:24.380
Boardroom: Okay, thank you. I am very excited to welcome our new ODPA Director, Mary Opler. As part of the committee that interviewed our candidates for this role, I really enjoyed learning about Mary, their background, and their vision for police accountability in the city.

383
01:01:24.630 --> 01:01:34.699
Boardroom: On item 16, I just want to mention that I would love to have a further conversation in the future about the most effective way to combat these issues.

384
01:01:34.930 --> 01:01:44.150
Boardroom: without enforcement, especially to prevent overdoses and severe medical issues. On item 32, I want to thank Councilmember Humber for bringing this item forward.

385
01:01:44.270 --> 01:01:51.820
Boardroom: As at a time when our government is systematically starving the people of Cuba, it's important for us to reaffirm our solidarity with our sister city of Panama Soriano.

386
01:01:52.920 --> 01:02:01.780
Boardroom: On the D 13 items. I would like to give items both items 27 and 28 $500 for my discretionary fund.

387
01:02:01.870 --> 01:02:13.199
Boardroom: And on item 36, now that it's on consent, I'm grateful that the motion included the language recommended by the PAB, and I'm satisfied with the new reporting schedule, on item 13.

388
01:02:13.340 --> 01:02:14.020

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Boardroom: Thanks.

389
01:02:14.320 --> 01:02:22.769
Boardroom: Thank you. Yes, thank you to the Pab for your feedback. And also, I think, Councilmember Humbert, you were saying that you are alone now on Item 31. Is that right?

390
01:02:23.870 --> 01:02:26.340
Mark Humbert: Yes, yes, Madam Mayor, I think that's right.

391
01:02:26.340 --> 01:02:29.070
Boardroom: I'm happy to add my name as a co-sponsor as well.

392
01:02:30.040 --> 01:02:31.770
Mark Humbert: Thank you, Madam Mayor. Appreciate it.

393
01:02:31.770 --> 01:02:42.230
Boardroom: Okay, very good. Thank you all for your patience. I know we had a lot of comments this evening. We are now going to open for public comment on consent calendar or information items only.

394
01:02:42.230 --> 01:02:54.919
Boardroom: And Madam Mayor, can I confirm that we did move item 36 to consent also? Yes. I just want to make sure. Okay, so for folks who have comments… Yes. Yeah, I know we ha- I know we changed a lot of things, so… Thank you. I think before we vote, it might be helpful to read it back, yeah.

395
01:02:54.940 --> 01:02:56.750
Boardroom: Okay, go ahead, please come on up.

396
01:02:59.780 --> 01:03:06.420
Boardroom: So I'd like to point out that Celeste Marks and Steve Albert are going to donate their minutes to me. Okay, great.

397
01:03:06.800 --> 01:03:08.459
Boardroom: You will have 3 minutes.

398
01:03:08.690 --> 01:03:10.060
Boardroom: So,

399
01:03:11.420 --> 01:03:16.209

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Boardroom: So, Mayor Ishii, first I'd like to thank you for your work on the Realize Vision 2050 plan.

400
01:03:16.560 --> 01:03:20.170
Boardroom: But now I'd like to address the whole council.

401
01:03:20.290 --> 01:03:28.700
Boardroom: to let them know about the actions of one of the council members in relation to the Realize Vision 2050 plan, item 26 on the agenda tonight.

402
01:03:29.480 --> 01:03:33.560
Boardroom: Councilmember Terry Taplin was one of the project sponsors for this plan.

403
01:03:33.980 --> 01:03:38.579
Boardroom: And Ray Yep served as a task force lead.

404
01:03:38.770 --> 01:03:43.650
Boardroom: Ray wrote a letter to the council about the plan, and Councilmember Taplin responded.

405
01:03:44.260 --> 01:03:46.130
Boardroom: Ray's letter explained.

406
01:03:46.270 --> 01:03:57.870
Boardroom: Our comments are based on having been key participants on the initial Vision 2050 effort and the recent updates, and having been involved in implementing some of the recommendations in 2021 and 2022.

407
01:03:58.350 --> 01:04:10.569
Boardroom: It ended with a note that many of the task force members are available to help with the implementation. We hope that you will factor our comments into your consideration of the referral and its implementation.

408
01:04:11.130 --> 01:04:14.589
Boardroom: I was appalled at Councilmember Taplin's response.

409
01:04:14.860 --> 01:04:18.640
Boardroom: His response was in full, "Dear Ray.

410

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01:04:18.830 --> 01:04:27.460
Boardroom: I will speak entire for myself. With all due respect, it's not clear to me what you anticipate my takeaway to be from this letter.

411
01:04:28.070 --> 01:04:39.810
Boardroom: Neither do I agree with your mischaracterization of previous measures, the successes of which seem lost to you, nor am I persuaded to support the establishment of another working group. Even less so.

412
01:04:40.240 --> 01:04:43.979
Boardroom: Would I subject the city manager or public works director to such?

413
01:04:44.220 --> 01:04:45.620
Boardroom: Kind regards.

414
01:04:46.740 --> 01:04:55.409
Boardroom: Councilmember Taplin's response was dismissive and disrespectful. Ray offered his experience and his time.

415
01:04:55.910 --> 01:04:58.390
Boardroom: The council member answered with contempt.

416
01:04:58.880 --> 01:05:07.579
Boardroom: On November 12th, 2024, the City of Berkeley issued a proclamation to express our gratitude and appreciation to Ray for his expertise.

417
01:05:07.850 --> 01:05:12.190
Boardroom: generosity, and many hours of volunteer contributions to the City of Berkeley.

418
01:05:13.100 --> 01:05:26.050
Boardroom: If this is how Councilmember Toplin treats an honored member of the Realize Vision 2050 Task Force who helped build the very plan the Councilmember sponsored, I can only imagine how he treats constituents who disagree with him.

419
01:05:26.800 --> 01:05:30.669
Boardroom: How much longer must Berkeley residents have to put up with this sort of behavior?

420
01:05:31.280 --> 01:05:38.390

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Boardroom: Councilmember Taplin should be stripped of any leadership positions and censured in the strongest possible terms. Thank you.

421
01:05:48.460 --> 01:05:50.310
Boardroom: Councilmember Taplin, did you?

422
01:05:50.510 --> 01:05:53.240
Boardroom: Yeah. I would like to respond.

423
01:05:55.010 --> 01:05:57.880
Boardroom: I am actually allowed to disagree with people who write to us.

424
01:05:58.900 --> 01:06:00.689
Boardroom: You've read part of Ray's letter.

425
01:06:00.890 --> 01:06:02.880
Boardroom: I was responding to part of Ray's letter

426
01:06:03.180 --> 01:06:06.999
Boardroom: And I am allowed to disagree and voice that.

427
01:06:10.460 --> 01:06:14.200
Boardroom: You're not allowed to meet this restriction. Thank you. Okay.

428
01:06:22.290 --> 01:06:39.980
Boardroom: I also have a minute from Carol Morozovic, and one from Julie Dickey, so that gives me 3. Thank you. Thank you both. Okay. I'll start by, saying that I am a member of the Open Government Commission. I'm not speaking on behalf of the Open Government Commission, but I am going to address the fact that the item 13 was on consent to begin with.

429
01:06:39.980 --> 01:06:48.879
Boardroom: It, it does concern a matter that reports that are required to be made to the full council. So to me it was sort of like, well, why isn't this changed to that?

430
01:06:49.060 --> 01:06:58.949
Boardroom: Excuse me, the reports are required to be made to the action calendar, so to me it's like, well, why isn't this item also on the action calendar, but at any rate.

431
01:06:58.950 --> 01:07:13.780

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Boardroom: I'm pleased with what I think I understood as the way in which you're changing it, although two people sitting near me who planned to speak on this did not follow that, and now it's on consent, and I couldn't explain it to them without talking over you to explain it to them. I'm really…

432
01:07:13.780 --> 01:07:24.470
Boardroom: Still not so happy. I understand you want to keep the meeting short, but I really think that something like this should be on action where, and that's where changes are to be made are on action.

433
01:07:24.480 --> 01:07:30.949
Boardroom: But let me speak to what I think it is, and then maybe I've got it, maybe I don't.

434
01:07:30.950 --> 01:07:46.390
Boardroom: So the surveillance technology report covers many different kinds of technology. It covers the license plate readers, but also GPS tracking devices, the fixed surveillance video cameras, parking enforcement cameras, and many other things.

435
01:07:46.390 --> 01:07:57.099
Boardroom: It is very important for you, the Council, to see that entire report and the audits and so forth that come with it before you go to.

436
01:07:57.160 --> 01:08:13.599
Boardroom: potentially invest in even more types of surveillance, you need to be looking at the reports of the surveillance you're already getting. So, if I understand correctly, you will now get that report in November, as originally scheduled.

437
01:08:13.600 --> 01:08:26.610
Boardroom: If I understand correctly, the next report won't come until 16 months after that instead of one year to come in March. That's what I think you're doing with the change.

438
01:08:26.660 --> 01:08:34.980
Boardroom: But as I said, I really, I know, as I said, I know you like to keep things short, but

439
01:08:35.189 --> 01:08:45.769
Boardroom: Consent is really meant for things that don't require changes, so this is rather confusing to people, and as I said, I've… other folks would not follow it. I don't know if they can hear me well enough to follow it now.

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440
01:08:46.000 --> 01:08:53.160
Boardroom: But, I'm… it is really, really important that you… that you get the full report. I'm glad to see that that

441
01:08:53.180 --> 01:09:04.219
Boardroom: If that is what's going to happen, you will get the full report. I mean, I would have been just as happy if you said, well, we'll wait until after we get the report in March to make any decisions about buying more stuff.

442
01:09:04.220 --> 01:09:14.060
Boardroom: But, but it is really important that you get the full report with all parts of it. Thank you. Thanks, Kit. Yeah, that, your understanding is correct. So we will be getting the report as scheduled in November.

443
01:09:14.149 --> 01:09:14.830
Boardroom: Yeah.

444
01:09:16.350 --> 01:09:20.399
Boardroom: Before I start, I believe I have a few minutes that were ceded to me.

445
01:09:20.609 --> 01:09:28.460
Boardroom: Two in the back. Are there two other people who can see me there? The minutes, please? You can get a total of… you can get one more person? One more.

446
01:09:29.750 --> 01:09:42.859
Boardroom: Is there one more person who will — OK. Thank you. There you go. You'll have a total of four. So also, before I start my time, I've sent the full context of my comment to the council. This counts towards your time, but go ahead. All right.

447
01:09:44.310 --> 01:09:55.779
Boardroom: So I want to make a comment on item 16. That's the Alcohol Policing Partnership Grant. My name is Tasha Baptiste. I'm a Berkeley native, a District 7 commission on the Disaster and Fire Safety Commission.

448
01:09:56.030 --> 01:10:01.119
Boardroom: District 5 representative on the Community Health Commission, and I've worked as an EMT.

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449
01:10:01.470 --> 01:10:15.779
Boardroom: Tonight I'm speaking only for myself, not for any of these commissions. I'm not here to oppose item 16. Underage drinking in the South Side is a real problem. I'm here because this staff report describes a public health problem, and then funds only one department's response to it.

450
01:10:16.020 --> 01:10:25.419
Boardroom: Look at what staff wrote. BPD has responded — that's Berkeley Police Department has responded to more than 1,800 calls on the 2,400 to 2,600 blocks of Durant.

451
01:10:25.540 --> 01:10:29.349
Boardroom: And the 2300 to 2500 blocks of Telegraph.

452
01:10:29.690 --> 01:10:47.300
Boardroom: Cal Day and Welcome Week bring, quote, large spikes of underage alcohol consumption and alcohol-related medical emergencies, end quote. The city risks, quote, strain on public safety resources, and the answer in staff's words is a comprehensive data-driven initiative that combines targeted enforcement, education, and community collaboration.

453
01:10:47.390 --> 01:10:56.309
Boardroom: I agree with every one of these sentences, but the report counts only police calls. It never mentions the Berkeley Fire Department, the agency that actually responds to these medical emergencies.

454
01:10:58.200 --> 01:11:12.310
Boardroom: Here's what one of those calls looks like. A student calls 911 because a friend won't wake up or can't stand. Berkeley Fire sends an engine and an ambulance. Most of these patients are low acuity. They need to be assessed, monitored, and kept safe while they sober up.

455
01:11:12.310 --> 01:11:27.970
Boardroom: But in our current system, many are transported to the Alta Bates Emergency Department, where the ambulance waits to hand off the patient. On a Friday night during welcome week, that's a fire company gone from one of the densest neighborhoods in the city, and an ambulance unavailable for the next cardiac arrest or other high acuity incident.

456
01:11:27.970 --> 01:11:32.719
Boardroom: Berkeley taxpayers fund that response in part through Measure FF, and none of it appears in this report.

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457
01:11:32.780 --> 01:11:36.760
Boardroom: A data-driven initiative has to include the department carrying the medical load.

458
01:11:36.930 --> 01:11:47.129
Boardroom: My second concern is a safety issue. The report describes an enforcement operation during Cal Day, one of two operations that together produced 84 citations and arrests. Enforcement has its place.

459
01:11:47.210 --> 01:11:57.969
Boardroom: But when students see heavy enforcement, the person most likely to hesitate is a 19-year-old deciding whether to call 911 for a friend who's passed out. That hesitation is how a low-acuity call becomes a fatal one.

460
01:11:59.120 --> 01:12:10.180
Boardroom: California already addresses this. Business and Professions Code Section 25667 protects anyone under 21 from minor and possession charges when they're the first to call 911 for an alcohol emergency in…

461
01:12:10.350 --> 01:12:24.910
Boardroom: and stay with the person until help arrives. UC Berkeley has its own responsible bystander policy, but most students don't know whether one exists. This grant includes an education component that education should tell young people clearly that calling for help is protected.

462
01:12:26.420 --> 01:12:35.609
Boardroom: Third, the community collaboration this report promises should include the people already doing this work. University Health Services runs Party Safe at Cal, which trains party hosts and sober monitors.

463
01:12:35.640 --> 01:12:51.180
Boardroom: Greeks against sexual assault, trans bystanders in Greek housing, while alcohol and assault risk overlap. In March of this year, the Disaster and Fire Safety Commission initiated an ad hoc committee to study the renewal of a low acuity medical response unit that was previously terminated by city administrators for lack of funding.

464
01:12:51.620 --> 01:13:05.229
Boardroom: In April this year, recognizing that Berkeley lacks sufficient public health resources that respond to the widening social safety net gap, the Community Health Commission considered a recommendation for BEAR 2.0, a low-acuity medical and behavioral response unit built for calls like these.

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465
01:13:06.050 --> 01:13:14.850
Boardroom: BEAR is currently paused due to funding. Other UC campuses are ahead of us. UC Davis Fire's Health 34 program handles non-emergency medical needs.

466
01:13:15.260 --> 01:13:21.080
Boardroom: on campus with phone triage and follow-up instead of an engine and a transport. So I'm asking council for three things tonight.

467
01:13:21.290 --> 01:13:39.820
Boardroom: And all of them fit alongside competing… accepting this grant. First, direct staff, in and out of accordance with HIPAA law, report Berkeley Fire's EMS response data for these same blocks and event dates along with BPD's calls for service. Second, ask that the grant's education component be coordinated with University Health Services and Party Safe, so it covers when and how to call for help and protections.

468
01:13:39.820 --> 01:13:50.289
Boardroom: Thank you. My last third point. No, I'm really sorry. You know, I'm super strict about time, but thank you for your comment. And and, Mr. City manager, if maybe we can touch base about this later. Thank you.

469
01:13:50.420 --> 01:13:51.120
Boardroom: Yes.

470
01:13:55.290 --> 01:14:11.080
Boardroom: Okay, I'm Tom Yamaguchi, District 2, and I want to share Igor's enthusiasm for 18, the Alameda County Transportation Commission grant that we're hopefully going to get.

471
01:14:11.320 --> 01:14:21.890
Boardroom: Or at least we're applying for. I was really happy to hear this when this was brought before the Transportation and Infrastructure Committee. I am cyclist to

472
01:14:22.040 --> 01:14:24.110
Boardroom: Broncos intersection.

473
01:14:24.200 --> 01:14:39.980
Boardroom: well or that street Sacramento Street very frequently on the street I live with Channing and also especially excited about

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improvements to further down Russell. There's also a bicycle boulevard and it's just like four lanes of high-speed traffic.

474
01:14:39.980 --> 01:14:48.130
Boardroom: and very little protection for cyclists and pedestrians. So I hope we can get this granted. Thank you for your support. Thanks.

475
01:14:48.700 --> 01:14:49.730
Boardroom: Thank you, Tom.

476
01:14:54.760 --> 01:15:00.000
Boardroom: Speaking of City Auditor Jenny Wong, she has, I was…

477
01:15:00.240 --> 01:15:11.469
Boardroom: Helpful environmental thing going called on Instagram. We got Instagram called Bring a Char. Check that one out. As far as sister cities go.

478
01:15:11.810 --> 01:15:19.730
Boardroom: I think it's very important that before it's destroyed completely, perhaps Gaza City might be

479
01:15:20.120 --> 01:15:24.070
Boardroom: used as a sister city.

480
01:15:24.300 --> 01:15:30.499
Boardroom: Cuba is being wrecked by the United States administration, and…

481
01:15:30.590 --> 01:15:46.219
Boardroom: Gaza City is almost totally destroyed right now. 90% of the buildings are down. It's a horrible situation there. So if we want to extend a real sister city thing, I think Gaza City.

482
01:15:46.270 --> 01:15:50.910
Boardroom: Would be a terrific example. And the technology.

483
01:15:51.660 --> 01:15:57.809
Boardroom: Surveillance, a lot of it goes back directly or indirectly to this Zionist entity, so check that out, please.

484
01:15:57.950 --> 01:15:59.510

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Boardroom: Thank you.

485
01:16:04.100 --> 01:16:07.969
Boardroom: Well, we have three of us. We're only going to take one minute.

486
01:16:08.170 --> 01:16:16.470
Boardroom: We want to thank all of you, and especially Councilmember Humbert and the co-authors.

487
01:16:16.590 --> 01:16:24.050
Boardroom: for honoring Berkeley's long and important tradition of citizen diplomacy.

488
01:16:24.220 --> 01:16:29.160
Boardroom: We, tom and I, and…

489
01:16:29.330 --> 01:16:46.419
Boardroom: Tom Miller, who's here, have all been to visit our sister city in Cuba. We're thrilled that the Cal graduate student who developed the water system for that little community is ready to come back as a professional and put it to work.

490
01:16:46.570 --> 01:16:51.529
Boardroom: And make a difference in people's lives. So, thank you all.

491
01:16:52.130 --> 01:16:54.310
Boardroom: So…

492
01:16:54.420 --> 01:17:03.319
Boardroom: So very briefly, again, we think it's very important to reestablish this sister city relationship. It's been on hold.

493
01:17:03.320 --> 01:17:15.889
Boardroom: And God knows there's been all kinds of problems that Cuba's been facing, like this blockade that's going on, so they've been suffering, but where we feel like Berkeley, extending ourselves again to, to, to Syria, Iran.

494
01:17:15.890 --> 01:17:25.749
Boardroom: will be really important and also the project that we're going to be working on which is to help them get clean water as it really is essential things for the city.

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495
01:17:26.460 --> 01:17:28.370
Boardroom: Thank you very much.

496
01:17:28.930 --> 01:17:43.480
Boardroom: I just want to thank the City Council for their support, anticipated support on this resolution. I'm Tom Miller, head of Green Cities Fund, and have been involved in the Clean Water Project for a number of years, so thanks, and

497
01:17:43.760 --> 01:17:59.110
Boardroom: I'm keeping my fingers crossed. I hope you pass it. So Tom actually has this Clean Cities program, which is a foundation that he's set up that is actually going to be funding our efforts in Seriano. So it should be good.

498
01:17:59.740 --> 01:18:09.419
Boardroom: Thank you. Thank you very much to all three of you, and just to acknowledge to our former mayors as well, so thank you very much. Yes.

499
01:18:09.500 --> 01:18:21.520
Boardroom: Okay, on… Item 6, this is our bid solicitation. For $17,500,000 on the parking garage.

500
01:18:21.550 --> 01:18:38.629
Boardroom: And it's on… on consent. And even though this is over 5 years, and it's $3.5 million per year, I think that when you talk about our budget deficit, we deserve more than just a couple of lines on why we're spending $3.5 million.

501
01:18:38.710 --> 01:18:41.890
Boardroom: On our garage… management.

502
01:18:42.090 --> 01:18:50.199
Boardroom: Next I'd like to go to item 21, which was pulled, and this is on the window replacement.

503
01:18:50.200 --> 01:19:04.389
Boardroom: I believe that it was this building that an employee came to a commission in 2018 to ask for bird-safe glass, because there were two bird-glass collisions to that building.

504
01:19:04.600 --> 01:19:14.989

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Boardroom: It took us 5 years to get that ordinance passed through Council, and I would ask that we have bird-safe glass for that building when the windows are replaced. Thank you.

505
01:19:19.600 --> 01:19:38.240
Boardroom: And is anyone willing to give me one more minute? Okay. Wait. So I got one more minute, and I would ask that everything on surveillance really deserves discussion and action. And so I am disappointed that 13 and 36

506
01:19:38.360 --> 01:19:48.130
Boardroom: have been moved to consent, and there will be no discussion of these items. In the environment that we live in, and what's happening with our federal government.

507
01:19:49.090 --> 01:19:51.180
Boardroom: And the news media.

508
01:19:52.120 --> 01:20:05.010
Boardroom: I really believe that every single little item, which you may consider little, since it's sitting on consent, but to many of us here, anything on surveillance is a big deal.

509
01:20:05.130 --> 01:20:10.230
Boardroom: And it deserves discussion and comment, and a thorough review. Thank you.

510
01:20:11.450 --> 01:20:12.490
Boardroom: Thank you.

511
01:20:16.290 --> 01:20:22.069
Boardroom: Hello, Berkeley City Council. Quick comment on item 26. I'm very confused why we have

512
01:20:22.510 --> 01:20:30.989
Boardroom: This item that requires a strategic asset management plan be created when we have a 300 million dollar infrastructure

513
01:20:31.180 --> 01:20:39.869
Boardroom: bond in front of the voters in November, it seems like something's backwards. Seems like this should have happened before you put $300 million on the ballot.

514

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01:20:40.270 --> 01:20:46.440
Boardroom: The other item I want to mention is 3 members of our community worked very diligently and very,

515
01:20:46.920 --> 01:20:53.460
Boardroom: carefully on creating that vision 2050, and they were incredibly disrespected by a member of your body.

516
01:20:53.610 --> 01:21:05.480
Boardroom: And it was really appalling, the way these three people were treated. Ray Yep, Margo Schuler, and Larry Henry. And so I want to get it on the record that it was disgusting, the way a member of this body

517
01:21:05.500 --> 01:21:16.550
Boardroom: treated people who have given their time to a commission, and over years dedicated their time to the city of Berkeley. So I want to make that note. Thank you.

518
01:21:19.800 --> 01:21:23.569
Boardroom: Thank you. Any other public comment in person?

519
01:21:23.810 --> 01:21:37.040
Boardroom: All right, there are a couple hands online. All right, moving to our online speakers. Our first speaker is the caller with the number ending in 211. Caller, you should be able to unmute.

520
01:21:38.330 --> 01:21:40.990
1510****211: Hi, yeah, I have a really problem.

521
01:21:41.220 --> 01:21:45.499
1510****211: was, I'm 16 and 17.

522
01:21:45.730 --> 01:21:52.920
1510****211: You know, since you approved the alcohol on Telegraph or downtown Berkeley, now all of their shops are… 80% of their shelf have alcohol.

523
01:21:53.050 --> 01:21:56.900
1510****211: We have our own kids. We'll have… People who have students.

524
01:21:57.550 --> 01:21:59.579
1510****211: Alcohol destroys the brain.

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525
01:21:59.880 --> 01:22:06.700
1510****211: In 18, this… Cannabis, marijuana, what one would call it during my EC golden years.

526
01:22:06.820 --> 01:22:10.969
1510****211: A lot of students, a lot of my classmates got hooked on marijuana and dropped out.

527
01:22:11.530 --> 01:22:12.820
1510****211: This is poison.

528
01:22:12.990 --> 01:22:19.209
1510****211: Help us to create a great country, so we don't have somebody else like Trump ruining the country as we know it.

529
01:22:19.470 --> 01:22:27.630
1510****211: I don't know what you can do, but hopefully you can at least control alcohol and pot, as we called it in the good old days.

530
01:22:28.220 --> 01:22:31.280
1510****211: Thank you, and I will call you later on.

531
01:22:31.890 --> 01:22:33.090
Boardroom: Thank you.

532
01:22:33.960 --> 01:22:37.290
Boardroom: Our next speaker is Shreyas Chand.

533
01:22:37.720 --> 01:22:40.060
Boardroom: Apologies about the pronunciation.

534
01:22:40.320 --> 01:22:55.149
Shreyas Chand - CSC Commodore: No problem. Thank you so much for the recognition. My name is Shreyas, I'm the Commodore for the Cal Sailing Club, and I just wanted to, thank all the council members and the mayor for the recognition of, Cal Sailing Club's, open house program. We offer 7 of these.

535
01:22:55.150 --> 01:23:10.829
Shreyas Chand - CSC Commodore: 6 to 7 of these every year. Our upcoming one on Sunday. Would love to have you all there, and I really appreciate

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the recognition for the low and no-cost access to sailing that we're able to provide, and for all of your support of our

536
01:23:11.010 --> 01:23:12.830
Shreyas Chand - CSC Commodore: Mission. Thank you so much.

537
01:23:13.590 --> 01:23:14.909
Boardroom: Thank you, Commodore.

538
01:23:16.950 --> 01:23:19.770
Boardroom: Next speaker is Zach Goldberg.

539
01:23:21.930 --> 01:23:23.440
Zak Goldberg: Hello, can you guys hear me?

540
01:23:24.180 --> 01:23:25.300
Boardroom: Yes, we can hear you.

541
01:23:25.540 --> 01:23:44.689
Zak Goldberg: Awesome. I just moved to Berkeley, and this is actually my first, City Council meeting, so I'm excited to be here virtually. I just wanted to give a quick support for item 34, for the adoption of the new zoning on San Pablo Avenue. As a young person moving into the city, I think it's…

542
01:23:44.690 --> 01:23:54.520
Boardroom: Zach, I'm so sorry. I know you're welcome to the city and we are actually on comment period for consent calendar and information items only.

543
01:23:54.520 --> 01:23:55.060
Zak Goldberg: Okay.

544
01:23:55.060 --> 01:24:00.880
Boardroom: I'll come to give your public comment on item 34 a bit later when we're looking at that item.

545
01:24:00.880 --> 01:24:02.130
Zak Goldberg: Okay, sounds good.

546
01:24:02.130 --> 01:24:03.090
Boardroom: Thank you.

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547
01:24:05.590 --> 01:24:10.500
Boardroom: All right. Next up is Cheryl Davila, former council member.

548
01:24:19.830 --> 01:24:24.510
Boardroom: Next speaker is Cheryl Davila. Cheryl, you should be able to unmute.

549
01:24:34.570 --> 01:24:36.690
Boardroom: All right, one more time.

550
01:24:36.880 --> 01:24:39.750
Boardroom: Our last speaker is Cheryl Davila.

551
01:24:40.890 --> 01:24:47.139
Boardroom: And Cheryl, you have been… Allowed to speak if you'd like to unmute and provide your comments.

552
01:24:56.660 --> 01:25:11.460
Boardroom: All right, it does not appear as though Cheryl's going to give comments at this time, but there will be another period at the end of the meeting for non-agenda public comments for anyone who's interested, and who hasn't already spoken. Thank you, I see someone here in person, yeah.

553
01:25:14.820 --> 01:25:20.470
Boardroom: Oh, I'm speaking about, 26. Is that okay? Thank you.

554
01:25:20.950 --> 01:25:27.530
Boardroom: I just want to mention about the plan for cycle tracks on both sides of San Pablo.

555
01:25:27.950 --> 01:25:34.470
Boardroom: And, I find the barrier cycle tracks are not safe, and…

556
01:25:34.710 --> 01:25:42.269
Boardroom: I have heard from my council member that no one has heard about any dangers from, barriered cycle tracks.

557
01:25:42.550 --> 01:25:44.120
Boardroom: And I asked the.

558

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01:25:44.880 --> 01:25:46.869
Boardroom: I'll walk by Berkeley.

559
01:25:47.000 --> 01:25:51.859
Boardroom: Advocate, if he has, and he tells me they're, they're very safe.

560
01:25:52.000 --> 01:25:53.890
Boardroom: But when I asked him if.

561
01:25:54.210 --> 01:26:01.510
Boardroom: they would prevent… have it prevented the fatality on Hopkins, he said he couldn't answer that question.

562
01:26:01.790 --> 01:26:17.800
Boardroom: And he did say that they were not safe if there were lots of driveways, but there would be some design mitigations about that. And so I think that we need to bring it to Council's attention that they are not safe. And if they are like the ones on Milvia, where I had my accident.

563
01:26:18.710 --> 01:26:20.290
Boardroom: Thank you. Thanks.

564
01:26:21.080 --> 01:26:22.080
Boardroom: Okay.

565
01:26:22.240 --> 01:26:32.770
Boardroom: All right. Is there a motion to approve the consent calendar? Actually, can we, Rose, do you mind reading through? We have made so many changes this evening. I just want to make sure it's clear. Certainly.

566
01:26:33.110 --> 01:26:35.540
Boardroom: All right, so…

567
01:26:35.890 --> 01:26:48.540
Boardroom: We've added two urgency items from the mayor, one regarding resolution in support of Prop 1, and the other resolution to oppose Proposition 43, both having to do with voter rights.

568
01:26:51.590 --> 01:26:58.969
Boardroom: And… item 13, the ordinance regarding,

569

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01:26:59.650 --> 01:27:09.329
Boardroom: amending Bmc. Chapter 2.9 9 and surveillance technology. There's been a revision to the ordinance to add reporting language.

570
01:27:11.310 --> 01:27:19.770
Boardroom: Item 21 contract regarding window replacement project. That item was removed by the city manager.

571
01:27:22.570 --> 01:27:39.700
Boardroom: And then there have been some various relinquishments of funds and co-sponsors on item 27, Cal Sailing, item 28, Mural Restoration, item 31, Music in the Elmwood.

572
01:27:40.340 --> 01:27:52.620
Boardroom: And… Last but not least, item 36, which was on the action calendar regarding surveillance technology ordinance submission.

573
01:27:52.620 --> 01:28:07.880
Boardroom: That was moved to consent, and language was added to the ordinance to add language from the STO regarding audit requirements to the policy.

574
01:28:10.070 --> 01:28:11.700
Boardroom: And… that was it.

575
01:28:12.270 --> 01:28:18.180
Boardroom: Thank you, Rose, appreciate you doing that. Is there a motion to approve the consent calendar? So moved. Second.

576
01:28:18.480 --> 01:28:25.600
Boardroom: All right. Can we take the role on that, please? All right. To adopt the consent calendar as amended. Councilmember Kesarwani.

577
01:28:25.770 --> 01:28:36.380
Boardroom: Yes. Taplin? Aye. Bartlett? Yes. Tragup? Aye. O'Keefe? Yes. Blackaby? Yes. Luna Parra? Yes. Humbert?

578
01:28:36.380 --> 01:28:37.130
Mark Humbert: Yes.

579
01:28:37.520 --> 01:28:39.160
Boardroom: And Mayor Ishii, yes.

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580
01:28:39.610 --> 01:28:45.440
Boardroom: Thank you. All right. Thank you all so much. We're going to take a quick well.

581
01:28:45.610 --> 01:28:49.260
Boardroom: 732. I'm gonna give us 15 minutes, actually, because…

582
01:28:49.410 --> 01:28:51.930
Boardroom: Yeah, we're going to have a 15-minute break. Thank you.

583
01:28:56.470 --> 01:29:22.310
Boardroom: Okay, thank you so much everybody for your patience. If you could Please come sit down.

584
01:29:24.010 --> 01:29:29.200
Boardroom: Please take your seats. You can take your conversations outside.

585
01:29:29.350 --> 01:29:43.469
Boardroom: All right, we are moving on to the action calendar. We have a number of public hearings this evening, starting with item number 33, which is the California Municipal Finance Authority Bond Financing for Ashby Lofts Project from the City Manager.

586
01:29:45.300 --> 01:29:52.620
Boardroom: We actually don't have a presentation, Madam Mayor, but if there's questions, our HHCS director is here, as is our

587
01:29:52.740 --> 01:29:55.260
Boardroom: Manager of Housing and Community Services, Marco Ernst.

588
01:29:56.140 --> 01:29:58.629
Boardroom: Thank you so much. Are there any questions?

589
01:30:00.390 --> 01:30:05.739
Boardroom: No questions. Okay, is there a motion to close the public hearing?

590
01:30:06.970 --> 01:30:16.630
Boardroom: Let's officially announce it's open, and then we'll see if we have any hands. It is officially open. Thank you, Mayor. Public hearing.

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591
01:30:17.210 --> 01:30:21.790
Boardroom: But as there are no questions, is there a motion to close the public hearing?

592
01:30:22.670 --> 01:30:24.100
Boardroom: So.

593
01:30:25.120 --> 01:30:29.669
Boardroom: Oh. Yeah, that's… Sorry?

594
01:30:30.180 --> 01:30:49.789
Boardroom: Yes, this is the public comment period. The public hearing is now open. If there are no speakers on this item, then we can go ahead and move forward with closing the public hearing. If you'd like to, we are on item 33, the California Municipal Finance Authority Bond Financing for Ashby Lofts Project.

595
01:30:51.230 --> 01:30:54.359
Boardroom: So if there is someone to speak to this item, please come forward.

596
01:31:00.030 --> 01:31:08.469
Boardroom: Hi, I'm Leah Simon-Weisberg from District 2. I'm also on the Housing Advisory Commission. I think this is a great item. Please vote yes.

597
01:31:09.070 --> 01:31:18.179
Boardroom: Thank you very much. Apologies, I'm getting ahead of myself. Alright, so, now, are there any other public comments on this item, item number 33? Anyone online?

598
01:31:18.510 --> 01:31:22.600
Boardroom: There are no hands raised online from members of the public.

599
01:31:22.760 --> 01:31:24.120
Boardroom: Okay.

600
01:31:24.490 --> 01:31:30.070
Boardroom: Oh, you have a public comment on this item? Yeah, I do. Item number 33, correct?

601
01:31:30.290 --> 01:31:32.199

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Boardroom: Yes. Yes. Yeah.

602
01:31:32.320 --> 01:31:35.139
Boardroom: Ashby. What's it called?

603
01:31:35.570 --> 01:31:36.610
Boardroom: Lofts.

604
01:31:37.110 --> 01:31:42.269
Boardroom: Yes, I don't know anything about it, because I didn't look at the agenda, but, you know…

605
01:31:42.400 --> 01:31:49.739
Boardroom: I'm here because Maji is running. So, let's get a new representative in District 4.

606
01:31:50.380 --> 01:31:51.380
Boardroom: Thank you.

607
01:31:51.800 --> 01:31:53.610
Boardroom: And free Palestine.

608
01:31:54.080 --> 01:32:02.179
Boardroom: All right. And I actually have a statement I need to read as well. But should I read it now?

609
01:32:02.660 --> 01:32:11.029
Boardroom: Yeah, I'll read it out. Okay. We are here this evening to conduct a public hearing pursuant to the Federal Tax Equity and Fiscal Responsibility Act, or TEFRA.

610
01:32:11.050 --> 01:32:22.679
Boardroom: Tefer requires that a public hearing be held by the governing body of the jurisdiction in which a project to be financed with tax exempt financing is located, and that the governing body approve the proposed financing.

611
01:32:22.690 --> 01:32:44.380
Boardroom: Satellite Affordable Housing Associates has asked that the California Municipal Finance Authority, the CMFA, be the issuer of tax-exempt financing in an amount not to exceed $25 million of tax-exempt revenue bonds to finance and refinance the acquisition, rehabilitation,

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improvement, and equipping of a 54-unit qualified residential rental project.

612
01:32:44.380 --> 01:32:46.230
Boardroom: The project.

613
01:32:46.490 --> 01:32:54.899
Boardroom: To be owned and operated by the borrower and located at 2909-2919 Ninth Street within the city of Berkeley.

614
01:32:54.900 --> 01:33:09.609
Boardroom: The city, the California Municipal Finance Authority, CMFA, is a joint powers authority formed to assist local governments, nonprofit organizations, and businesses with the issuance of both taxable and tax-exempt debt.

615
01:33:09.610 --> 01:33:23.019
Boardroom: The debt to be issued by the CMFA will be the sole responsibility of the borrower, and the City will have no financial or legal obligations or responsibilities regarding the repayment of the debt. All financing documents will carry disclaimers that the loan is not

616
01:33:23.020 --> 01:33:38.299
Boardroom: and the obligation of the City. The City will also bear no costs in the issuance of the proposed debt. This is a private loan with the borrower and their bank. It is recommended that the City Council adopt a resolution approving the issuance of bonds by the CMFA for the borrower.

617
01:33:38.300 --> 01:33:47.570
Boardroom: Such adoption is solely for the purposes of satisfying the requirements of Tefra, the Code, and the California Government Code Section 6500.

618
01:33:47.720 --> 01:33:48.510
Boardroom: Okay.

619
01:33:48.860 --> 01:33:52.999
Boardroom: Now, is there a motion to close the public hearing?

620
01:33:53.330 --> 01:33:54.890
Boardroom: So second.

621

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01:33:55.210 --> 01:34:08.970
Boardroom: Can we take the roll on that, please? To close the public hearing, Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Tragop? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert?

622
01:34:08.970 --> 01:34:09.710
Mark Humbert: Yes.

623
01:34:10.050 --> 01:34:12.469
Boardroom: Mayor Ishi. Yes.

624
01:34:12.920 --> 01:34:15.710
Boardroom: Okay, any comments on this item.

625
01:34:18.130 --> 01:34:21.390
Boardroom: Okay… None. No comments.

626
01:34:21.940 --> 01:34:24.339
Boardroom: Is there a motion to approve?

627
01:34:24.750 --> 01:34:25.740
Boardroom: So moved.

628
01:34:26.400 --> 01:34:28.310
Boardroom: Is there a second? Second.

629
01:34:29.010 --> 01:34:43.249
Boardroom: Can we take the roll on that, please? Okay. To approve the item, Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Tragab? Aye. O'Keefe? Yes. Blackaby? Yes. Munapara? Yes. Humbert?

630
01:34:43.580 --> 01:34:44.410
Mark Humbert: Yes.

631
01:34:44.410 --> 01:34:46.720
Boardroom: And Mayor Ishii? Yes.

632
01:34:47.280 --> 01:34:54.880
Boardroom: Okay, thank you very much. We are going to open the public hearing for item 34, which is the adoption of the San Pablo Avenue specific plan.

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633
01:34:54.990 --> 01:34:58.170
Boardroom: And we will start us off with the presentation.

634
01:34:59.280 --> 01:35:11.760
Boardroom: And just to preview folks as they are settling in, we'll have a presentation, then we will take questions from Council, then we will do public comment, then we will take Council comments, and any deliberations. Thank you.

635
01:35:23.970 --> 01:35:32.890
Boardroom: Good evening, Mayor Ishii and Council Members. I'm Jordan Klein, I'm Director of Planning and Development. I'm joined here at the staff table by Justin Horner, Principal Planner.

636
01:35:33.550 --> 01:35:39.609
Boardroom: Phil Erickson with community design and architecture, and Anne Hirsch, the land use planning manager.

637
01:35:40.510 --> 01:35:50.050
Boardroom: We're so pleased this evening to be advancing for your consideration the San Pablo Avenue specific plan, which is the culmination of a three-year community planning process.

638
01:35:50.500 --> 01:36:05.140
Boardroom: San Pablo Avenue is one of Berkeley's most important streets. It runs about 2 and 1/3 miles through the length of the city, connecting neighborhoods, connecting the city to neighboring cities and to the East Bay region.

639
01:36:05.430 --> 01:36:23.180
Boardroom: It's home to long-time local businesses, cultural institutions, and the people who live and work along it. It's also been shifting over the past decade, away from an auto-oriented pattern of commercial and light industrial uses, and toward a more vibrant mixed-use district.

640
01:36:23.440 --> 01:36:31.469
Boardroom: And this plan is about shaping that change as we go forward so that it works for the people who are here now and for the people who will come.

641
01:36:32.740 --> 01:36:50.539
Boardroom: The plan reflects visioning, technical analysis, and a great deal of community engagement, including open houses, community workshops,

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a walking tour of the corridor, and two community surveys. The Planning Commission received four status updates, and the City Council gave us direction at a work session in November of 2025.

642
01:36:50.540 --> 01:36:54.149
Boardroom: And the Planning Commission made its recommendation to you in June of this year.

643
01:36:54.950 --> 01:37:04.329
Boardroom: The plan sets out a vision based on three ideas. First, more housing, including affordable housing along a corridor well served by transit.

644
01:37:04.710 --> 01:37:15.469
Boardroom: Second, support for small businesses through more flexible zoning and programs and design standards that help fill ground floor spaces and keep the corridor active and vibrant.

645
01:37:15.700 --> 01:37:23.400
Boardroom: And third, great public spaces, wider sidewalks, more trees, safer crossings, and places to gather.

646
01:37:23.600 --> 01:37:34.900
Boardroom: Tonight, we're asking City Council to adopt the specific plan and its design standards, along with the related general plan and zoning amendments. And with that, I will turn it over to Justin Horner for the presentation.

647
01:37:35.720 --> 01:37:37.110
Boardroom: Thank you, Jordan.

648
01:37:38.930 --> 01:37:40.090
Boardroom: Let's see.

649
01:37:44.830 --> 01:37:48.080
Boardroom: Yes, thank you for the intro.

650
01:37:56.280 --> 01:37:57.309
Boardroom: Am I sharing?

651
01:37:58.150 --> 01:37:59.460
Boardroom: Successfully sharing.

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652
01:38:00.600 --> 01:38:01.519
Boardroom: It was terrible.

653
01:38:04.060 --> 01:38:08.290
Boardroom: Justin is pulling up some slides for us. Sorry.

654
01:38:15.060 --> 01:38:17.189
Boardroom: There we are. Thank you for your patience.

655
01:38:18.510 --> 01:38:30.520
Boardroom: Mayor Ishii, members of the City Council, Justin Horner, Planning Department staff, and tonight I'm presenting the San Pablo Avenue Specific Plan, and its accompanying zoning, general plan, and other plan amendments.

656
01:38:31.810 --> 01:38:48.920
Boardroom: Tonight, I will briefly review the specific plan's goal and our outreach and engagement process. I will then review the specific plan's chapters, including the new San Pablo Commercial Zoning District. I'll describe the other plan documents that are amended as part of adoption of the specific plan.

657
01:38:48.920 --> 01:38:53.320
Boardroom: And we'll briefly discuss the CEQA analysis before presenting the staff recommendation.

658
01:38:55.410 --> 01:39:06.659
Boardroom: The agenda packet for tonight's meeting includes a lot of items. You are being asked to adopt the San Pablo Specific Plan itself and the separate San Pablo Specific Plan Design Standards document.

659
01:39:06.880 --> 01:39:18.220
Boardroom: To implement the specific plan, you are asked to consider amendments to the zoning ordinance and the zoning map, as well as changes to the general plan and the general plan map to ensure conformity with the rezoning.

660
01:39:18.530 --> 01:39:27.710
Boardroom: You're also being asked to consider repealing the 33-year-old West Berkeley plan and the 22-year-old San Pablo Avenue Public Improvements Plan.

661
01:39:27.820 --> 01:39:32.360

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Boardroom: Finally, there are small amendments to the University Avenue strategic plan.

662
01:39:33.950 --> 01:39:36.709
Boardroom: Now on to the San Pablo Avenue specific plan.

663
01:39:37.770 --> 01:39:50.720
Boardroom: But first, a quick explanation of what a general specific plan is. A specific plan is a document that implements the general plan and is focused on a specific geographical area. They're sometimes also called area plans.

664
01:39:50.970 --> 01:39:59.390
Boardroom: Specific plans typically cover land uses, development standards, and infrastructure, and can also include programs such as economic development efforts.

665
01:39:59.540 --> 01:40:05.800
Boardroom: Subsequent zoning, infrastructure, and other policies must be consistent with an adopted specific plan.

666
01:40:07.110 --> 01:40:23.619
Boardroom: We currently have four specific plans, the West Berkeley Plan, adopted in 1993, the Southside Plan, adopted in 2011 and amended in 2023, the Downtown Area Plan, adopted in 2012, and the Adeline Corridor Specific Plan, adopted in 2020.

667
01:40:24.290 --> 01:40:26.440
Boardroom: Now on to the San Pablo plan.

668
01:40:27.650 --> 01:40:46.249
Boardroom: The plan envisions a San Pablo Avenue that is a vibrant, mixed-use district that connects neighborhoods, supports a variety of housing and local businesses, and reflects Berkeley's cultural heritage. It aims to increase housing, increase business activity, enhance the public realm, and improve the area's transportation system.

669
01:40:48.300 --> 01:41:02.900
Boardroom: As Jordan alluded to, here is a summary of the plan's development process to date and a snapshot of where we are now. The process started in 2023 and consisted of three phases — initial outreach, policy development, and plan review and adoption.

670
01:41:03.150 --> 01:41:15.959

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Boardroom: Phase 1 started in 2023 and included key community leader interviews, targeted intercept surveys, small group meetings, and a community open house where staff received feedback and comments on the general condition of the corridor.

671
01:41:16.230 --> 01:41:35.839
Boardroom: Policy development was phase two of the plan. In phase two, staff drafted policies in response to community feedback from phase one. We held pop-ups at various events, a walking tour of the corridor, launched an online community survey that received hundreds of responses, and conducted a community workshop to discuss height, massing, and public open space.

672
01:41:36.130 --> 01:41:39.059
Boardroom: Phase 3 is the drafting of the plan itself.

673
01:41:39.180 --> 01:41:48.180
Boardroom: We started with a community meeting for the public review draft of the specific plan in October of last year, and held workshops with both the Planning Commission and the City Council in November.

674
01:41:48.370 --> 01:41:58.729
Boardroom: We brought the public review draft to the Planning Commission for their feedback in March, and with that feedback, revised the specific plan and held the Planning Commission public hearing in June.

675
01:42:01.470 --> 01:42:10.980
Boardroom: So the map on the slide shows the specific plan area, which is indicated in maroon and runs along San Pablo Avenue from Emeryville on the left to Albany on the right.

676
01:42:11.170 --> 01:42:22.439
Boardroom: The specific plan area is largely within the West Berkeley Commercial Zoning District, but includes some parcels along University that are included in the University Avenue Commercial Zoning District.

677
01:42:22.710 --> 01:42:33.770
Boardroom: The specific plan would rezone the parcels indicated in the slide to a new district, San Pablo Commercial, or CSP, to implement the specific plan's land use policies.

678
01:42:35.350 --> 01:42:44.690
Boardroom: The plan is organized into six chapters and includes policies and programs regarding land use, economic development, and streets, transportation, and the public realm.

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679
01:42:44.810 --> 01:42:54.650
Boardroom: Chapter 6, Implementation, provides a detailed matrix describing the timeline for each implementable task and the responsible department or agency for each task.

680
01:42:55.000 --> 01:43:04.220
Boardroom: The design standards document is a standalone document that connects policies in the plan to actual design standards used in development and design review.

681
01:43:04.630 --> 01:43:08.840
Boardroom: I will now briefly summarize each chapter, starting with land use.

682
01:43:10.510 --> 01:43:27.619
Boardroom: The land use chapter includes policies that establish the new CSP zoning district. The new district includes revised development standards, the identification of five specific designated nodes, which concentrate neighborhoods serving land uses at specific intersections along the corridor.

683
01:43:27.750 --> 01:43:40.749
Boardroom: The chapter also includes revisions to the allowed use table to make uses identified through community feedback easier to establish, while also facilitating temporary uses to address vacant and underutilized properties.

684
01:43:41.180 --> 01:43:48.490
Boardroom: The zoning district also identifies four ground floor frontage types intended to create an active and welcoming street frontage.

685
01:43:48.790 --> 01:43:58.340
Boardroom: The chapter also includes a new provision allowing for affordable and family-sized housing on certain parcels in the mixed-use light industrial zoning district.

686
01:44:00.590 --> 01:44:10.639
Boardroom: This slide includes a summary of maximum height standards, comparing the existing standards on the left, the public review draft standards in the middle, and the proposed CSP standard on the right.

687
01:44:10.800 --> 01:44:21.340

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Boardroom: In brief, projects that include housing have a maximum height of seven stories and 75 feet, while projects without housing retain the current maximum height of three stories and 40 feet.

688
01:44:21.580 --> 01:44:36.369
Boardroom: Proposed residential or mixed-use projects could exceed this maximum height with the use of the state density bonus. And as described in staff analysis of state density bonus projects included in the agenda packet, we anticipate that most projects would top out at eight stories.

689
01:44:36.640 --> 01:44:46.650
Boardroom: The public review draft had included different height standards within the designated nodes, but the Planning Commission recommended a uniform standard across the CSP zoning district.

690
01:44:49.000 --> 01:44:59.449
Boardroom: This slide identifies seven parcels in the mixed-use, light industrial, or Muley district that are included in the new affordable and family housing opportunity areas.

691
01:44:59.590 --> 01:45:13.440
Boardroom: Typically, residential uses are prohibited in the Muley, but these provisions would permit residential projects that are either 100% affordable, or that include two or more bedrooms in more than half of the total units on these specific parcels.

692
01:45:16.110 --> 01:45:25.540
Boardroom: Next, the economic development chapter includes policies and programs to facilitate outdoor business activation, create flexible commercial spaces.

693
01:45:25.540 --> 01:45:38.589
Boardroom: Encourage public-private partnerships, community benefit and business improvement districts, and includes policies encouraging infrastructure investments in designated nodes where communities serving commercial uses are concentrated.

694
01:45:40.350 --> 01:45:54.710
Boardroom: The Streets, Transportation, and Public Realm chapter contains policies and programs focused on multimodal transportation access and safety, as well as the ongoing study of transportation needs and prioritization for San Pablo projects in future planning efforts.

695
01:45:54.930 --> 01:46:02.460

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Boardroom: San Pablo Avenue is a state highway under Caltrans jurisdiction, so the city's ability to make changes to San Pablo is limited.

696
01:46:02.630 --> 01:46:10.959
Boardroom: However, the Alameda County Transportation Commission recently completed a multimodal planning study for San Pablo Avenue's entire length through Alameda County.

697
01:46:11.290 --> 01:46:23.369
Boardroom: The study led to three improvement projects, the construction of certain safety improvements along San Pablo Avenue, bus stop improvements, and bicycle facility improvements on roads that run parallel to San Pablo Avenue.

698
01:46:23.960 --> 01:46:31.449
Boardroom: This specific planning process, then, is coming fairly closely behind the heels of a comprehensive transportation planning process along the avenue.

699
01:46:31.960 --> 01:46:37.519
Boardroom: A consistent theme throughout the community process was the need to improve and enhance the public realm.

700
01:46:37.690 --> 01:46:56.030
Boardroom: To that end, the chapter includes design standards for sidewalks, street lighting, landscaping, trees, street furniture and parklets, as well as the identification of locations where smaller side streets that meet San Pablo could be closed and transformed into public plazas.

701
01:46:58.240 --> 01:47:14.900
Boardroom: The design standards document is a standalone document that includes objective design standards for development sites, like how pedestrians and vehicles access a site, for buildings with a strong focus on active ground floors, and for the design of public and private elements at the pedestrian level.

702
01:47:15.090 --> 01:47:27.890
Boardroom: In general, the design standards are not particularly prescriptive, as the priority was to preserve design flexibility and to avoid imposing physical requirements that could reduce the amount of residential space included in a proposed project.

703
01:47:28.290 --> 01:47:38.969

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Boardroom: The design standards instead focus on the ground floor of buildings and creating quality public spaces to enhance the pedestrian experience and strengthen the character of San Pablo Avenue.

704
01:47:39.360 --> 01:47:44.870
Boardroom: A project that complies with the design standards would be exempt from the city's design review process.

705
01:47:45.020 --> 01:47:52.829
Boardroom: There is also a process to get an exemption from a design standard that is physically difficult to meet through an action of the Design Review Committee.

706
01:47:54.770 --> 01:47:58.940
Boardroom: Tonight's action also includes changes to a number of existing plans.

707
01:48:00.020 --> 01:48:04.609
Boardroom: First, adoption of the specific plan requires a number of plan amendments.

708
01:48:04.790 --> 01:48:09.610
Boardroom: The zoning changes require conforming amendments to the general plan and the general plan map.

709
01:48:09.970 --> 01:48:18.969
Boardroom: And as the specific plan includes changes to the area around San Pablo and University, which require conforming amendments to the University Avenue strategic plan.

710
01:48:21.090 --> 01:48:25.180
Boardroom: The recommended action also includes the repeal of two existing plans.

711
01:48:25.290 --> 01:48:40.190
Boardroom: The first is the proposed repeal of the West Berkeley plan. As shared with the council at its November workshop, nearly all of the plan's implementation steps are complete, and the plan's land use policies are currently codified in the zoning ordinance.

712
01:48:40.310 --> 01:48:52.530
Boardroom: These include provisions related to protected industrial uses, protected non-industrial uses, replacement space requirements, and the siting of specific sensitive uses within mixed-use manufacturing areas.

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713
01:48:52.820 --> 01:49:07.179
Boardroom: We are also proposing repealing the San Pablo Avenue Public Improvements Plan, as most of that plan's improvements have been completed, and the remaining improvements have been ported over and included in the San Pablo Specific Plan as infrastructure priorities moving forward.

714
01:49:08.270 --> 01:49:10.680
Boardroom: Finally, a word about CEQA.

715
01:49:11.170 --> 01:49:23.880
Boardroom: As noted in your staff report, SB 131 was passed while the specific plan was being developed, and it provides an exemption for rezonings that are undertaken to implement a schedule of actions in an adopted housing element.

716
01:49:24.100 --> 01:49:29.379
Boardroom: Tonight's action is a rezoning, which is included as Program 27 of the housing element.

717
01:49:29.830 --> 01:49:46.240
Boardroom: Staff has also prepared an addendum to the housing element EIR, which is included in the packet. The addendum found no new or more severe impacts than were disclosed in the housing element EIR. The draft addendum analyzed a development projection which assumed state density bonus.

718
01:49:48.170 --> 01:49:59.769
Boardroom: Thank you very much for your time and attention. Staff's recommendation is that you receive public comment and move to accept the proposed specific plan, design standards document, and other amendments as detailed in the slide.

719
01:50:00.050 --> 01:50:14.059
Boardroom: In addition, staff recommends that the City Council consider reinstating staff's originally recommended minimum density standard of 145 dwelling units per acre in the CSP district, which was removed by the Planning Commission.

720
01:50:14.810 --> 01:50:17.069
Boardroom: Thank you again, and we are available for any questions.

721
01:50:18.850 --> 01:50:26.630

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Boardroom: Thank you very much. Okay we are going to start with questions from Councilmember Taplin and then Councilmember Kesarwani.

722
01:50:26.890 --> 01:50:42.039
Boardroom: Thank you very much, Madam Mayor, and thank you, Director Klein, and to your team. Thanks to everyone. I have, four questions. Can you describe the project's merchant stakeholder engagement along San Pablo University Avenues, and give some examples of the plan's incorporation of feedback?

723
01:50:45.080 --> 01:50:46.650
Boardroom: Do you want to take some of those?

724
01:50:51.000 --> 01:50:58.519
Boardroom: Yeah. Like, you know, who attended the listening sessions, who did you reach out to, what'd they say, how was it incorporated?

725
01:50:59.340 --> 01:51:13.979
Boardroom: Well, there was a real variety of interaction that we had. In the early engagement, we met with representatives from the neighborhoods and neighborhood organizations. We met with

726
01:51:15.410 --> 01:51:22.900
Boardroom: Commercial users along the streets, and several nonprofits involved with.

727
01:51:23.000 --> 01:51:30.059
Boardroom: Serving the unhoused and other community facilities that were along San Pablo.

728
01:51:30.340 --> 01:51:35.240
Boardroom: And, one of the things that was interesting to us

729
01:51:35.530 --> 01:51:39.649
Boardroom: Is one of the consistent threads that we heard.

730
01:51:39.930 --> 01:51:54.480
Boardroom: was make the street a more comfortable place, and almost… people might have said things that disagreed about a lot of other issues, but almost everybody said they want better lighting, they want it to be a friendlier street at night.

731
01:51:54.680 --> 01:52:01.880

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Boardroom: So that really focused on the emphasis of making the streetscape improvements.

732
01:52:02.030 --> 01:52:09.590
Boardroom: There was also… Feedback from some people in the neighborhoods.

733
01:52:09.920 --> 01:52:15.990
Boardroom: Supportive of the housing development that's been happening, but having concern that…

734
01:52:16.100 --> 01:52:21.180
Boardroom: The people who are living in those new developments aren't really becoming integrated with the neighborhood.

735
01:52:21.700 --> 01:52:30.480
Boardroom: They don't come out, we don't see them on the street, we don't meet them, and that's where a lot of the focus on finding opportunities for public space

736
01:52:30.870 --> 01:52:37.689
Boardroom: Came out of it, and one of the things that's a constraint in the specific plan area is

737
01:52:37.960 --> 01:52:49.979
Boardroom: All of the publicly owned space is streets. So the opportunities for parks and things like that were constraining, and that's where the idea of the side street.

738
01:52:50.120 --> 01:53:06.630
Boardroom: mini plazas on streets that are shorter or don't have that much traffic on them came about. We also met with people in the development community and architects who work on buildings on the street.

739
01:53:07.080 --> 01:53:08.310
Boardroom: And…

740
01:53:08.470 --> 01:53:26.659
Boardroom: you know, besides some comments about zoning-related issues, they also agreed about the need for public space and improvement of the public realm of the street. So that issue of public realm really did come across strongly.

741

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01:53:26.810 --> 01:53:34.359
Boardroom: Thank you very much. My second question, Director Klein, how would you characterize the current West Berkeley plan's impact on economic development since adoption?

742
01:53:38.920 --> 01:53:47.790
Boardroom: Yes, council member. So the current West Berkeley plan was adopted in 1993 and included

743
01:53:48.910 --> 01:53:56.970
Boardroom: a variety of provisions that have been implemented through our zoning ordinance.

744
01:53:58.510 --> 01:54:03.029
Boardroom: Including strong protections for light industrial.

745
01:54:03.490 --> 01:54:09.009
Boardroom: Businesses, and also, warehouses.

746
01:54:09.180 --> 01:54:21.680
Boardroom: And arts and crafts uses, including a requirement that, any space that's being… you can't convert a space that's being currently used for one of those uses without…

747
01:54:21.820 --> 01:54:32.750
Boardroom: replacing it with new light industrial space. And those have been very strong and effective provisions to protect local manufacturing.

748
01:54:32.960 --> 01:54:38.500
Boardroom: There have been a number of amendments over the years to those

749
01:54:38.970 --> 01:54:46.560
Boardroom: Those provisions and other provisions of the West Berkeley plan, I would say most recently, this council.

750
01:54:46.560 --> 01:55:01.369
Boardroom: made a number of efforts to expand and promote research and development uses in West Berkeley. And I think that's what we've seen. A lot of the economic growth that we've seen in West Berkeley under the West Berkeley plan has been

751
01:55:01.380 --> 01:55:05.420
Boardroom: Life science and other research and development.

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752
01:55:06.010 --> 01:55:10.300
Boardroom: And so I think, yeah, there've been, there've been a number of

753
01:55:10.740 --> 01:55:22.589
Boardroom: zoning amendments that this Council's desired to advance that have required associated changes to the West Berkeley plan. And so I would say, that's evidence that

754
01:55:23.230 --> 01:55:31.190
Boardroom: The plan is less relevant to the current economy than it was over 30 years ago when it was adopted.

755
01:55:33.050 --> 01:55:38.299
Boardroom: My third question is for, the director and also the city manager.

756
01:55:38.590 --> 01:55:49.349
Boardroom: What actions by City Admin or the Council in partnership with the community are required to move forward with the construction of the many plazas and the establishment of a West Berkeley Business Improvement District?

757
01:55:50.730 --> 01:55:51.799
Boardroom: Do you want me to go first?

758
01:55:55.160 --> 01:56:05.580
Boardroom: So adopting a plan is an important step towards setting out a vision, and I would say, this is a bold vision, you know. Side Street Plaza's

759
01:56:05.810 --> 01:56:22.929
Boardroom: would be a real… it would be a change to our transportation network, and it would create fantastic new gathering spaces in our community. And so adopting this plan is a critical first step. But it is a first step, and, it's, you know, these kind of major capital

760
01:56:23.130 --> 01:56:33.140
Boardroom: improvement projects take time to line up. It takes time to line up the funding for the design, and then.

761
01:56:33.140 --> 01:56:46.059

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Boardroom: And usually, there's associated CEQA work with the design. And then we end up doing additional community process around that design work. And then we need to line up funding for the construction.

762
01:56:46.330 --> 01:56:53.360
Boardroom: I'll give an example. In 2020, the city council adopted the Adeline Corridor specific plan.

763
01:56:53.950 --> 01:56:56.270
Boardroom: We are now at an awesome.

764
01:56:56.530 --> 01:56:59.709
Boardroom: Stage where we have funding for.

765
01:56:59.760 --> 01:57:19.630
Boardroom: 100% design for an overhaul of Adeline Street, the Adeline Transportation Improvement Project. The city just received a $850,000 grant from the federal government that will fund design of new open spaces. And those are major capital projects that are going to lead

766
01:57:19.630 --> 01:57:20.550
Boardroom: to…

767
01:57:20.960 --> 01:57:31.680
Boardroom: I think over $100 million of investment in Adeline Street over the next decade, and it's going to implement the Adeline Corridor Plan, and we're really excited to advance that work, but

768
01:57:31.800 --> 01:57:47.830
Boardroom: As you can see, it does take time. And so there are many steps ahead of us still to actually achieve the vision that's laid out related to public spaces, especially in capital improvements for the business improvement district.

769
01:57:48.660 --> 01:57:59.730
Boardroom: A little less expensive, but still labor intensive and important and requiring a whole, I would say, another round of property owner engagement.

770
01:58:00.350 --> 01:58:04.910
Boardroom: And, and community development. And that work would still be to come.

771

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01:58:05.560 --> 01:58:13.189
Boardroom: Thank you. And my final question, thank you all for your patience. How would the different high requirements impact the production and financing of affordable housing?

772
01:58:15.810 --> 01:58:28.040
Boardroom: I'm sorry. Could you state that again one more time? So among the various recommendations for base heights, how would each of those configurations impact the production and the financing of affordable housing?

773
01:58:30.830 --> 01:58:36.189
Boardroom: So… I'll take a crack at this, and Tim can chime in.

774
01:58:38.310 --> 01:58:57.860
Boardroom: many observers and one of the pieces of discussion at the Planning Commission about the decision to set a base height at 7 stories versus, for example, 5 stories. There was much discussion among the Planning Commission members about.

775
01:58:58.860 --> 01:59:06.399
Boardroom: how that could impact affordable housing production. Because if the base height is set higher.

776
01:59:06.600 --> 01:59:11.090
Boardroom: A project needs to include less on-site affordable housing.

777
01:59:11.280 --> 01:59:21.170
Boardroom: in order to qualify for the State Density Bonus program. As Justin mentioned during the presentation, we believe that most projects will likely

778
01:59:21.430 --> 01:59:25.690
Boardroom: top out at 8 stories on San Pablo Avenue.

779
01:59:26.170 --> 01:59:33.050
Boardroom: That's when you get higher than eight stories, construction costs increase dramatically.

780
01:59:33.180 --> 01:59:39.819
Boardroom: And so there was a lot of discussion about, well, if we zone at 5, then,

781

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01:59:40.340 --> 01:59:53.440
Boardroom: you can include more on-site affordable housing, and you can get to 8 that way. And that's not an unreasonable policy position to take. That said, it's…

782
01:59:53.540 --> 02:00:01.270
Boardroom: We also have a local inclusionary housing requirement, and so projects that have to,

783
02:00:02.140 --> 02:00:12.949
Boardroom: even projects that are qualifying for the state density bonus also have to comply with our local inclusionary requirement. And so, a project that's taking advantage of a base height

784
02:00:13.200 --> 02:00:14.930
Boardroom: of 7 stories.

785
02:00:15.040 --> 02:00:27.510
Boardroom: may include less on-site affordable housing, but we'll still have to comply with our local inclusionary requirement. And what we see is that projects are more likely to

786
02:00:27.610 --> 02:00:43.280
Boardroom: fee out. If they don't have to use… put the units on-site in order to take advantage of the density bonus program, they'll often choose to pay the in-lieu fee instead. And some commenters we've heard say, we don't want projects to include

787
02:00:43.830 --> 02:00:49.679
Boardroom: to fee out. We want them to use to put the units on site. Really, there are trade-offs.

788
02:00:50.000 --> 02:00:57.679
Boardroom: Onsite units are a great benefit because you get the units right away. They're delivered at the same time as the project.

789
02:00:58.420 --> 02:01:03.540
Boardroom: However, there's a lot of advantages to

790
02:01:04.490 --> 02:01:10.199
Boardroom: getting funding for our affordable housing trust fund from from projects.

791

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02:01:10.920 --> 02:01:22.100
Boardroom: Margo Ernst, manager of housing community services, told me today that our trust fund dollars are leveraged 4 and a half to one.

792
02:01:22.430 --> 02:01:24.000
Boardroom: With outside funding.

793
02:01:24.220 --> 02:01:28.910
Boardroom: Federal and State funding and tax credits. That's really powerful.

794
02:01:29.120 --> 02:01:37.010
Boardroom: Also, trust fund projects are more likely to hit deeper affordability targets.

795
02:01:37.200 --> 02:01:45.640
Boardroom: and can often provide housing for particular special needs populations. So there's real advantages to having

796
02:01:45.870 --> 02:01:48.899
Boardroom: Housing projects being out as well.

797
02:01:50.090 --> 02:01:50.889
Boardroom: Thank you.

798
02:01:53.350 --> 02:01:58.219
Boardroom: Thank you. Councilmember Kesarwani. I know you wanted to.

799
02:01:58.360 --> 02:02:17.529
Boardroom: also present some amendments that you're suggesting. Thank you very much, Madam Mayor. Thank you, Director Klein and Mr. Horner for the presentation. I just want to acknowledge the years of work that has gone into this. Mr. Erickson, right? I have your name right? Okay. With our consultant team and our city staff.

800
02:02:17.530 --> 02:02:22.940
Boardroom: This was a referral from my predecessor in 2015, correct?

801
02:02:23.630 --> 02:02:33.660
Boardroom: I think you have that right. Okay, so, as much as I want to take ownership, I can't do that for this, but I'm so pleased that this is here before us tonight.

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802
02:02:33.660 --> 02:02:47.220
Boardroom: There is so much to be excited about here. I think that the seven stories based zoning is is very appropriate for this major transportation and commercial corridor with the width that it has.

803
02:02:47.350 --> 02:03:07.320
Boardroom: And I just want to say that at the outset, I'm really pleased with the requirement for the widening of the sidewalks, the simplified design standards above the ground floor, as well as standards for the ground floor, planning for future public open spaces, because I really love this.

804
02:03:07.510 --> 02:03:24.259
Boardroom: corridor, and I know we have a lot of challenges right now with vacant storefronts and blighted areas, and so I really believe that this plan can turn around this corridor. I think there's a lot here

805
02:03:24.260 --> 02:03:32.850
Boardroom: That is going to work very well. And so with that, so I love it a lot. But if I have an opportunity.

806
02:03:32.870 --> 02:03:38.740
Boardroom: To improve it a little bit, you know, I have to take that opportunity, so if you'll indulge me, I have

807
02:03:39.000 --> 02:03:48.690
Boardroom: Four amendments. I want to put on the floor at the outset. Oh, someone else is sharing. So can I? Can you stop sharing?

808
02:03:51.220 --> 02:03:53.269
Boardroom: Okay, let me try again.

809
02:03:53.720 --> 02:03:55.040
Boardroom: Okay.

810
02:03:55.370 --> 02:04:05.300
Boardroom: Share screen… Okay. Oh, those are just my notes. Okay, let's go to the amendments. Okay, can you all.

811
02:04:05.840 --> 02:04:07.520
Boardroom: See this.

812

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02:04:07.960 --> 02:04:10.790
Boardroom: Okay, alright, so…

813
02:04:10.990 --> 02:04:19.429
Boardroom: So, you know, we talked about the seven stories. That is for residential buildings and multi-use buildings. The multi-use buildings are gonna be…

814
02:04:19.430 --> 02:04:31.869
Boardroom: Commercial ground floor and residential above, so we, I think we have, I think it's an oversight that the non-residential building, so if somebody wants to site a medical office.

815
02:04:32.000 --> 02:04:45.779
Boardroom: a large employer wants to locate on San Pablo, or a civic institution wants to be here, I think that they should be able to do the same height. So, the allowance is 75 feet.

816
02:04:45.780 --> 02:05:09.439
Boardroom: So I'm suggesting we just make it all the same. So non-residential buildings would also be allowed to do 75 feet. The reason being, remember, this is a transportation corridor. This is walkable to North Berkeley BART. And so if we can cite a lot of jobs here and make it easy for people to get there without a car, I believe that that is the right thing to do.

817
02:05:09.440 --> 02:05:12.029
Boardroom: I'm putting that out here for my…

818
02:05:12.030 --> 02:05:20.250
Boardroom: Colleagues consideration and the way that we would make that amendment is we would just amend the table to say 75 feet and five stories.

819
02:05:20.420 --> 02:05:21.640
Boardroom: The next…

820
02:05:21.730 --> 02:05:41.139
Boardroom: amendment is actually something staff has already brought to us, which is, we… I think we need to add the minimum density standard back, because we want to conform with our housing element. I'm proposing 100. I know that staff suggested 145. The…

821
02:05:41.190 --> 02:05:52.539

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Boardroom: you know, either one is actually fine. The benefit of doing a lower dwelling units per acre number, and this is where the Planning Commission was coming from when they removed it completely, is

822
02:05:52.540 --> 02:06:07.339
Boardroom: It does allow flexibility to create larger family sized units. And the reason why we don't want to go below 100 is because, you know, it is my understanding from staff that MTC ABAG has a transit oriented communities program.

823
02:06:07.690 --> 02:06:13.669
Boardroom: And you need to be at least at 100 dwelling units per acre. So, that was my suggestion there.

824
02:06:14.010 --> 02:06:27.549
Boardroom: Amendment 3 is a correction. Sorry, Councilmember, would you mind just explaining for the public, like, when you say, when you say, dwelling units per acre, what that means? I think that would be helpful. So, it's a… so, and…

825
02:06:27.790 --> 02:06:33.610
Boardroom: An acre, so it's basically how many units you can do per acre.

826
02:06:33.690 --> 02:06:46.819
Boardroom: I don't know how else to describe it. For reference, the Middle Housing Ordinance has a maximum density standard of 70 dwelling units per acre. It's actually… it's just not plain English. I mean, you have to convert it, I think.

827
02:06:46.820 --> 02:06:55.660
Boardroom: to a typical parcel size and square feet, and then do the conversion to how many units it is per a typical parcel size.

828
02:06:55.750 --> 02:07:14.789
Boardroom: Maybe somebody wants to do that math, or does someone want to chime in? I would just say dwelling units — Our math teacher may want to chime in. Dwelling units per acre is the common measure of residential density. It just translates into how many housing units you're allowed to build on a parcel. How many acres in a block?

829
02:07:15.820 --> 02:07:34.680
Boardroom: So, so just like… so I'm only familiar with, like, our parcel sizes from the middle housing ordinance, so the typical residential lot is 5,000 square feet, so when we said 70 dwelling units per acre, that

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was roughly translated to 8 units per parcel, so this is gonna translate to something

830
02:07:34.680 --> 02:07:37.960
Boardroom: For each parcel, depending on the parcel size, and…

831
02:07:38.340 --> 02:07:46.240
Boardroom: what is it? 43,000 square feet per acre? So that's how we get at this. Is that right? Roughly.

832
02:07:46.610 --> 02:07:47.850
Boardroom: So…

833
02:07:48.110 --> 02:08:03.099
Boardroom: So, Mayor, you're keeping me on my toes here. Okay, so… I think that's enough for that, and we can answer more questions about it later. So, okay, I wanted to correct what I believe was perhaps an oversight from the Planning Commission.

834
02:08:03.230 --> 02:08:15.529
Boardroom: They said. I thought this was very clever of them. They said the 1st 50 feet of the ground floor has to be the

835
02:08:16.500 --> 02:08:35.589
Boardroom: the… how would you describe that? The specified commercial use, the frontage, active frontage, but we don't know how deep these parcels are. I mean, we do know, but, you know, we don't know which exact parcel we're talking about, right? So there could be greater depth there. There could be the possibility of siting some…

836
02:08:36.000 --> 02:08:54.950
Boardroom: homes or live-work units in the back, and… but the way that they effectuated this amendment, you can see they wrote prohibited uses on the ground floor. So they opened it up to the possibility of having manufacturing, recycled materials, processing, you know, parking lots, and non-vehicle repair uses

837
02:08:54.950 --> 02:08:56.280
Boardroom: behind

838
02:08:56.280 --> 02:09:05.320
Boardroom: the active frontage, because they use this word prohibited uses. So we think they meant residential uses. I think that makes a lot more sense. I think

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839
02:09:05.390 --> 02:09:16.509
Boardroom: I think we want an ordinance that says what it means, and so… so that's just all that is. It's just a correction there. And then finally, Mr. Horner talked about

840
02:09:16.630 --> 02:09:24.079
Boardroom: 7 mixed-use light industrial parcels that happen to be part of this corridor. Some of them are quite sizable.

841
02:09:24.080 --> 02:09:39.060
Boardroom: And we don't currently allow housing on MULI parcels. We do on mixed-use residential parcels, if you'll recall from middle housing, but not on MULI. So what we're allowing here is these seven parcels can now consider housing.

842
02:09:39.060 --> 02:09:48.379
Boardroom: And what I think we should do is just be a little bit more flexible. So we have two options in the ordinance. We said you could do 100% affordable.

843
02:09:48.400 --> 02:10:06.979
Boardroom: or you can do more family-sized units. So, we want to keep that intention, and, and, you know, our understanding is, you know, the teacher housing project goes up to 120% of the area median income, so that goes up to moderate income households, so we are aligning with

844
02:10:06.990 --> 02:10:17.380
Boardroom: you know, what we see around the community. So we're saying no more than 120% of the area median income. But to make sure we get a mix of incomes, and not just

845
02:10:17.420 --> 02:10:24.990
Boardroom: Moderate income, as needed as that is, everything is needed. So we just added this this,

846
02:10:25.950 --> 02:10:41.330
Boardroom: addition to say, with at least 50% earning no more than 80%. So you have some flexibility here with a mix of incomes, and in my experience, talking to affordable housing developers when they're trying to do the funding stack to break ground.

847
02:10:41.330 --> 02:10:49.579

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Boardroom: That can sometimes be helpful to have the ability to go up to 120% of the area median income, because you can imagine those folks can pay a higher rent.

848
02:10:49.800 --> 02:10:59.909
Boardroom: for your pro forma. So then, finally, the it previously said, 50% of the units have to have 2 or 3 bedrooms.

849
02:10:59.940 --> 02:11:12.449
Boardroom: I believe that was studied by our feasibility consultant, and that was the max of what we could do. 20% is often what we have for inclusionary. This is something completely different. We're talking about family-sized units.

850
02:11:12.570 --> 02:11:30.090
Boardroom: Our intention here is, again, to just be a little bit more flexible, you know, to allow these parcels to get developed with family-sized units, but other-sized units as well. So we, we are suggesting, or I'm suggesting 20% on that. So those are the amendments.

851
02:11:30.160 --> 02:11:35.159
Boardroom: The 4 amendments and I'll stop there. Thank you very much.

852
02:11:37.230 --> 02:11:55.530
Boardroom: Thank you very much, Councilmember. I have some questions. I'm gonna hold them. Questions from Councilmember Lunapara for either Councilmember Kesarwani or our staff, plenty of staff? I just have a quick clarifying question for staff. In the staff report, it mentions

853
02:11:55.530 --> 02:11:58.660
Boardroom: The local density bonus for

854
02:11:58.880 --> 02:12:03.700
Boardroom: for the condo projects. And can you speak to how that's incorporated into the plan?

855
02:12:06.220 --> 02:12:07.400
Boardroom: Okay, bye.

856
02:12:07.580 --> 02:12:17.109
Boardroom: Maya? Certainly, Councilmember. The, local density bonus, is included as a pilot in the San Pablo specific plan area.

857

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02:12:17.280 --> 02:12:25.779
Boardroom: And as an implementation step of the plan. So the plan calls for the exploration and study of creating a local density bonus in the plan area.

858
02:12:25.940 --> 02:12:31.940
Boardroom: So this is something that would still have to come back to council and council would have to approve. Right? Absolutely. Yes, thank you.

859
02:12:33.430 --> 02:12:35.549
Boardroom: Thank you, Councilmember Traga.

860
02:12:37.360 --> 02:12:46.789
Boardroom: Thank you. I also have one amendment that I would like to share on the screen.

861
02:12:46.910 --> 02:12:52.379
Boardroom: And before I do, I'm just going to provide some motivation for this.

862
02:12:55.540 --> 02:13:11.309
Boardroom: I understand that staff is in the process of developing a suite of anti-displacement protections for small businesses along the

863
02:13:11.310 --> 02:13:19.140
Boardroom: corridor as part of the corridor zoning update. I also understand. Well.

864
02:13:19.570 --> 02:13:22.289
Boardroom: And then, in the,

865
02:13:22.790 --> 02:13:26.910
Boardroom: in the San Pablo area specific plan.

866
02:13:27.130 --> 02:13:39.150
Boardroom: There is… I think, at least in the preliminary description of what could be or conceptually

867
02:13:39.510 --> 02:13:50.489
Boardroom: There is discussion of interventions such as worm shelling, which is the… or at least the issue being that, if…

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868
02:13:50.770 --> 02:14:08.770
Boardroom: A commercial storefront is presented as four walls, a floor, and a ceiling without any kinds of utility-ready connections or on-site bathrooms.

869
02:14:08.990 --> 02:14:21.879
Boardroom: That is an issue. And the the 2 Renaissance items that I worked on, that the a unanimous council adopted both of them as referrals.

870
02:14:22.100 --> 02:14:38.939
Boardroom: are… I know that they are in the process of either being implemented by staff or waiting for, our RV process to, to… for the Council to prioritize, but I don't want to miss the opportunity

871
02:14:39.030 --> 02:14:48.860
Boardroom: as part of this plan to at least get those aspects into consideration. So I'm going to

872
02:14:49.290 --> 02:14:51.359
Boardroom: share my screen.

873
02:14:51.950 --> 02:15:00.870
Boardroom: It's been a long time since I've done this, so… Make sure… I'm sharing the right thing.

874
02:15:11.700 --> 02:15:12.510
Boardroom: Well.

875
02:15:13.330 --> 02:15:14.209
Boardroom: There we go.

876
02:15:16.720 --> 02:15:21.880
Boardroom: Okay, so it's what is in red.

877
02:15:22.080 --> 02:15:23.160
Boardroom: And…

878
02:15:23.480 --> 02:15:38.050
Boardroom: It just refers to the city manager consideration of the application within the context of the San Pablo area-specific plan, the San Pablo Avenue-specific plan design standards document, and or any…

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879
02:15:38.150 --> 02:15:51.389
Boardroom: associated documents as applicable of commercial anti-displacement provisions being considered as part of the commercial zoning update and provisions of the Renaissance 1 and Renaissance 2 referrals.

880
02:15:51.430 --> 02:16:10.080
Boardroom: previously adopted by the Berkeley City Council. I will note that this language has been, reviewed by the planning director and, the city attorney, and, I will let them speak for themselves, but I don't think there were any flags

881
02:16:10.120 --> 02:16:14.240
Boardroom: Because this is simply part of the reform, so…

882
02:16:14.310 --> 02:16:21.659
Boardroom: I just wanted to submit that for the Council's consideration. Thank you. Can you make it bigger, please, so that we can read it a little easier.

883
02:16:23.490 --> 02:16:25.130
Boardroom: So you still have dark mode.

884
02:16:25.440 --> 02:16:26.160
Boardroom: Oh.

885
02:16:26.450 --> 02:16:27.340
Boardroom: Dark mode.

886
02:16:30.660 --> 02:16:37.340
Boardroom: Okay. I don't actually know how to change dark mode. I'm sorry. Okay. Thank you. All right.

887
02:16:37.750 --> 02:16:39.779
Boardroom: Very good.

888
02:16:44.959 --> 02:16:59.149
Boardroom: We're, okay, so question from Councilmember Blackaby. Thank you, Madam Mayor, and thank you, to the team for this great work and, this very thoughtful presentation. I have a few questions in a few different areas I was just gonna bounce around.

889

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02:16:59.150 --> 02:17:13.120
Boardroom: Remember when we first talked about this last year, there was more of, so there were some requirements for placemaking that are now kind of more incentives than requirements. And Councilmember Taplin already talked about the side street plazas.

890
02:17:13.120 --> 02:17:29.649
Boardroom: And how those might materialize, and I know that would take some work, kind of public-private kind of partnership, the city would probably have a role, the developer might have a role. Can you also talk about the, the privately owned public open spaces, and how those incentives would work for a developer who's, developing a property?

891
02:17:31.360 --> 02:17:41.339
Boardroom: Certainly. Thank you, Councilmember. The you know, as we've all mentioned, there was a tremendous emphasis on trying to improve

892
02:17:41.620 --> 02:17:44.429
Boardroom: You know, to increase the amount of available open space.

893
02:17:44.530 --> 02:17:49.100
Boardroom: And, you know, most of that has to happen either on our narrow,

894
02:17:49.260 --> 02:18:01.140
Boardroom: public spaces or in private development. And so the San Pablo Commercial Zoning District includes two incentives related to this goal.

895
02:18:01.250 --> 02:18:14.150
Boardroom: development project has a development standard of private usable open space. So depending on the number of units you have, or the size of a parcel, you're required to provide a certain amount of private open space on site.

896
02:18:14.350 --> 02:18:27.820
Boardroom: What this zoning district includes are incentives that give you additional credit towards that requirement if you utilize them. For example, if you widen the sidewalk in front of your building.

897
02:18:28.200 --> 02:18:42.110
Boardroom: Then you'll get 1 and 1/2 feet of credit for every 1 feet of private open space you're supposed to provide on site. And similarly, you'll get a credit if you provide a privately owned public open space.

898

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02:18:42.200 --> 02:18:43.929
Boardroom: The design…

899
02:18:43.930 --> 02:19:02.749
Boardroom: requirements of which are included in the design document. They need to have, you know, it has to have a minimum size. You're not just, you can't just put a little thing in the corner. It has to have a certain size and certain facilities to count as a, as a POPO. We had had it as a requirement earlier, and we moved towards an incentive after feedback we received from

900
02:19:02.750 --> 02:19:09.199
Boardroom: from the City Council and the Planning Commission. Great. And so you get. So the basic idea is, you know, if you, if you

901
02:19:09.459 --> 02:19:10.549
Boardroom: in… in…

902
02:19:10.709 --> 02:19:19.049
Boardroom: make available more public open space, then you'll be able to take a little bit of the requirement to provide private open space on the parcel. OK.

903
02:19:19.170 --> 02:19:31.409
Boardroom: Similarly for, I think we talked when we, we talked ahead of the meeting, for sidewalk widening, there's, is there kind of a similar incentive? Again, I'm just curious about all these things that we're trying to do to activate.

904
02:19:31.510 --> 02:19:36.140
Boardroom: the public spaces, but also kind of that ground floor. Yes, that's a

905
02:19:36.160 --> 02:19:54.899
Boardroom: Exactly right. We have a very similar incentive for that for sidewalk widening. We actually have it currently in the Southside plan area. That's where we first utilized it, and we imported that idea into the San Pablo-specific plan. And is there anything else around, kind of, the ground floor activation that is in the similar vein, or those are kind of the best…

906
02:19:55.320 --> 02:19:56.950
Boardroom: examples.

907

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02:19:59.400 --> 02:20:00.499
Boardroom: This is very good.

908
02:20:02.640 --> 02:20:03.370
Boardroom: Sidewalk.

909
02:20:05.540 --> 02:20:06.330
Boardroom: Just pause.

910
02:20:08.640 --> 02:20:27.909
Boardroom: There's… I believe there's, an economic development program that offers a reduction or a waiver of the, fees for, a sidewalk, table permit. So if a business… if a cafe wants to have tables on the sidewalk.

911
02:20:28.070 --> 02:20:39.280
Boardroom: We will — and perhaps also the parklet fees. There are economic development strategies that basically aim towards incentivizing activation. OK, great.

912
02:20:39.280 --> 02:20:51.759
Boardroom: Let's talk a little bit about the, kind of, the objective design standards. You know, some of the concerns we've heard, obviously, from, from constituents is we don't want these just to be these big boxes that kind of, show up.

913
02:20:51.760 --> 02:21:05.279
Boardroom: And I know in the design standards, and again, you'd walk me through this, there's some sort of a… depending on the building height, number of these features that you have to kind of incorporate. Again, could you share how that… that part would work? I think there was the…

914
02:21:05.480 --> 02:21:25.440
Boardroom: certain elements of the facade, and some of the articulation, and I think, depending on the building height, you might have to do two of those, and if it was a bigger building, you'd have to do three of them. But again, there was just, again, an effort to not proscribe the design, but to encourage some uniqueness in the objective standards, if you could describe that.

915
02:21:25.570 --> 02:21:40.179
Boardroom: Certainly. Within the design standards document, they are included for — as we mentioned before, there are design standards for the site itself, for buildings, and also for public open spaces and public facilities.

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916
02:21:40.410 --> 02:21:48.009
Boardroom: With respect to, say, facade articulation, which I think is the thing that you're specifically talking about, there are…

917
02:21:48.200 --> 02:22:02.180
Boardroom: Five distinct strategies that are pointed out in the design standards document. Recesses along some of the vertical or horizontal to create just an appearance of not just a flat wall.

918
02:22:02.510 --> 02:22:10.650
Boardroom: Projections, so not just — either projections of a certain size or recessions of a certain size, again, to create some character in the facade.

919
02:22:10.820 --> 02:22:18.740
Boardroom: Lines, or what we call datum lines, are just sort of visible indications of the height of a building to sort of create

920
02:22:19.230 --> 02:22:20.939
Boardroom: You know, again, not just a…

921
02:22:21.170 --> 02:22:38.599
Boardroom: flat block, but something that looks like a building that's assembled. Screening devices, so if you're screening a porch or a window, we have some standards around that. And some about ornamentation, so things that you may put in a corner, or something you may put at the top along a cornice. And…

922
02:22:38.620 --> 02:22:53.940
Boardroom: Most… a building that's proposed in the… in the zoning district needs to include at least two of those. A tall building needs to include at least three. And so we do give some flexibility to choose among them, but you do need to choose among the ones that we mentioned. Okay, so choose wisely. Okay.

923
02:22:53.940 --> 02:23:10.770
Boardroom: On the design standards, I wanna… I'm sorry, on the density. I appreciate Councilmember Kesarwani's amendment of the 165 to 100. I just wanted staff to kind of react to that. What's the advantage of maybe bringing that standard down to 100? Councilmember Kesarwani had mentioned, that it…

924
02:23:10.770 --> 02:23:29.160

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Boardroom: maybe provides more opportunity to do more family housing on the parcel, so you don't have a bunch of studios, but you have more possibility to do two and three bedrooms, because that's a dwelling, a dwelling unit, and so if you bring the density down, you can do more of those. Is there any magic to, sort of, the 165 versus the 100, as we're talking through this here?

925
02:23:30.370 --> 02:23:41.090
Boardroom: You know, I think that, you know, the 145, the 145 dwelling units an acre that was originally proposed by staff was based on a survey of recently approved projects.

926
02:23:41.260 --> 02:23:45.800
Boardroom: And it was somewhere, you know, it was not the top of it, but it was somewhere in the middle, right?

927
02:23:46.010 --> 02:24:04.469
Boardroom: And the telegraph might have been 200 or something, for example, we talked about, much higher. Yeah, and so, and so… Oh, you went through it, okay. Yeah, and so, you know, it was, you know, I think we had originally even proposed higher, and the Planning Commission wanted us to come in with a compromise, we came in a little bit lower, and then when we visited again, they didn't want one at all. And so…

928
02:24:04.510 --> 02:24:06.760
Boardroom: You know, I think that…

929
02:24:06.870 --> 02:24:15.140
Boardroom: From our perspective, you know, the housing element does ask us to assign a minimum residential density standard.

930
02:24:15.140 --> 02:24:27.150
Boardroom: to all residential and mixed-use development, and so we do want to encourage that, to happen. You know, and I think one of the things that, you know, that Councilmember Kesarwani mentioned, that at least at the 100 dwelling units an acre.

931
02:24:27.150 --> 02:24:38.499
Boardroom: We're ensuring that we remain competitive for transportation grants for our areas, which is, I mean, when we're talking about how to do the plaza closures, that's something we want to keep in mind. So I think that.

932
02:24:38.540 --> 02:24:49.860

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Boardroom: You know, that minimum density standard is still, you know, well above the maximum density standard we have for middle housing. And again, it's a minimum and doesn't in any way constitute a cap on what we'd see. Okay.

933
02:24:50.130 --> 02:24:59.959
Boardroom: And last set of questions, and it comes back to the building height, kind of 5-story, 7-story, the state density bonus, and our own inclusionary housing ordinance.

934
02:25:01.260 --> 02:25:14.580
Boardroom: I, you know, I definitely find myself in the camp of saying, I support ending up in this sort of 7 to 8. There are parts of San Pablo where I think that makes sense, but if we do that, I would support doing it with more affordable housing on site.

935
02:25:14.580 --> 02:25:24.780
Boardroom: And the way to do that is basically to zone at 5 and let the density bonus do the work. And the density bonus does the work. So that's certainly where I'm at.

936
02:25:24.880 --> 02:25:29.740
Boardroom: But I did want to touch on this question about, about how the fiat

937
02:25:29.740 --> 02:25:47.179
Boardroom: works on top of that, because, you know, we talked about if you zone for 7, and don't provide any affordable housing, you basically fee out to reach the 20%, requirement. But even the density bonus project, if you zone for 5 and end up with 7 or 8,

938
02:25:47.180 --> 02:25:51.600
Boardroom: That's usually not enough to meet the target, right? And so they either would

939
02:25:51.600 --> 02:26:02.619
Boardroom: Build more affordable units or they would still fee out for a portion. So just to verify, in either scenario, we probably have funds coming to the housing trust fund. Just a question of.

940
02:26:02.670 --> 02:26:07.179
Boardroom: More or less, because… In the 5-story scenario, you have 5

941
02:26:07.290 --> 02:26:21.709

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Boardroom: and I am getting to a question, Madam Mayor, because I know you like how I ask these questions, the leading questions, but if we have a five-story zoning, and you use the state density bonus, you still fee out for the rest, and that fee out goes to the Housing Trust Fund. Is that, again, the right way to think about…

942
02:26:21.950 --> 02:26:31.470
Boardroom: Yeah, that's correct. We don't see projects that meet our local 20% inclusionary requirement.

943
02:26:31.720 --> 02:26:33.340
Boardroom: With on-site units.

944
02:26:33.760 --> 02:26:40.019
Boardroom: Typically, what's, what's most typical is 15% very low income on site. Right.

945
02:26:40.040 --> 02:26:57.800
Boardroom: And then, so they have to fee out for the… for the last 5%. And it starts with 15% before the density bonus, and so it may be a smaller percentage by the time you've added the extra floors. Yes, it's 15% of the base project, that's correct. So then, by the time you add… so it may be 5-10% by the time you get to the bonus. Okay. Thanks, that's all I have for now.

946
02:26:58.960 --> 02:27:15.059
Boardroom: Okay, thank you. I also had a question. I was curious, Councilmember, if you could speak… well, actually, you know, staff first. I was curious if you could speak to, kind of, the demand for those 2-3 unit,

947
02:27:15.220 --> 02:27:21.570
Boardroom: 2, 3 buildings. Yeah, the family-sized units. Can someone speak to the demand at all for those?

948
02:27:22.320 --> 02:27:31.550
Boardroom: You know, we, I'm sorry, we don't have that kind of analysis available, a demand, a market study for, by bedroom count.

949
02:27:31.740 --> 02:27:37.059
Boardroom: I mean, a lot of the development that is

950
02:27:37.290 --> 02:27:57.239

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Boardroom: closer to campus, no mystery to… it won't be a surprise to all of you, it ends up occupying… being occupied by students, and regardless of how many bedrooms there are. And so I think any… any market survey or study of Berkeley would probably be pretty skewed.

951
02:27:58.700 --> 02:27:59.579
Boardroom: Yeah, please.

952
02:27:59.700 --> 02:28:02.719
Boardroom: Yeah, and just to add,

953
02:28:02.900 --> 02:28:10.670
Boardroom: you know, and back to Councilmember Taplin's question about, sort of, community input and how this got its way into the plan, and I think that

954
02:28:10.920 --> 02:28:26.510
Boardroom: The idea behind the affordable and family-sized housing in the Muley was specifically from a community concern that we would be seeing more development, but it wouldn't be affordable, and there wouldn't be family-sized units.

955
02:28:26.610 --> 02:28:29.950
Boardroom: And so, part of a response to that concern was to create

956
02:28:30.510 --> 02:28:39.109
Boardroom: really a market exclusively for these type of projects, that would be able to, to utilize these parcels in the Muley. So, even

957
02:28:39.110 --> 02:28:53.409
Boardroom: even separate, specific demand study, we did want to be responsive to that concern and see if it could happen. Yeah, I appreciate that, thank you. Councilmember Kesarwani, is there anything you want to… I know you said that you were hoping to add flexibility, but could you speak more to that?

958
02:28:53.740 --> 02:28:58.040
Boardroom: Yes, you know, and flexibility because

959
02:28:58.330 --> 02:29:16.610
Boardroom: you know, when we make these zoning changes, and you know, this has been 11 years in the making, I know we weren't working on it non-stop, full-time for that period of time, but you know, we're not

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going to get another cut at this very easily, and so that… so my thinking is always, you know, let's… let's try to be more flexible.

960
02:29:16.760 --> 02:29:35.699
Boardroom: you know, anecdotally, I do know people want family-sized units. You know, you just… you meet people at preschool who say they moved to Emeryville because they couldn't find a family-sized unit. So, you know, I do think this is a need. 50% was… it just felt like a very high number of the units.

961
02:29:35.700 --> 02:29:43.749
Boardroom: to me, but, you know, I'm open to some number between 20 and 50, and the reason why I was concerned about 50%, Mr. Horner was

962
02:29:43.750 --> 02:30:02.910
Boardroom: conversation that we had had about the study saying that was the absolute sort of max of what was feasible, that's where I get concerned, because market dynamics can change over a 40-year time horizon up for this plan, and so I'd hate to see us have a requirement and then not get any development, because

963
02:30:03.240 --> 02:30:04.979
Boardroom: Right? Because some units…

964
02:30:05.020 --> 02:30:15.380
Boardroom: even if they might not be, you know, exactly what we had hoped for, is better than none. So, Mr. Erickson, do you want to chime in? Yeah, I did, thank you, Councilmember.

965
02:30:15.380 --> 02:30:25.959
Boardroom: I think the thoughts of the analysis that went into arriving at those percentages and the affordability levels and those sorts of things.

966
02:30:26.210 --> 02:30:30.400
Boardroom: did come from an assessment of

967
02:30:31.050 --> 02:30:36.420
Boardroom: Property value as it exists with the light industrial designation.

968
02:30:36.620 --> 02:30:44.400
Boardroom: And then the benefit that comes to the property of being zoned as resident, being allowed to have residential.

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969
02:30:44.670 --> 02:30:55.009
Boardroom: And then, looking at construction costs and making an estimate, I wouldn't… I wouldn't characterize it as a maximum. I would characterize it as something…

970
02:30:55.200 --> 02:30:57.829
Boardroom: that… looks feasible.

971
02:30:58.620 --> 02:31:12.979
Boardroom: And I frankly can't remember if this is in the implementation plan, but I think it is, and if it's not, it would be easy to add, would be to start with these percentages

972
02:31:13.280 --> 02:31:19.639
Boardroom: And then… See what happens after 3 or 5 years.

973
02:31:20.320 --> 02:31:29.189
Boardroom: And examine it, and maybe look at what's happening with the market at that point, and maybe consider reducing it in the future.

974
02:31:29.350 --> 02:31:35.189
Boardroom: But there is a… there is a fairly significant benefit in terms of property value.

975
02:31:35.330 --> 02:31:42.079
Boardroom: to make that zoning change from light industrial to residential.

976
02:31:42.620 --> 02:31:43.860
Boardroom: And…

977
02:31:44.110 --> 02:31:52.149
Boardroom: the analysis… we felt through the analysis that was done that this is something that's feasible, but the market is very dynamic.

978
02:31:52.360 --> 02:32:01.879
Boardroom: So if… if we don't see those properties, interest in developing those properties in 3 or 5 years, then…

979
02:32:02.380 --> 02:32:22.650

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Boardroom: to maybe go back and make the reductions in the percentage of affordability or of affordable housing or family housing. I think that that was the way that we were conceiving of it. Okay, well, you know, I appreciate that thought. I have to speak for people who can't afford housing today. They don't have 3 to 5 years.

980
02:32:22.740 --> 02:32:30.119
Boardroom: So, so that's why I, I am such a strong advocate for homes. People sleep in their cars.

981
02:32:30.290 --> 02:32:35.229
Boardroom: They sleep in these encampments that we had people give public comment about.

982
02:32:35.460 --> 02:32:36.730
Boardroom: So…

983
02:32:36.830 --> 02:32:55.480
Boardroom: I saw a sign back there that says, delay the plan. We waited 11 years to get homes that's on San Pablo Avenue. Like, how much time do we have to take to house people who are living on the edge, who are at risk of getting evicted, risk of becoming homeless, risk of getting displaced?

984
02:32:56.970 --> 02:33:17.589
Boardroom: So, you know, I represent the people of West Berkeley, the people of my district, but also the people who would like to be part of our community. I believe in an inclusive, vibrant community for people today and for the future. You can shake your head no, but I am the one who sits on the dais and gets to make the vote and decision tonight.

985
02:33:18.790 --> 02:33:30.909
Boardroom: Thank you. So I think that actually Margo is in the audience today and can maybe speak a little bit to my question about demand. Is that OK? I think you're —

986
02:33:33.040 --> 02:33:33.950
Boardroom: Thank you.

987
02:33:38.760 --> 02:33:39.480
Boardroom: Here's one.

988
02:33:40.550 --> 02:33:41.240
Boardroom: Either way.

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989
02:33:47.090 --> 02:33:54.080
Boardroom: Good evening, Mayor, members of the Council. I'm Margo Ernst, the Manager for Housing and Community Services.

990
02:33:54.260 --> 02:34:01.540
Boardroom: And, you were asking about the need for affordable family-sized housing, is that correct?

991
02:34:02.280 --> 02:34:21.359
Boardroom: Yes, I mean the demand, yeah, the demand. I think we do have a fairly high demand for, you know, family-sized units, and, we did, my, my colleague Anna Cash did remind me back there that we had one of our recent projects that had, did have family units, and it also had

992
02:34:21.500 --> 02:34:32.440
Boardroom: studios and one bedrooms that there was a significant demand for those family units, and actually a harder time filling the the studio in one bedrooms.

993
02:34:33.520 --> 02:34:53.460
Boardroom: Thank you. Yeah, I seem to remember at the, Model Shurik building, the purple one, that there were, were a lot of, of folks that were trying to, families that were trying to fill those three units. Correct. Yeah. Correct. Yeah, and, and for the way that the, you know, the pricing works on, on the different sized units,

994
02:34:54.140 --> 02:35:00.390
Boardroom: It's… The the studios and one bedrooms aren't that much…

995
02:35:00.490 --> 02:35:10.879
Boardroom: less expensive than the 2 and 3 bedroom units, and people do have that. We have a lot of families that need affordable housing, a lot of people with children. So

996
02:35:12.370 --> 02:35:18.730
Boardroom: Thank you. Thanks, Margo. Okay. All right. Do you want to go?

997
02:35:20.010 --> 02:35:24.390
Boardroom: Real quick, we're going to go to Councilmember O'Keefe and then we'll come back to you. Okay.

998
02:35:24.470 --> 02:35:46.080

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Boardroom: Go ahead. Yeah, thank you. I, since we're offering amendments during question time, I guess, I did have a small amendment. It was actually very similar to Councilmember Tregubs, which I really appreciate. You know, it wasn't… we didn't talk ahead of time, but it's not surprising that we both had the same concern, which is we're doing a lot of work with the commercial… with the corridors zoning update.

999
02:35:46.080 --> 02:35:48.000
Boardroom: To, try to protect

1000
02:35:48.000 --> 02:35:54.369
Boardroom: Small businesses that could be displaced through development and so I wanted, I also wanted to make sure that we,

1001
02:35:55.430 --> 02:36:12.160
Boardroom: whatever we end up doing, we haven't done that yet, but whatever we end up doing also applies equally to San Pablo. So, I appreciate, Councilmember Tregoop's amendment, and I had a sort of an addition to it that I actually shared with him, and he's gonna put it up on the screen. It's actually a very specific

1002
02:36:14.150 --> 02:36:18.010
Boardroom: Mitigation, measure that is

1003
02:36:18.060 --> 02:36:35.019
Boardroom: taken verbatim from the Planning Commission recommendation for the corridors. And it's, it's down, he's added it down below. It could include, but not limited to, the evaluation of a business license tax waiver for businesses who are displaced by developmental projects. I thought that was a really good suggestion.

1004
02:36:35.020 --> 02:36:38.289
Boardroom: And like I said, it's not official yet, but it's part of the planning.

1005
02:36:38.610 --> 02:36:53.400
Boardroom: Planning Commission's recommendation, so I would like to include it here in the same spirit of, Councilmember Tregub's amendment to, include anything that's considered in part of the CZU or Renaissance. So I just wanted to add that, and that's part of, I guess, our proposal now.

1006
02:36:53.570 --> 02:37:02.300

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Boardroom: Thank you so much. And yeah, I know I'm having folks sort of also present things even just because I knew that we had some people making —

1007
02:37:02.370 --> 02:37:17.920
Boardroom: amendments, or proposed amendments, and I wanted to make sure we were able to ask questions about those, and also that the public could see it then, and then if they have comments, they can comment on it as well, because I think that's helpful. I think it's good to do it in this order, actually, so… Yeah, I appreciate it. Yeah. Okay.

1008
02:37:17.920 --> 02:37:23.479
Boardroom: And also, it's getting late, so it's, like, the later we get, the, like, harder it is to, you know, think about it all. So, yes.

1009
02:37:23.900 --> 02:37:40.840
Boardroom: Yeah, go ahead. So, so, Mr. Horner, with the First Amendment that I gave you around… I didn't give it to you, but that I shared around, non-residential buildings going to 5 stories, or 75 feet.

1010
02:37:40.840 --> 02:37:45.289
Boardroom: Can you talk about the CEQA coverage for that change?

1011
02:37:49.700 --> 02:37:58.129
Boardroom: Got it. Yes, certainly. Yeah, that development standard would increase the maximum height from 40 feet and three stories.

1012
02:37:58.240 --> 02:38:05.510
Boardroom: as recommended by the Planning Commission, to 75 feet and 5 stories for non-residential buildings, staff…

1013
02:38:05.660 --> 02:38:14.020
Boardroom: Has been aware of this proposal and, considered the potential impacts of the consequential increase in commercial square footage.

1014
02:38:14.390 --> 02:38:22.569
Boardroom: and determine that the analysis in the addendum in the 2023-2031 housing element EIR adequately analyzed the potential impacts

1015
02:38:22.650 --> 02:38:27.690
Boardroom: Not only the planning commission recommendation, but the additional amendment that you proposed.

1016

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02:38:27.720 --> 02:38:43.710
Boardroom: The addendum assumed, actually, a decrease in total commercial use of about 319,600 square feet versus what was analyzed in the housing element EIR. So any increase in commercial use that's attributable to this amendment would at most

1017
02:38:43.800 --> 02:38:49.510
Boardroom: Represent probably an incremental increase over the commercial use analyzed in the housing element.

1018
02:38:49.680 --> 02:38:59.140
Boardroom: EIR. As a result, the housing element, analysis of commercial-related impacts continues to serve as a conservative basis for evaluating the amendment.

1019
02:38:59.310 --> 02:39:09.149
Boardroom: So, I mean, allowing taller non-residential buildings in a highly urbanized corridor does not change the environmental context evaluated in the housing element.

1020
02:39:09.330 --> 02:39:28.120
Boardroom: EIR, and key impact areas such as public services, recreation, are population-driven effects that are tied to residential growth. And so because this amendment does not increase residential capacity, these impact areas remain unchanged from what the housing element, EIR already analyzed.

1021
02:39:28.390 --> 02:39:37.620
Boardroom: And none of the project areas located in the very high fire hazard severity zone, so wildfire impacts would not be more severe than those that have already been studied.

1022
02:39:37.890 --> 02:39:54.160
Boardroom: Construction-related effects, such as noise and soil disturbance, have also already been addressed in the housing element EIR, and the proposed height adjustment does not change the type of construction activities anticipated, or doesn't introduce new environmental effects beyond those already identified.

1023
02:39:55.080 --> 02:39:59.409
Boardroom: For transportation and vehicle miles traveled, the

1024
02:39:59.570 --> 02:40:10.650

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Boardroom: High Zone Element update still remains applicable. Commercial uses in this corridor benefit from multimodal access and are located entirely within an identified transit priority area.

1025
02:40:10.780 --> 02:40:22.420
Boardroom: And even with additional commercial square footage, employee VMT would continue to fall well below the 17.72 vehicle miles traveled per employee significance threshold.

1026
02:40:22.630 --> 02:40:29.270
Boardroom: that was identified in the housing element EIR, and at most would only marginally increase it to about 11.7 VMT per employee.

1027
02:40:30.580 --> 02:40:38.830
Boardroom: So the potential carbon dioxide emissions per service population would remain well under the threshold of 3.7 megatons.

1028
02:40:39.310 --> 02:40:47.319
Boardroom: So the amendment aligns with the Housing Element Update's environmental framework and remains within the scope of impacts previously evaluated.

1029
02:40:49.200 --> 02:40:58.040
Boardroom: Okay, thank you very much, Mr. Horner. I have no further questions or comments. Thank you. Any other questions from the Council? I'd love to move to public comment.

1030
02:40:58.350 --> 02:41:16.000
Boardroom: Thank you. Okay, we are going to move on to public comment, and again, folks, if you are just tuning in, we are on item 34, adoption of San Pablo Avenue's specific plan. If you have a public comment on this item, please come forward. If you are, having someone cede you a minute.

1031
02:41:16.000 --> 02:41:25.999
Boardroom: If you could please make sure that's organized beforehand, and preferably that person is with you, or at least can wave their hand so I can see them easily. All right, we will start with Leah.

1032
02:41:29.760 --> 02:41:53.199
Boardroom: I started. Yes, Leah Simon Weisberg, District 2. I teach housing law and have been practicing for almost 35 years. No, I'm not that old. 25 years. The first thing is, is the way to make a housing affordable is you lower the land price. By increasing the number of units that you can put on any property, you're just increasing the value.

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1033
02:41:53.200 --> 02:41:58.649
Boardroom: You should be only allowing affordable housing to have that additional value.

1034
02:41:58.650 --> 02:42:06.170
Boardroom: That's just basic, and that's why social housing is about, that's why it works in other countries, and that's why it's not working here.

1035
02:42:06.170 --> 02:42:30.560
Boardroom: The, I, this is not ready. The needs to, I keep thinking this is like bread. Don't bake the bread yet. It's not ready. We don't have enough protections. The rent board, did a study, during the pandemic that looked exactly at this and what protections needed to be put in place. I sent it to many of your, staff. It's on the Berkeley Rent Board website.

1036
02:42:30.560 --> 02:42:33.960
Boardroom: website. Thank you.

1037
02:42:34.220 --> 02:42:57.639
Boardroom: One of the things that it talks about is specifically the the West Side and all the development that happened around Fourth Street and all of the apartments that were built. As a result of that, it's a whiter community. We've lost 21% of the Latino community since that project was built. It's wealthier and whiter as a result.

1038
02:42:57.870 --> 02:43:16.900
Boardroom: That has the same thing that's happened in many other cities across the country that have upzoned. In New York, which was the first place to upzone, they had that same thing happen, that areas that upzoned without significant protections and mitigation saw their communities get whiter and wealthier.

1039
02:43:17.040 --> 02:43:35.930
Boardroom: So, we have… please read that study. It was done for this area, and it looked at what we'd already done with the west side, and what we already did with the south side. There is evidence. The plan and the idea of us looking at this, it's a good beginning, but you don't have any of the protections. So, please, we need a little more work.

1040
02:43:46.720 --> 02:43:51.439
Boardroom: Hello, my name is Elijah, and I live right on San Pablo in Chaucer.

1041

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02:43:51.540 --> 02:43:54.839
Boardroom: The unit that I'm renting is part of this plan.

1042
02:43:55.120 --> 02:44:00.210
Boardroom: I'm pretty strongly in favor of the plan. I think it's really important that we build more housing downtown.

1043
02:44:00.320 --> 02:44:23.299
Boardroom: as a renter. I want my rent to be cheaper. That said, I have some complaints about the design standards document. I know that there was a strong effort made to make it light and easy and not burdensome. I think it's still quite burdensome. Specifically, sections 2.1, 2.2, 2.3, and 2.4, and all of 3.1 seem frankly a little bit ridiculous. I think it would be greatly improved if you took every location where it said one or like 2 or 3 or 4 of

1044
02:44:23.500 --> 02:44:27.220
Boardroom: Blanks, and replaced it with one of, if not none of.

1045
02:44:27.320 --> 02:44:45.219
Boardroom: Every additional requirement you add when you legislate the aesthetics of a building raises the price of the building. It's, like, very straightforward. I don't think the public really understands the amount of legislation of the aesthetics of the buildings that we build. I don't think they would support it if they did. I don't think they're happy with the results, and I think we should

1046
02:44:45.310 --> 02:44:48.980
Boardroom: Basically cut most of that, or at least pare it back dramatically. Thank you.

1047
02:44:58.040 --> 02:45:01.150
Boardroom: Hi, I have a minute from Anandamai.

1048
02:45:01.660 --> 02:45:24.980
Boardroom: Thank you. I wanted to thank Council people, Tregor, Tregub, and O'keefe for the suggestion of the protections for commercial spaces. But I'm really hoping that the Council will postpone adopting the plan until the projections are in place first.st That's very important. And I'm also hoping that

1049
02:45:24.980 --> 02:45:41.269
Boardroom: the Council will consider the lower base height, because we are really, really hoping to have included on-site affordable housing,

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because we really need to have socioeconomic integration across the city, and right now, our.

1050
02:45:41.420 --> 02:45:58.169
Boardroom: Our Housing Trust Fund housing is mostly placed where land is cheap, meaning it's in the same places where the poor people have always been kept, segregated away from high-resource districts and away from market-rate housing.

1051
02:45:58.170 --> 02:46:04.690
Boardroom: And so the state rejected our housing element draft in 2023.

1052
02:46:04.690 --> 02:46:27.639
Boardroom: requiring more fair housing actions, including better community improvements, reports on the progress of fair housing goals, and focusing more upzoning in the higher resource neighborhoods. I think you should consider that whatever you think your zoning for San Pablo is likely going to need to be zoned for the CZUs in order to meet state fair housing

1053
02:46:27.820 --> 02:46:37.270
Boardroom: requirements. And so, you know, the other issue, it's a flexibility that Rashi says that she insists she wants.

1054
02:46:37.310 --> 02:46:41.980
Boardroom: The, the density minimum

1055
02:46:41.980 --> 02:47:03.140
Boardroom: basically will limit the flexibility. And so, in order to have higher flexibility with different unit sizes, we need to have no, no, density minimum. So, please support a lower 5-story base zoning, no density minimum, and commercial protections before voting. Thanks, Amy.

1056
02:47:05.760 --> 02:47:07.860
Boardroom: Excuse me.

1057
02:47:07.990 --> 02:47:24.210
Boardroom: Good evening, Mayor, Council, staff. I am speaking now in a personal, individual capacity, no longer employed, retired from the city. So, I do want, as a city that I live in, to look diverse, to be affordable.

1058
02:47:24.520 --> 02:47:35.240

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Boardroom: and to not as a prior speaker. 2 prior speakers said objectively, look at the evidence. You will have a whiter, wealthier town and more empty units.

1059
02:47:35.240 --> 02:47:49.159
Boardroom: I really plead for all of you to go to a number of the brand new buildings and see how many are empty. How many of those expensive apartments that people are begging for are beyond most people's budgets? 3, 4, 5, $6,000 a month?

1060
02:47:49.580 --> 02:47:52.030
Boardroom: It's higher than many of our mortgages.

1061
02:47:52.300 --> 02:48:02.990
Boardroom: also for the Bmr units. They do need to be on site. I've been pleading, and I talked to prior council members, and I would show them the data. The below market rate unit.

1062
02:48:03.350 --> 02:48:18.600
Boardroom: When there are fewer on-site, and instead you have the alternative of the in lieu and payout, it's not enough. Thanks, Molly. Oh, I'm on the team for Berkeley. We're building a building. I'm San Pablo. Thanks. My church. Thank you.

1063
02:48:24.380 --> 02:48:35.750
Boardroom: The reason you don't allow non-residential buildings to be built as tall as residential ones is because commercial real estate is generally

1064
02:48:36.080 --> 02:48:44.879
Boardroom: priced higher than residential real estate, and therefore, if given the option, developers will only

1065
02:48:45.090 --> 02:48:50.879
Boardroom: They will tend to build more offices and non-residential,

1066
02:48:51.520 --> 02:49:02.700
Boardroom: buildings than residential ones, and that's not what we need. Secondly, I feel like a lot of people just reflexively hate tall buildings because

1067
02:49:03.390 --> 02:49:04.700
Boardroom: reasons.

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1068
02:49:05.340 --> 02:49:12.570
Boardroom: I'm suspicious of development because developers are greedy capitalists who want to make the most money.

1069
02:49:14.280 --> 02:49:27.669
Boardroom: I don't see why it's necessary to include them at all. They do not build the buildings. Construction workers do that. They do not design the buildings. Architects do that. Cut out the developers. Thank you.

1070
02:49:32.010 --> 02:49:41.190
Boardroom: Christopher Kroll representing Berkeley Neighborhoods Council. The BNC agrees with a five-story baseline height to incentivize the state density bonus.

1071
02:49:41.530 --> 02:49:51.039
Boardroom: Developers continue to show that they can build seven to eight-story buildings by using the state density bonus. They would still have the option to build even higher by providing more affordable units.

1072
02:49:51.100 --> 02:50:09.300
Boardroom: Therefore, a 5-story base on San Pablo Avenue would meet our RHNA goals, guarantee integration of affordable units across the whole corridor, and fulfill AB686. In addition, the City would gain low-income units faster than waiting to do so with the Affordable Housing Trust Fund. Thank you.

1073
02:50:10.520 --> 02:50:11.640
Boardroom: Thank you.

1074
02:50:15.950 --> 02:50:25.290
Boardroom: Catherine Varno, I live off Solano, so I'm keeping very close eye on what's happening with that. My comments.

1075
02:50:25.560 --> 02:50:36.320
Boardroom: are the same as many others. We want a vibrant… we want vibrant communities. We want not to make the same mistakes we made with downtown Berkeley. If you look at

1076
02:50:36.320 --> 02:50:48.559
Boardroom: If you want to see experience, look at some of the statistics of the Berkeley buildings. Only 8% ended up being affordable. Over 50% ended up being students. This is not…

1077

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02:50:48.560 --> 02:51:02.219
Boardroom: A neighborhood that's going to create long-term people being invested in the neighborhood, they have to move when they partner up or have families. So I'm against lowering the requirement for family units.

1078
02:51:02.380 --> 02:51:08.530
Boardroom: And, I am… I feel we must provide Anlu affordable units.

1079
02:51:08.730 --> 02:51:20.350
Boardroom: for people to stay in the neighborhood. I don't know what's going on with the trust fund. It doesn't seem like anything good that I can see. I don't see it happening. And that's my comment. Thank you. Thanks.

1080
02:51:25.900 --> 02:51:30.400
Boardroom: Hi. My name is Rachel Bradley, and I've lived in Berkeley all my life.

1081
02:51:30.540 --> 02:51:45.050
Boardroom: I'm here to entreat you to listen to the voices of the community, asking you to protect our independent small businesses and the special character of our neighborhoods by reconsidering the 7-story upzoning proposal for San Pablo Avenue.

1082
02:51:45.050 --> 02:52:09.969
Boardroom: Such a giveaway to developers would strip away their incentive to qualify for the state density laws by including on-site affordable housing, as we've already heard, which is an important social goal that can be protected by limiting the heights to five stories. For example, the developer of 2109 Virginia at the corner of Shattuck, the former Poulet, recently obtained approval to build an eight-story building in an area zoned for three stories by including a modest number of

1083
02:52:09.970 --> 02:52:21.450
Boardroom: below market rate units and relying on the density bonus. This is not too much for our community to ask. We also need to create programs to protect and nurture the existing businesses before any upzoning.

1084
02:52:21.450 --> 02:52:26.799
Boardroom: Thank you for taking the time to reconsider these important choices. Thank you.

1085
02:52:32.160 --> 02:52:35.479
Boardroom: Hello, I believe somebody's given me a minute of their time. Thank you.

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1086
02:52:36.740 --> 02:52:50.839
Boardroom: Thank you for giving me the opportunity to speak today. I'd like to speak about the necessity of more multifamily housing in Berkeley. My name is Lev Marcus. I currently live in Oakland, where I work as a mental health counselor. I'm part of a generation raised in Berkeley that could not afford to stay.

1087
02:52:50.950 --> 02:53:00.699
Boardroom: My wife and I grew up half a mile apart on Cedar Street. We met at Berkeley High, reconnected through a chance encounter on Telegraph five years ago, and got married at Northbury Community Church last year.

1088
02:53:01.190 --> 02:53:05.200
Boardroom: My life has been shaped by Berkeley, and I would like to put down my own roots here through homeownership.

1089
02:53:05.440 --> 02:53:12.009
Boardroom: Unfortunately, current housing costs have taken single-family homes that are most common in Berkeley completely out of reach for my wife and me.

1090
02:53:12.130 --> 02:53:28.640
Boardroom: Because many of our Berkeley friends are in a similar predicament, nine of us have joined together with the intention to buy and co-own a multi-unit property where we will live and raise our families in community. There's no other option. We need multi-unit properties to make a long-term, stable life in Berkeley possible for us.

1091
02:53:28.740 --> 02:53:44.360
Boardroom: To those worried about how this San Pablo plan would change the character of the neighborhood, like the previous speaker, I contend that the character of a neighborhood lies in its people, and that for the neighborhood to maintain its character, the people who were born there need to have a chance to live there in the future. Thank you.

1092
02:53:45.930 --> 02:53:47.190
Boardroom: Thank you.

1093
02:53:53.530 --> 02:54:08.550
Boardroom: My name is Oscar. I am a recent, new resident of Berkeley. I actually moved here from another city with really expensive housing, Boston, so I'm quite familiar with,

1094

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02:54:09.480 --> 02:54:14.240
Boardroom: Kind of the process of development, plans like this.

1095
02:54:14.830 --> 02:54:20.760
Boardroom: Beginning, but then not really going anywhere and the development's not really happening. I think

1096
02:54:20.950 --> 02:54:39.499
Boardroom: Plans like this are really important. I want to speak in support of them, because I agree with Lev before me that communities and character, of neighborhoods are built by the people, and in order for people to be there, there needs to be enough housing, and I think…

1097
02:54:39.900 --> 02:54:43.069
Boardroom: This is a good way to do that. Thanks.

1098
02:54:43.270 --> 02:54:44.390
Boardroom: Thank you.

1099
02:54:49.420 --> 02:54:50.460
Boardroom: Heck.

1100
02:54:50.670 --> 02:55:03.200
Boardroom: Peggy Bedell, District 1. Please postpone any vote on the plan as presently drafted. Without amendment, it is incomplete and will not provide the affordable, inclusive family homes.

1101
02:55:03.200 --> 02:55:16.789
Boardroom: Instead, it can perpetuate discriminatory building practices and may equally fail the state's requirements. It is incomplete because there are no explicit directives to protect local businesses from displacement.

1102
02:55:16.920 --> 02:55:25.140
Boardroom: It does not provide explicitly for turnkey commercial space or explicitly for usable public space.

1103
02:55:25.410 --> 02:55:44.830
Boardroom: The plan doesn't provide family homes because with a required minimum density of 145 units per acre, tiny units unfit for families will result. It does not provide affordable homes, as you have given away any requirement for inclusive housing by insisting on the high minimum density. We can get more.

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1104
02:55:44.830 --> 02:55:55.870
Boardroom: and better and inclusive units by reducing the height requirements to five stories, reducing the minimum density, and inviting the density bonus. Thank you. Thanks so much.

1105
02:56:01.440 --> 02:56:08.560
Boardroom: Hi, I'm Zach from D1. San Pablo's been through a lot.

1106
02:56:08.560 --> 02:56:26.020
Boardroom: I visit family there about twice a week, so I've seen a lot of it kind of up and down. You've got car parks, you've got parking lots, you've got shuttered shops. There's a corner, University in San Pablo, 3 out of 4, the retail, empty. It's got a lot of missing stuff.

1107
02:56:26.240 --> 02:56:43.410
Boardroom: But I think it's gonna survive, seven stories. I think it'll even thrive with seven stories. I think a lot of effort went into this plan to make it easier to build, live, open restaurants and stores, visit bars, work, and travel safely.

1108
02:56:43.430 --> 02:56:51.699
Boardroom: And it's a good plan. There is demand. Panoramic Northside filled in three months of opening.

1109
02:56:51.810 --> 02:56:58.840
Boardroom: And, let's just get it done, because the one thing San Pablo can't take more of is neglect. Thank you.

1110
02:56:59.620 --> 02:57:00.710
Boardroom: Thanks, Zach.

1111
02:57:05.680 --> 02:57:12.120
Boardroom: Yeah, I'm Tom Yamaguchi. I've been living on Channing Way about a block and a half.

1112
02:57:12.450 --> 02:57:29.639
Boardroom: from San Pablo since 1981. For the past couple of years, I've been watching the erection of a new exciting co-housing complex that's going up on the other side of San Pablo. I'm Channing.

1113
02:57:29.890 --> 02:57:36.400
Boardroom: It has not been a fun experience in many times, especially with the closed streets that I have to,

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1114
02:57:36.400 --> 02:57:53.140
Boardroom: do a detour on my bicycle, but it's been worth it. It's been worth the inconvenience, because I'm really excited about having these new neighbors come in, and I would love to see more new neighbors like them, people who are paying property taxes.

1115
02:57:53.320 --> 02:58:10.139
Boardroom: to fund our city services and supporting local businesses up and down the corridor and riding the public transit, getting more people on the bus with me up and down San Pablo. So, I'm happy to see those new dangers. Thank you. Thank you.

1116
02:58:15.410 --> 02:58:26.329
Boardroom: Well, I believe I have a minute over there, an extra minute. May not need it, hopefully. Thank you. Council members, Madam Mayor, my name is Aditya, I'm a constituent of D2.

1117
02:58:26.520 --> 02:58:28.660
Boardroom: I've been happy to call this

1118
02:58:28.940 --> 02:58:42.079
Boardroom: part of the San Pablo corridor home for four years now. Recently my partner and I were walking downtown towards Mitiera and a friendly neighbor had stopped us to chat and said you look neat in the neighborhood.

1119
02:58:43.350 --> 02:58:45.600
Boardroom: And… it was friendly enough.

1120
02:58:45.830 --> 02:58:48.919
Boardroom: But we both knew what he meant. He was saying, are you gentrifiers?

1121
02:58:51.020 --> 02:58:56.169
Boardroom: He pointed across the street and said, my parents were married there. It used to be a church.

1122
02:58:56.500 --> 02:59:00.679
Boardroom: They had to move. They grew up in the same house that me and my siblings now live in.

1123
02:59:00.810 --> 02:59:04.429

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Boardroom: But they had to, like, they've been there for decades, they got displaced.

1124
02:59:05.310 --> 02:59:07.060
Boardroom: I've grappled with this question.

1125
02:59:07.170 --> 02:59:09.010
Boardroom: Even before he asked it.

1126
02:59:09.250 --> 02:59:13.369
Boardroom: I'd like to think I'm not a gentrifier, but despite how I look, I don't have any tech money.

1127
02:59:14.000 --> 02:59:23.939
Boardroom: In fact, I've actively tried to depress rents by bothering my landlord, but more importantly, giving my neighbors resources and doing tenant advocacy.

1128
02:59:24.290 --> 02:59:29.349
Boardroom: And… The fact of the matter is, despite all of my individual actions.

1129
02:59:29.500 --> 02:59:35.539
Boardroom: I'm never going to be able to have as much of an impact as you will tonight or in the future regarding policies like this.

1130
02:59:36.330 --> 02:59:40.580
Boardroom: Truly, I support building more housing, especially affordable housing.

1131
02:59:41.340 --> 02:59:44.909
Boardroom: I'm not against development, and I know my neighborhood needs investment.

1132
02:59:45.050 --> 02:59:47.070
Boardroom: But without proper consideration.

1133
02:59:47.780 --> 02:59:55.260
Boardroom: The historically black and brown neighborhood that I call home will be inaccessible to people who have called the waterfront home for years far longer than I have.

1134

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02:59:56.110 --> 02:59:58.990
Boardroom: I would ask for more time to scrutinize this plan.

1135
02:59:59.200 --> 03:00:01.790
Boardroom: But really just to add a lot more protections in it.

1136
03:00:02.080 --> 03:00:09.189
Boardroom: It's not enough to build housing. We have an opportunity to ensure that the dearth of affordable housing is addressed in our community.

1137
03:00:09.420 --> 03:00:15.439
Boardroom: Just today at Cafe Layla, I was seated next to two landlords who were meeting to discuss their issues with Section 8.

1138
03:00:15.930 --> 03:00:18.640
Boardroom: This plan as it is caters to people like them.

1139
03:00:19.000 --> 03:00:22.250
Boardroom: Can I get one more minute? Yes. Thank you.

1140
03:00:23.780 --> 03:00:25.270
Boardroom: We should not rush this.

1141
03:00:25.610 --> 03:00:33.800
Boardroom: And add a lot of lang- and we should add a lot of language that includes more public resource stations, more public spaces, more affordable units.

1142
03:00:34.030 --> 03:00:41.549
Boardroom: and more opportunity to ensure that people already there get to flourish along with the people who will be coming in.

1143
03:00:42.120 --> 03:00:50.690
Boardroom: I'm excited to welcome new people as neighbors, as the people in the community have welcomed me. But I want to make sure that those people get to stay and be part of the journey with me.

1144
03:00:51.160 --> 03:01:00.020
Boardroom: I recommend all counselors read Kawasa Justa's Development Without Displacement report. It's fantastic, it has a lot of

1145

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03:01:00.090 --> 03:01:12.089
Boardroom: recommendations for development without kicking people out in a place that is ground zero for gentrification. And I would also like to second what Leah said. Read the Berkeley rent.

1146
03:01:12.280 --> 03:01:14.540
Boardroom: Rent Stabilization Board's report.

1147
03:01:14.750 --> 03:01:23.280
Boardroom: Right? Take those considerations into your consideration, and let's make this plan work for all of us. Thank you. Thank you.

1148
03:01:27.600 --> 03:01:37.019
Boardroom: Yes, I've been… emailing back and forth with my council member, Terry Taplin, about affordable housing.

1149
03:01:37.550 --> 03:01:39.849
Boardroom: And different ways to approach it.

1150
03:01:40.000 --> 03:01:46.570
Boardroom: And my… A little bit of research tells me that 60% of people need help with rent.

1151
03:01:47.050 --> 03:01:53.780
Boardroom: They need some kind of affordable housing. And so, if 60%, say we only had 20… 120,000 people.

1152
03:01:54.280 --> 03:01:57.679
Boardroom: We'd have 72,000 people needing help.

1153
03:01:58.340 --> 03:02:01.950
Boardroom: in Berkeley, and if there's 4 people living in a unit.

1154
03:02:02.070 --> 03:02:08.020
Boardroom: That would be 18,000 units need to be built. So if you're talking about whittling away.

1155
03:02:08.390 --> 03:02:16.929
Boardroom: And giving more and more leeway and more flexibility to developers to take away any kind of affordable housing.

1156
03:02:17.750 --> 03:02:26.839

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Boardroom: This is out of sight. It's… there's no… we can't even approach it. And you look… every time you take a walk and you see somebody in their tent.

1157
03:02:27.010 --> 03:02:28.730
Boardroom: Which they've just moved.

1158
03:02:29.230 --> 03:02:31.440
Boardroom: You face it. Thank you.

1159
03:02:34.740 --> 03:02:37.700
Boardroom: I have two extra minutes from Carla and Claudia.

1160
03:02:37.930 --> 03:02:46.279
Boardroom: So three, please. Hi, everyone. My name is Donald Simon. I am the president of Save Berkeley Shops. I'm a resident of D8.

1161
03:02:46.390 --> 03:02:55.650
Boardroom: And I want to talk about this plan because it was described today that its goal was to increase vibrancy and local business activity.

1162
03:02:56.010 --> 03:03:13.930
Boardroom: And it's really difficult to imagine a more inaccurate statement when you actually read through that 900-page-plus plan. The plan itself, on page 396, says that it will result in a net loss of 319,000 square feet of commercial space.

1163
03:03:14.520 --> 03:03:15.650
Boardroom: Think about that.

1164
03:03:16.480 --> 03:03:27.620
Boardroom: It does not do anything to promote business in this commercial corridor. It does everything to allow business to be replaced solely by residential development only.

1165
03:03:27.710 --> 03:03:38.729
Boardroom: On the four busy intersections that are referred to as the nodes, there are objective design standards that are said to facilitate more activization and more activation.

1166
03:03:38.810 --> 03:03:55.420
Boardroom: But there is nothing there that would require businesses at those nodes. Instead, the concept around activation is that would it

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allow business as usual to continue that we see in every Berkeley housing project that's been built in the last 10 years, where we have no ground floor retail.

1167
03:03:55.420 --> 03:04:03.049
Boardroom: And instead, what we have are big empty spaces, cold shells. There's no requirement for warm shells here.

1168
03:04:03.050 --> 03:04:18.369
Boardroom: And what we have are lobbies and gyms for the residents of that building. Nothing for the public. These are not public spaces. These are amenities for the tenants. Tell me how that is going to activate these areas to make them lively places to live and to be.

1169
03:04:19.150 --> 03:04:44.150
Boardroom: The other thing to talk that is most baffling here is that at the last council meeting you all acknowledged that council's previous approach to upzoning neighborhoods like downtown led to the disaster that we have there with stalled projects that have decimated the business environment and made them undesirable places to be. I cannot understand how just two weeks later we're back and you're proposing to upzone in the exact same manner that

1170
03:04:44.150 --> 03:05:00.689
Boardroom: nothing to address the stalled project. Nothing that says, as we've given you a plan with our community zoning plan, where you could say, we're not going to allow you to get a demolition permit until you can show us you have the money and the contractor lined up to build what you said you would.

1171
03:05:00.690 --> 03:05:24.419
Boardroom: How can you direct staff to do something to address a problem and then two weeks later move forward repeating the same mistake without even hearing back with staff about what can be done on it? The last thing is affordable housing. Let's quit calling our ordinance an inclusionary housing ordinance. It is an exclusionary housing ordinance because developers can just pay a fee and they don't have to put any on-site affordable housing.

1172
03:05:24.420 --> 03:05:43.040
Boardroom: By increasing the heights, you are decreasing the incentive for developers to use the density bonus, which means there will be no on-site housing, which means you will be eradicating businesses, not to provide the diverse Berkeley we want, but to provide a gentrified city that I don't believe anybody does. Please reconsider. Thanks, Donald.

1173

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03:05:50.600 --> 03:05:51.640
Boardroom: Good job.

1174
03:05:53.070 --> 03:06:09.609
Boardroom: So I have to follow Donald. Okay, so I have, my minute, and then I have Carla, and I think one individual over there. So I have three, but probably I can't make it till three. Okay. Sorry. Carol.

1175
03:06:09.900 --> 03:06:23.539
Boardroom: And who was the Carol Morozovic? And then this, oh, who's your 3rd person? I just saw 2. No, so 2, and then my and then yours. Okay, I thought you meant 3 people. No, no, thank you.

1176
03:06:24.230 --> 03:06:41.799
Boardroom: Council should postpone adopting the San Pablo Avenue plan until full attention is given to commercial tenant protection. I've lived there too long to see what has happened on San Pablo, and we all know the story of the lighting store, who was threatened. They were threatened with

1177
03:06:41.800 --> 03:06:47.050
Boardroom: doubling their rent to 16,000 a month, and they had to leave.

1178
03:06:47.050 --> 03:07:00.829
Boardroom: This kind of thing is going to happen rampantly. Have you done an AI picture of what you're going to create if it's all 8-story, 10-story buildings, and then you have

1179
03:07:01.040 --> 03:07:20.970
Boardroom: At night, those commercial developments that you're talking about raising from three or four stories to eight stories are going to be totally darkened. Who's going to want to walk on the street? Amy Baldwin took pictures of downtown Oakland where there's nothing going on the street. There's just mass buildings.

1180
03:07:21.280 --> 03:07:27.070
Boardroom: So it's really important to think about what it's going to look like when we're done.

1181
03:07:27.550 --> 03:07:41.940
Boardroom: San Pablo Avenue cannot become another center street. There must be clear protections for the city. Empty storefronts must be reimagined and perhaps have fees assessed to create and prevent — to prohibit blight.

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1182
03:07:42.130 --> 03:07:56.999
Boardroom: clear assistance to protect current businesses, such as lease protections, and help in temporary relocations. Many of you went to the Kala exhibition, where San Pablo Avenue legacy businesses were

1183
03:07:57.020 --> 03:08:15.939
Boardroom: given their time to show off. And this was, you know, orchestrated by Robert Rivera and Kala. We have many legacy businesses on San Pablo Avenue that need to be protected and treasured. They are our treasure. The small Japanese-American community there is our treasure.

1184
03:08:15.940 --> 03:08:18.669
Boardroom: So please don't just throw them out.

1185
03:08:18.780 --> 03:08:33.970
Boardroom: The San Pablo Avenue specific plan has failed to include, state-required place-based strategies that have any meaningful obligations behind them. So thank you.

1186
03:08:33.970 --> 03:08:45.309
Boardroom: Councilmember Chigeb and Councilmember Shoshana for considering how to protect our businesses. Of course, that's important. This is the lifeblood of our city.

1187
03:08:45.980 --> 03:08:59.670
Boardroom: Let me suggest one other thing about placemaking on San Pablo. It needs to include landscaped open spaces befitting Northern California. We live in Northern California, you guys, not New York City.

1188
03:08:59.700 --> 03:09:15.099
Boardroom: And we have beautiful coffee spaces. I don't know if you've seen the little coffee store set up behind Imasala on San Pablo Avenue near Cafe Layla, another beautiful spot. Can you imagine eight-story buildings shadowing them?

1189
03:09:15.830 --> 03:09:28.889
Boardroom: Can you imagine the beautiful Acme New Bakery? Terry, let's go. It's gorgeous there. Beautiful wood. And then imagine eight stories on either side. Thanks, Mary. Thank you.

1190
03:09:35.570 --> 03:09:41.350
Boardroom: Joel Meyerson, District 1. I'm truly puzzled.

1191

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03:09:41.460 --> 03:09:51.509
Boardroom: by the desire to have seven-story zoning on San Pablo without any on-site affordable housing, which the state density bonus law would require if the zoning was for five stories.

1192
03:09:52.300 --> 03:10:02.270
Boardroom: I'm not the first person to point out that shown at Virginia and Shattuck, even three-story zoning allows for an eight-story building if some affordable housing is included.

1193
03:10:02.830 --> 03:10:07.669
Boardroom: Keyword is included, on site, not built somewhere else.

1194
03:10:08.060 --> 03:10:21.419
Boardroom: Berkeley residents want inclusive, affordable housing now, not segregated housing that will maybe be built somewhere sometime in the distant future. Keep the five-story zoning. Thank you.

1195
03:10:22.670 --> 03:10:23.560
Boardroom: Thanks.

1196
03:10:24.230 --> 03:10:32.709
Boardroom: I have one minute from Jean. Your minute. Any other minutes? Okay, so I got two extra.

1197
03:10:33.430 --> 03:10:42.179
Boardroom: Sorry, who was your second? A blue shirt next to him. Your second minute, though? Or you are giving him? Okay.

1198
03:10:42.190 --> 03:10:55.720
Boardroom: Hi, my name is Dietmar Lorenz. I'm an architect, D1, been there for 30 years. I like to focus on the 5 versus 7 stories. It's a kind of a false choice, because, as many of you confirmed.

1199
03:10:55.720 --> 03:11:08.029
Boardroom: It all will end up in a build-out of 7 to 8 stories anyway. It's just the question whether the affordable housing will be on-site or segregated. So, I'd urge you to adhere

1200
03:11:08.130 --> 03:11:10.200
Boardroom: To the public,

1201
03:11:10.280 --> 03:11:35.000

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Boardroom: review plan from last October that took 3 years to produce, and a ton of money for consultants that arrived at 5 stories. I'd also urge you to listen to the minority opinion on the planning commission by Charles Kahn, who happens to be the most experienced person by far on that panel, a practitioner who has done hundreds, if not thousands, of units in Berkeley.

1202
03:11:35.000 --> 03:11:38.110
Boardroom: And really understands the number and the background.

1203
03:11:38.110 --> 03:11:47.840
Boardroom: And he made this from deep knowledge, not because he was told from above that he should raise the number. So he says five stories. But then the most —

1204
03:11:47.840 --> 03:11:53.179
Boardroom: Important reference point for us is probably Senate Bill 79.

1205
03:11:53.180 --> 03:12:08.260
Boardroom: which prescribes heights for buildings on transit-rich corridors and the BART stations. But this would be a Tier 2, and SB 79 would prescribe 65 feet, or 6 stories.

1206
03:12:08.260 --> 03:12:23.259
Boardroom: on a transit-rich corridor. However, San Pablo isn't even a transit-rich corridor now. It doesn't meet the definitions of 79, and… but it could, and I agree that we should plan it to be conducive to

1207
03:12:23.370 --> 03:12:38.690
Boardroom: meet Sb. 79, and want to have enough people that transit really works on that corridor. So if we look at this 65 feet. But the point of Sb. 79 is that the affordability criteria are already baked in.

1208
03:12:39.020 --> 03:12:50.849
Boardroom: And, you know, if you reverse engineer that and say, if you take the affordability that's required in SB79, what would the base zoning have to be to meet that? And surprise, surprise.

1209
03:12:50.850 --> 03:13:04.649
Boardroom: The number is five stories. So with five stories, you're meeting — and it's actually overshooting it. It wouldn't allow 65, but 77 feet by the formula.

1210
03:13:04.650 --> 03:13:15.350

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Boardroom: And, but, but anyway, so SB79, I think is a really good reference point coming down from the state. And so I, I like, you know, the way Councilmember Blackaby

1211
03:13:15.350 --> 03:13:30.729
Boardroom: phrase that is, and put it very eloquently, have a five-story base, and let the state density bonus do the work. I think this is really boiling it down in one sentence. And, you know, also, 15 seconds left, it will help you

1212
03:13:31.220 --> 03:13:41.010
Boardroom: Okay, I got… thank you, thank you, Laura Babbitt. So the, you know, the current housing element at first was rejected.

1213
03:13:41.010 --> 03:13:56.160
Boardroom: kind of an embarrassment for a city like Berkeley to fall flat on that, and then there was some last-minute struggle and tweaking to get it in, but one of the key deficits in that plan was the lack of attention to affirmatively furthering fair housing.

1214
03:13:56.250 --> 03:14:14.080
Boardroom: And if you start with a seven-story base, and then the housing, essentially, the affordable housing gets kind of packaged and segregated, that does not lead you on the right path. It virtually guarantees that you would fail the next housing element.

1215
03:14:14.130 --> 03:14:31.220
Boardroom: And so I think it really behooves the city to take that very seriously. And again, this is not about what you end up with a smaller or a bigger thing. You always end up with seven to eight stories. The question is just, how do you allocate the affordable units, and when do you get them?

1216
03:14:31.220 --> 03:14:45.779
Boardroom: You know, if they are integrated and inclusionary, you get them when these projects get built, not at some later date. And also, I don't think you can look in the rearview mirror for matching grant funding, because this has dried up, and you cannot make projections in the future. Thank you. Thanks.

1217
03:14:51.570 --> 03:14:56.579
Boardroom: Okay, I think I have two minutes. Okay.

1218
03:14:57.010 --> 03:15:00.440
Boardroom: So I didn't expect to speak on this.

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1219
03:15:00.530 --> 03:15:07.819
Boardroom: I did expect to speak on the San Pablo plan, but I didn't think that I would have to ask…

1220
03:15:07.820 --> 03:15:12.690
Boardroom: talk about the amendment that was suggested here on the 50 feet.

1221
03:15:12.690 --> 03:15:30.020
Boardroom: As many of you know, I do attend the Planning Commission meetings, just like many of our city meetings. And there was the 50 feet that was written by, and directed by Charles Kahn, an architect that many of us respect.

1222
03:15:30.080 --> 03:15:32.360
Boardroom: was very intentional.

1223
03:15:32.430 --> 03:15:46.140
Boardroom: That is not about residences in the building. It is about making sure that we have the opportunity for businesses in the building and commercial space, so that we don't have a big wall

1224
03:15:46.570 --> 03:15:55.599
Boardroom: Walking down the street that we can't see through, that there's no activity, that there's no street activity. So if all of you think about Milvia.

1225
03:15:56.130 --> 03:16:06.350
Boardroom: And walking towards University, and you walk by that building that used to be Akokole, and is now 7 and 8 stories.

1226
03:16:06.370 --> 03:16:20.539
Boardroom: And you walk by a wall, and you walk by windows that you can't see through, and these are all things for the residents, and that is not commercial space. There is that tiny commercial space.

1227
03:16:20.540 --> 03:16:34.140
Boardroom: Do you have a question, Mr. Blackaby, Councilmember Blackaby and Luna Parra, while you are talking, while I'm trying to explain this to you? Excuse me, could you just address the Council as a body, please? Thank you. Right, but they're not listening.

1228

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03:16:34.860 --> 03:16:47.189
Boardroom: You're talking about Al-Khokhari. OK. So we — Let's stop back and forth, please. Go ahead. OK. So we're talking about that big wall of nothing.

1229
03:16:47.370 --> 03:16:59.260
Boardroom: And there's no commercial activity and there's no opportunity for businesses. We do have that tiny business at the corner, which is doing quite well, but there's not room for other businesses.

1230
03:16:59.260 --> 03:17:11.410
Boardroom: So think of this as really as a follow up of what Donald Simon is talking about, having space for businesses. It is very intentional that 50ft.

1231
03:17:11.410 --> 03:17:22.910
Boardroom: so that businesses can come back, and we have lots of activity on San Pablo, and it just doesn't become

1232
03:17:22.910 --> 03:17:33.249
Boardroom: a blank wall, and we have too much of that already on San Pablo. So that is my main point.

1233
03:17:33.740 --> 03:17:48.020
Boardroom: And the other thing that really worries me about the plan that we have, that we've been presented tonight, is that it really feels so much like a gentrification plan.

1234
03:17:48.170 --> 03:17:51.469
Boardroom: That is just for the wealthy.

1235
03:17:52.190 --> 03:18:01.180
Boardroom: And we're not going to get the affordable housing that we need. And we really do need family housing. Thanks. Thanks, Ellie. Thank you.

1236
03:18:03.740 --> 03:18:04.930
Boardroom: Okay.

1237
03:18:05.120 --> 03:18:14.170
Boardroom: We are going to take a brief 10-minute break, and then we're going to take the online comments, and then go into Council deliberations. Thank you.

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1238
03:18:14.380 --> 03:18:15.570
Boardroom: Thank you so much.

1239
03:18:17.030 --> 03:18:34.469
Boardroom: for your patience. Okay. I do think it's worth mentioning that, unfortunately, Councilmember Lunapara had to go back home, because she's not feeling well. But she will be taking the meeting from home. Rose, do you want to say anything about that? Or… I know she's not quite on yet.

1240
03:18:34.570 --> 03:18:49.950
Boardroom: Yeah. Councilmember Luna Parra has shared with us her intention to continue the meeting at home under the just cause provision of the Brown Act due to illness. So when she does join, we'll go through that script to allow her to participate.

1241
03:18:50.900 --> 03:18:52.890
Boardroom: Thank you. Thank you very much.

1242
03:18:53.030 --> 03:19:00.160
Boardroom: Okay, we are taking public comment online. There are 16 hands raised online. So let's get into it.

1243
03:19:00.550 --> 03:19:03.439
Boardroom: Alright, our first speaker is Donna.

1244
03:19:05.750 --> 03:19:11.770
Donna: Hi, I am ceding my minute to Tony Mester.

1245
03:19:13.780 --> 03:19:17.789
Boardroom: All right, give us just a second, please.

1246
03:19:19.140 --> 03:19:19.840
Boardroom: Okay.

1247
03:19:25.530 --> 03:19:29.079
Boardroom: Looking for Tony…

1248
03:19:35.010 --> 03:19:36.999
Boardroom: Oh, there we go, yep.

1249

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03:19:37.220 --> 03:19:41.259
Boardroom: Got it. Thank you very much. We will save your minute, Donna, for Tony.

1250
03:19:44.410 --> 03:19:46.919
Boardroom: All right, our next speaker is

1251
03:19:47.230 --> 03:19:50.990
Boardroom: And apologize for the pronunciation. Chatting.

1252
03:19:51.450 --> 03:19:52.540
Boardroom: Jatin?

1253
03:19:57.810 --> 03:20:04.080
Jatin: Hi, yeah, my name is Jatin. I live just off of San Pablo Avenue.

1254
03:20:04.180 --> 03:20:09.110
Jatin: On Dwight Way with, my wife and our 10-month-old son.

1255
03:20:09.230 --> 03:20:22.669
Jatin: I wanted to obviously start off by saying, we're in an historic housing shortage, and it's urgent that every part of every Bay Area city does its part to build more housing. But I also want to share my personal perspective.

1256
03:20:22.670 --> 03:20:33.470
Jatin: I moved to the Bay Area 10 years ago for a job. I built my life here, and I fell in love first with San Francisco, and now Berkeley. Berkeley is the city that my son will grow up in. He will call home.

1257
03:20:33.470 --> 03:20:53.260
Jatin: And I want him to grow up in a city that he can actually afford to live in. To do that, we have to build a lot more housing than we do today. And that means dense multifamily housing along San Pablo Avenue, where today a lot of lots are auto shops, parking lots, car washes, and single story strip malls.

1258
03:20:54.070 --> 03:21:06.209
Jatin: I also want my son to grow up near San Pablo Avenue that is bustling and vibrant because of new neighbors, new neighbors who bring more foot traffic, and I urge the Council to pass this plan. Thank you.

1259
03:21:06.210 --> 03:21:07.290

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Boardroom: Thanks for your comment.

1260
03:21:08.430 --> 03:21:12.959
Boardroom: All right. Our next speaker is Cheryl Davila, former council member.

1261
03:21:15.660 --> 03:21:20.210
Cheryl Davila, Former Councilmember, Founder CEMTF: Yeah. So I'm a 45 year resident of district two.

1262
03:21:20.460 --> 03:21:26.620
Cheryl Davila, Former Councilmember, Founder CEMTF: And, the gentrification is real.

1263
03:21:26.870 --> 03:21:34.979
Cheryl Davila, Former Councilmember, Founder CEMTF: Every morning I look out my window and I see gentrifiers. I don't have a problem with that, but we need to have…

1264
03:21:35.320 --> 03:21:43.150
Cheryl Davila, Former Councilmember, Founder CEMTF: affordable housing. We don't need a bazillion story buildings along the corridor.

1265
03:21:43.880 --> 03:21:56.219
Cheryl Davila, Former Councilmember, Founder CEMTF: And we also need to make sure that the businesses thrive, because people aren't gonna come there just to live there. We need to have businesses to support them, and to make sure that you're not, like.

1266
03:21:56.340 --> 03:22:04.250
Cheryl Davila, Former Councilmember, Founder CEMTF: creating monster buildings that are fugly,

1267
03:22:05.050 --> 03:22:07.729
Cheryl Davila, Former Councilmember, Founder CEMTF: We need to, like, have a community.

1268
03:22:08.760 --> 03:22:15.759
Cheryl Davila, Former Councilmember, Founder CEMTF: along San Pablo. And you know what? I don't know what outreach happened, but I wasn't aware of any of those meetings, or…

1269
03:22:15.860 --> 03:22:21.189

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Cheryl Davila, Former Councilmember, Founder CEMTF: provided, and I know a lot of my neighbors weren't either, so the community input.

1270
03:22:21.190 --> 03:22:22.200
Boardroom: Thank you.

1271
03:22:22.760 --> 03:22:25.339
Boardroom: Next up is Zach Goldberg.

1272
03:22:26.560 --> 03:22:39.030
Zak Goldberg: Hey, this is Zach from D1 again, or D2. I live 5 minutes away from San Pablo, and a 10-minute walk from the university in San Pablo node. I'm fully supportive of this plan.

1273
03:22:39.030 --> 03:22:47.209
Zak Goldberg: I feel the emotion that the Councilwoman from D. 1 expressed before, when I saw a poster up opposing the plan.

1274
03:22:47.210 --> 03:22:59.329
Zak Goldberg: It really just made me mad as a millennial whose, you know, cohort is priced out of cities like Berkeley everywhere. We need more housing, we need to now, let's make it easier for developers to build

1275
03:23:00.180 --> 03:23:01.040
Zak Goldberg: Thank you.

1276
03:23:03.150 --> 03:23:04.150
Boardroom: Thank you.

1277
03:23:04.260 --> 03:23:05.989
Boardroom: Next up is Noah.

1278
03:23:09.390 --> 03:23:10.690
Noah: Hi, can folks hear me?

1279
03:23:11.330 --> 03:23:12.240
Boardroom: Yes.

1280
03:23:12.560 --> 03:23:17.600
Noah: I'm here with my wife, also a Berkeley resident. She's going to cede a minute to me. Hello.

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1281
03:23:17.600 --> 03:23:19.999
Boardroom: Thank you. You have two minutes.

1282
03:23:20.000 --> 03:23:32.650
Noah: Okay. Good evening, my name is Noah Broad. I'm speaking in my personal capacity as a Berkeley resident, but I've spent 15 years working in housing, homelessness, and economic development, including with HUD and the Small Business Administration.

1283
03:23:32.690 --> 03:23:46.229
Noah: And I've also been part of a development on the corridor, the Berkeley Moshav Cohousing Project that someone spoke favorably about earlier. I submitted some written comments, so I'm going to be brief. I support adopting the San Pablo Plan.

1284
03:23:46.230 --> 03:24:04.260
Noah: But just without the minimum density standard. The plan is well designed, it reflects a real community effort, and I think it's going to meaningfully change how San Pablo evolves. But the plan that you're replacing tonight was also adopted with a vision for transforming the corridor, and it didn't… that one didn't necessarily achieve its goals.

1285
03:24:04.350 --> 03:24:05.130
Noah: And…

1286
03:24:05.130 --> 03:24:27.369
Noah: That's why I'm speaking against the amendment to the agenda that was added a couple days ago, but in favor of moving ahead with the plan's approval. That amendment sets a minimum of 145 units per acre along all 2.3 miles of the corridor. And that mandatory minimum is kind of like a sign that says you must be this tall to ride at a fair.

1287
03:24:27.370 --> 03:24:39.900
Noah: Missing middle projects, sorry, too short. Co-ops, too short. Co-housing projects like Berkeley Moshav, condos and larger family unit style buildings, sorry, no shorties.

1288
03:24:39.900 --> 03:24:54.110
Noah: We know that we need more housing, we know we need more housing of all types and modalities, and I support that goal. 100% want to caution the Council against adopting an amendment that reduces the number and variety of builders that can participate in the corridor's future.

1289
03:24:54.150 --> 03:25:05.589

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Noah: It reduces competition to develop the corridor also, and it reduces pressure on the bigger developers to act, you know, because they can land bank. They can buy stuff, leave it empty forever.

1290
03:25:05.600 --> 03:25:21.059
Noah: So we need more housing of every type. And the 2.3 mile length of the corridor, it's just a different type of corridor than like Telegraph or Adeline. It's a much more diverse one that can support a wider range of heights.

1291
03:25:21.060 --> 03:25:21.900
Boardroom: So…

1292
03:25:21.920 --> 03:25:25.359
Noah: I approve the… or I support the passage of the…

1293
03:25:25.360 --> 03:25:27.149
Boardroom: Thanks, Noah. Thanks for your comment.

1294
03:25:27.730 --> 03:25:30.730
Boardroom: Our next speaker is David Scheer.

1295
03:25:32.210 --> 03:25:36.130
David Shere: Hi! I urge you to approve this item tonight.

1296
03:25:36.130 --> 03:26:00.219
David Shere: I serve on the Housing Advisory Commission, but I'm speaking on my own behalf. We need a diversity of affordable housing in this city. On-site units are great. They do not serve special needs populations. They do not serve extremely low income households yet. They do not serve the homeless. They do not serve seniors who are living entirely on Social Security or SSI. Only the Housing Trust Fund can do that. The plan as it is will result in tens of millions of dollars to the Housing Trust Fund.

1297
03:26:00.410 --> 03:26:24.230
David Shere: I want more BMR units, but the city cannot create broadly affordable housing by writing a law that says, I declare housing affordability! That doesn't work. That has never worked. Last, I need to set the record straight about state density bonus law, because there's some incorrect information out there. The idea that seven-story base means no SDBL is totally wrong. It is, respectfully, rather ignorant of what SDBL is and how it's used.

1298
03:26:24.230 --> 03:26:34.310

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David Shere: Taller buildings are what people fearmonger about, so that's the focus, but it's not a hype bonus. That's not what it is or how it works. Every project of a certain size will use state density bonus law.

1299
03:26:34.480 --> 03:26:35.090
Boardroom: Thank you.

1300
03:26:35.090 --> 03:26:35.570
David Shere: you.

1301
03:26:37.780 --> 03:26:41.119
Boardroom: Our next speaker is CLP.

1302
03:26:43.390 --> 03:27:00.990
CLP: Hi, my name's Casey, I'm a DT resident, and I urge the Council to adopt this. I'm super excited for the future of what San Pablo Ave can be. I'm really tired of empty lots, and.

1303
03:27:01.720 --> 03:27:14.899
CLP: you know, a lack of vibrancy. I would like it to be a place that's enjoyable to walk. I live on the lower end of where this specific area plan would fall.

1304
03:27:14.900 --> 03:27:37.560
CLP: And there's just not a lot around here. And if we could have more residents, we could have more shops and it could be a walkable, bikeable, transit friendly place. It would be lovely. And I'd love for my kids to be able to grow up and be able to live in the in this area and this plan will help us get there. So thank you and I urge you to vote yes.

1305
03:27:39.350 --> 03:27:40.330
Boardroom: Thank you.

1306
03:27:42.170 --> 03:27:44.570
Boardroom: All right, John Jackson.

1307
03:27:46.320 --> 03:27:49.249
Jon Jackson (he, him) on Ohlone land: Hello, I would like to.

1308
03:27:49.360 --> 03:27:51.960
Jon Jackson (he, him) on Ohlone land: Seed my minute to morning.

1309

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03:27:52.700 --> 03:27:53.900
Jon Jackson (he, him) on Ohlone land: Yeah, good morning.

1310
03:27:55.210 --> 03:28:01.039
Boardroom: Okay, I do see Amoni on here, so John will make sure she gets your minute. Thank you.

1311
03:28:04.810 --> 03:28:08.210
Boardroom: Next speaker is Andrew Talbot.

1312
03:28:10.020 --> 03:28:13.670
Andrew Talbot: Hi, yes, thank you for the chance to speak on this item.

1313
03:28:13.850 --> 03:28:15.589
Andrew Talbot: I definitely support

1314
03:28:16.500 --> 03:28:27.170
Andrew Talbot: the measure as it is, and would welcome more neighbors in my neighborhood. I'm in D1, north in Cedar, and just near San Pablo. San Pablo's some of the

1315
03:28:27.370 --> 03:28:35.589
Andrew Talbot: richest land in the world, probably, I mean, especially in the country, and that we have dilapidated buildings and empty lots on it is a disgrace.

1316
03:28:35.800 --> 03:28:54.350
Andrew Talbot: I also would love to have more affordable units, but if you use unfunded affordability mandates, that means you're just taxing middle-class and lower-class renters to… when we should instead be using funded mandates that tax wealthy landowners and homeowners. Thank you.

1317
03:28:55.960 --> 03:28:57.040
Boardroom: Thank you.

1318
03:28:58.930 --> 03:29:01.540
Boardroom: All right, Martin Hammer.

1319
03:29:06.150 --> 03:29:14.100
Martin Hammer: My name is Martin Hammer. I'm an architect, and I've lived and practiced in Berkeley for 27 years. I live in District 1.

1320

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03:29:14.730 --> 03:29:26.649
Martin Hammer: I object to blanket upzoning of the entire San Pablo corridor, which will undoubtedly create unintended consequences. Not all portions of San Pablo Avenue are the same.

1321
03:29:27.130 --> 03:29:37.739
Martin Hammer: Instead of approving this plan, I encourage an end-to-end analysis by planning staff to see what type of upzoning, if any, is appropriate for each section.

1322
03:29:38.370 --> 03:29:48.450
Martin Hammer: Some of you may be familiar with Jane Jacobs classic book on urban planning, the death and life of American cities. It's a recommended reference point.

1323
03:29:48.850 --> 03:29:57.970
Martin Hammer: and to be careful with what is allowed as a matter of right versus requiring administrative use, permit or design view. Thank you.

1324
03:29:58.790 --> 03:30:00.700
Boardroom: Thank you.

1325
03:30:03.790 --> 03:30:06.700
Boardroom: Our next speaker is Sean Hart.

1326
03:30:07.270 --> 03:30:30.589
Sean Hart: Hi, yeah, my name's Sean Hart. I'm a renter here in Berkeley, and I'm strongly in support of 7 stories of the speaker just before me called blanket up zoning. I think that's a great phrase. That's exactly what we need. So 7 stories of blanket up zoning on San Pablo, and I encourage you to advance it tonight. I think this is a great proposal. There's been some talk about the State density bonus law tonight as well. The Governor just signed a law strengthening that

1327
03:30:30.590 --> 03:30:44.640
Sean Hart: And this would enable Berkeley to take even more advantage of state density bonus. I urge you to vote yes on as much housing and vibrant commercial activity as we can possibly have, so rents come down, and also renters just have more options to choose from here on San Pablo and everywhere else in the city. Thank you.

1328
03:30:45.310 --> 03:30:46.320
Boardroom: Thank you.

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1329
03:30:50.120 --> 03:30:55.410
Boardroom: All right, next speaker is the caller with the number ending in 211.

1330
03:30:56.730 --> 03:31:02.140
1510****211: Hi, now I have a comment about housing in Berkeley in general. I lived in Berkeley for 62 years, and

1331
03:31:02.390 --> 03:31:14.690
1510****211: Bought house in Craigmont, 1968, for 28,000 houses a day. My concern, though, earthquakes. Big giant earthquakes, faults running under our feet. The Haverfault is called the…

1332
03:31:15.040 --> 03:31:32.210
1510****211: the sleeping monster. If this thing goes 7 magnitude, there's a quake which it did in 1868. It's overdue by about 20 years. It does. All of this big, deeply built, giant apartment buildings, prefabricated, are going to collapse.

1333
03:31:32.430 --> 03:31:44.810
1510****211: We have to consider new engineering in any new apartment building in Berkeley to survive. It will happen. It runs under Piedmont Avenue, it runs under Arlington, it's run under,

1334
03:31:44.810 --> 03:31:53.900
1510****211: All the way to Fremont is a giant, huge earthquake. Everybody was in 1987 who had that San Francisco earthquake. That was 200 miles away.

1335
03:31:54.070 --> 03:31:59.819
1510****211: It destroyed the Bay Bridge, one big section of the Bay Bridge fell, and Cypress Freeway collapsed.

1336
03:31:59.820 --> 03:32:02.559
Boardroom: Thank you. Thanks for your comment. Your time's up.

1337
03:32:03.820 --> 03:32:06.859
Boardroom: Our next speaker is Otto Pippenger.

1338
03:32:07.690 --> 03:32:12.780
Otto Pippenger: Hi, thanks so much for having me. However, I am ceding my minute to Moni.

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1339
03:32:14.100 --> 03:32:18.079
Boardroom: All right. Thank you. We'll have another minute. Thank you.

1340
03:32:21.560 --> 03:32:23.640
Boardroom: Next up is Cat.

1341
03:32:25.230 --> 03:32:26.030
Kat: Hi there.

1342
03:32:26.300 --> 03:32:40.599
Kat: So one thing I love about living here, and that's a point of pride for Berkeley is that we have so many more independent businesses than chains, and I'm worried that the existing commercial tenants that give South San Pablo's cultural identity will be pushed out if protections are not mandatory upfront.

1343
03:32:40.660 --> 03:32:54.710
Kat: The canary in the coal mine is on life support. More commercial and retail closed in San Pablo in the last 10 years than opened. Everyone loves to put photos of the cute shops at Dwight and San Pablo in their slide decks, but it really shouldn't be allowed because nothing like that ever gets built here.

1344
03:32:54.740 --> 03:33:05.980
Kat: Housing can bring customers, but it doesn't automatically create a lively street. Concrete coal shells tell small indie businesses to go away, but they are a good place to put a Verizon or Chipotle.

1345
03:33:06.020 --> 03:33:20.849
Kat: Commercial units need to be small, warm, and affordable. I don't want to walk down San Pablo passing nothing but Amazon lockers, vape and crotum shops, Waymo loading curbs, ghost kitchens, and empty storefronts in the future. So please do what you can to make sure that that doesn't happen.

1346
03:33:20.850 --> 03:33:26.099
Kat: I also second Martin's suggestion that everyone read "The Death and Life of American Cities" by Jane Jacobs.

1347
03:33:26.100 --> 03:33:28.670
Boardroom: you Thanks, Kat.

1348
03:33:28.810 --> 03:33:33.610

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Boardroom: All right. Our next speaker is Moni and Moni. You have 3 min.

1349
03:33:39.200 --> 03:33:41.530
Moni: Hi, my name is Moni Gongo Batai.

1350
03:33:41.640 --> 03:33:48.820
Moni: The San Pablo specific plan is a pie in the sky proposal that hopes to create something it cannot.

1351
03:33:49.200 --> 03:33:57.359
Moni: Blanket upzoning is based on the false notion that upzoning automatically leads to more housing or more affordability.

1352
03:33:57.930 --> 03:34:04.820
Moni: What it does do is increase the value of the land, pushing out small businesses and affordable housing tenants.

1353
03:34:05.370 --> 03:34:06.290
Moni: How?

1354
03:34:08.400 --> 03:34:23.739
Moni: Upzoning… landlords anticipating the possibility of and are approached by corporate developers who can… who can make a much higher offer on their property will double their rent, as they seem to have done to Berkeley Lighting Shop, which is on San Palapalo Avenue, and just got kicked out.

1355
03:34:24.020 --> 03:34:30.220
Moni: Or use some other vehicle to push out their tenant so they can accept a corporate developer offer.

1356
03:34:32.430 --> 03:34:41.510
Moni: In Emeryville, upzoning resulted in a 25% increase in overall rents. That was reported by their local paper.

1357
03:34:41.920 --> 03:34:49.260
Moni: As we know from what happened to Center Street, Missing Link, the Biotech Building in Aquatic Park, at Aquatic Park.

1358
03:34:50.580 --> 03:34:55.670
Moni: We know that develop… corporate developers will buy properties and then sometimes let them sit.

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1359
03:34:56.080 --> 03:35:01.890
Moni: They gain profit from their existing properties and get tax benefits from quote-unquote failed ventures.

1360
03:35:01.990 --> 03:35:04.990
Moni: What we get is boarded up buildings and blight.

1361
03:35:05.470 --> 03:35:11.369
Moni: In Oakland, upzoning near the Paramount and Fox Theater resulted in shuttering of businesses.

1362
03:35:13.080 --> 03:35:20.919
Moni: And this once vibrant commercial district is now a ghost town. There is precious little retail in the area and little to no foot traffic.

1363
03:35:21.290 --> 03:35:34.610
Moni: Please do not destroy our vibrant San Pablo corridor. Contrary to what one of the city council members said, there is more blight in downtown Berkeley than on San Pablo Avenue, at least where I live.

1364
03:35:35.600 --> 03:35:39.499
Moni: And luxury apartments will not house unhoused folks.

1365
03:35:39.990 --> 03:35:44.460
Moni: I am a decades-long policymaker for the state of California.

1366
03:35:44.810 --> 03:35:49.440
Moni: Take it from someone with experience, Rolling out broad policies.

1367
03:35:50.510 --> 03:35:53.869
Moni: That are not well thought out, like blanket upzoning.

1368
03:35:54.140 --> 03:36:04.599
Moni: will lead to an instead of more targeted upzoning will result in unintended consequences. When the State did this time and again we got widespread fraud.

1369
03:36:04.920 --> 03:36:07.910
Moni: Take it from a fraud investigator. That's what I do now.

1370

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03:36:08.310 --> 03:36:13.180
Moni: Please do not devastate our vibrant corridor frequented by people across Berkeley.

1371
03:36:14.650 --> 03:36:27.720
Moni: I do not know how someone can say that they represent the low-income residents and people of color or people of Berkeley if they have not read Berkeley's own rent board study on upzoning.

1372
03:36:29.120 --> 03:36:37.539
Moni: I'd like to read parts of it. I'm not sure if I have enough time, but I'm going to try. It says, upzoning can lead to speculation, increased land values, and displacement.

1373
03:36:37.700 --> 03:36:43.939
Moni: By the same token, upzoning has not led to greater racial integration and opportunities for vulnerable communities.

1374
03:36:43.940 --> 03:36:45.539
Boardroom: Your time is up. Thank you.

1375
03:36:46.770 --> 03:36:49.379
Boardroom: Our next speaker is Matt O'Brien.

1376
03:36:53.060 --> 03:36:54.220
Matt O'Brien: Good evening.

1377
03:36:54.770 --> 03:36:59.439
Matt O'Brien: It is inconsistent to claim to want to house the homeless now.

1378
03:36:59.770 --> 03:37:09.229
Matt O'Brien: While supporting construction of market-rate apartment towers and developer buyout fees, which delay even further construction of affordable housing.

1379
03:37:10.180 --> 03:37:15.680
Matt O'Brien: Also, Representing these upzoning plans, including the CZU,

1380
03:37:15.870 --> 03:37:20.239
Matt O'Brien: As addressing past discriminatory housing policies is deceptive.

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1381
03:37:20.610 --> 03:37:27.620
Matt O'Brien: As there is no mechanism to ensure that members of communities discriminated against will live in these homes.

1382
03:37:27.910 --> 03:37:36.710
Matt O'Brien: It's not as if the new market rate buildings will be, for example, exclusively for African Americans or Japanese Americans.

1383
03:37:36.970 --> 03:37:48.270
Matt O'Brien: They will be for whomever can pay 5 or 6 grand a month in rent, and with the developer buyout in lieu fees, allowing no affordable units in a project.

1384
03:37:48.390 --> 03:37:53.829
Matt O'Brien: Adopting the plan will foster more segregation and gentrification in Berkeley.

1385
03:37:54.530 --> 03:37:55.450
Matt O'Brien: I asked…

1386
03:37:55.450 --> 03:37:57.659
Boardroom: Thank you, your time's up.

1387
03:37:59.030 --> 03:38:02.330
Boardroom: Okay, our next speaker is Sarah Bell.

1388
03:38:03.600 --> 03:38:14.730
Sarah Bell (she/her): Hi, I am chair of our Housing Advisory Commission, but personal capacity tonight on why we need to pass the plan with 7-story-based zoning.

1389
03:38:14.890 --> 03:38:16.550
Sarah Bell (she/her): And do it tonight.

1390
03:38:17.240 --> 03:38:34.319
Sarah Bell (she/her): We talk about our homelessness crisis, but in lieu fees are how we fund deeply subsidized housing that can get people off the streets. Moderate income units don't house unhoused people. I'm pained by how little deeply affordable housing we have the funding to create.

1391
03:38:34.400 --> 03:38:43.600

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Sarah Bell (she/her): And our housing trust fund is oversubscribed, to put it mildly. We need those in-lieu fees, but we only get them from projects that actually happen.

1392
03:38:44.000 --> 03:38:59.879
Sarah Bell (she/her): Housing development operates on very thin margins. Our city's own economic analysis found that projects would soon become infeasible. If we lower the base zoning, we won't get more affordable housing to use as density bonus, we'll just get less housing overall.

1393
03:39:00.190 --> 03:39:08.319
Sarah Bell (she/her): I want to end on a personal note, though. I lived on San Pablo for 4 years, and I absolutely loved it, so let's create the opportunity for more people to live there.

1394
03:39:09.980 --> 03:39:11.009
Boardroom: Thanks, Sarah.

1395
03:39:11.720 --> 03:39:15.630
Boardroom: Our next speaker is Tony Mester. Tony, you have 2 minutes.

1396
03:39:16.260 --> 03:39:22.550
Toni Mester: If Lauren Parsons is in the audience, she's going to donate. Lauren, are you still there?

1397
03:39:23.730 --> 03:39:25.069
Toni Mester: I have 2 minutes.

1398
03:39:26.160 --> 03:39:27.740
Toni Mester: Okay.

1399
03:39:27.740 --> 03:39:29.570
Boardroom: I don't see anyone yet.

1400
03:39:29.570 --> 03:39:41.550
Toni Mester: Okay, so most of the vacant and derelict lots on San Pablo Avenue are the sites of stalled projects yet to be permitted or to break ground.

1401
03:39:41.720 --> 03:39:47.969
Toni Mester: And I have sent you a table with data about these projects from the City's Acela platform.

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1402
03:39:48.360 --> 03:40:04.460
Toni Mester: I found 12 projects, mostly 6 stories, also one 7, two at 8, that contain a potential of 1,233 units, 255 of which are affordable, meaning rents below market.

1403
03:40:04.610 --> 03:40:18.800
Toni Mester: 2 Projects with 148 total units are 100% affordable, and the rest of density bonus projects with 107 affordable units, mostly for very low income.

1404
03:40:18.920 --> 03:40:35.779
Toni Mester: These projects are stalled because of the economy, and they're going to remain stalled mostly because the Fed is raising the rates. And, you know, construction loans are two and 3% more than the bank rates. So nobody is going to build in this environment.

1405
03:40:36.250 --> 03:40:53.010
Toni Mester: So if a higher base height were passed, the applications for these projects could be resubmitted without the density bonus units, and the city could potentially lose over 100 apartments for very low-income renters.

1406
03:40:53.110 --> 03:41:01.170
Toni Mester: Whether they would be built elsewhere using the in-lieu fees is purely speculative, but those are the facts on the ground.

1407
03:41:01.490 --> 03:41:11.150
Toni Mester: One problematic factor, as Leah pointed out, is that when you raise the, zoning capacity, you increase the price of the land.

1408
03:41:11.320 --> 03:41:15.899
Toni Mester: So the plan designates these Muley sites.

1409
03:41:16.000 --> 03:41:22.540
Toni Mester: And those sites aren't even for sale, they are active commercial sites, I know them all.

1410
03:41:22.660 --> 03:41:31.139
Toni Mester: So my review of the pipeline shows the average density of these proposed buildings are 284 units.

1411
03:41:31.140 --> 03:41:31.890
Boardroom: name.

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1412
03:41:31.890 --> 03:41:34.470
Toni Mester: So you don't really need a minimum density.

1413
03:41:34.470 --> 03:41:35.810
Boardroom: Thank you. Your time's up.

1414
03:41:36.580 --> 03:41:40.940
Boardroom: All right. Our final speaker is Nancy Rader.

1415
03:41:41.980 --> 03:41:48.359
Nancy Rader: Good evening. I support the remarks made tonight by Meryl Siegel and Donald Simon.

1416
03:41:48.390 --> 03:42:02.270
Nancy Rader: We're already seeing many apartment buildings going up on San Pavel Avenue. We can meet our housing goals without further gentrifying Berkeley and destroying its character. Please reconsider this plan. Thank you.

1417
03:42:04.190 --> 03:42:05.400
Boardroom: Thank you.

1418
03:42:05.990 --> 03:42:24.970
Boardroom: Rose, did you want to… Yes, thank you, Mayor. That concludes public comment, and I'd just like to take a moment, to do the Just Cause script with Councilmember Luna Parra. She'll be joining us remotely under the Just Cause justification in the Brown Act, so we'll just go ahead and go through that.

1419
03:42:25.770 --> 03:42:29.410
Boardroom: Councilmember Luna Parr, are you available? All right, perfect.

1420
03:42:30.080 --> 03:42:37.470
Boardroom: Councilmember Lunapara is participating in the meeting remotely pursuant to the Brown Act under the just cause justification.

1421
03:42:37.920 --> 03:42:50.719
Boardroom: A quorum of the Council is participating in person at a single physical location that is identified on the agenda, open to the public, within the boundaries of the agency, and meets accessibility requirements. This satisfies the requirements of the Brown Act.

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1422
03:42:51.090 --> 03:42:55.729
Boardroom: Councilmember Lunapara has notified us of her need to participate remotely.

1423
03:42:56.060 --> 03:43:04.740
Boardroom: Councilmember Lunapara, please provide a general description of the circumstances relating to your need to appear remotely, for the remainder of this meeting.

1424
03:43:06.330 --> 03:43:09.120
Cecilia Lunaparra: Thank you. I'm home because of illness.

1425
03:43:09.830 --> 03:43:11.839
Boardroom: Thank you. Sorry to hear that.

1426
03:43:12.190 --> 03:43:22.189
Boardroom: Councilmember Lunapara, please disclose if there is any other individuals 18 years of age or older present at your remote location in the room.

1427
03:43:22.440 --> 03:43:26.919
Boardroom: And if so, the general nature of your relationship with such individuals.

1428
03:43:27.710 --> 03:43:30.469
Cecilia Lunaparra: My partner, Sam Greenberg, is here. That's it.

1429
03:43:31.150 --> 03:43:32.080
Boardroom: Thank you.

1430
03:43:32.520 --> 03:43:38.679
Boardroom: Councilmember Lunapar, you are reminded that you must participate through both audio and visual technology. Thank you.

1431
03:43:39.640 --> 03:43:44.260
Boardroom: Yes, thank you. Feel better. My gosh, we are…

1432
03:43:44.280 --> 03:43:49.230
Boardroom: Dropping like flies over here today. Okay, everyone wash your hands.

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1433
03:43:49.230 --> 03:44:04.349
Boardroom: Alright, so, let's see. We have just done our public comment, and we are gonna go back here for deliberations and comments from Councilmembers. I have on here Councilmember Kesarwani, then Taplin, then Bartlett.

1434
03:44:04.350 --> 03:44:05.700
Boardroom: And… go ahead.

1435
03:44:06.740 --> 03:44:23.930
Boardroom: Thank you very much, Madam Mayor, and thank you to the public commenters, and I want to say, you know, I want to make it clear, like with the prior controversial item we had, you know, I fully respect differences of opinion about the best approach, especially on this issue of

1436
03:44:23.930 --> 03:44:28.669
Boardroom: the 5 stories versus 7 stories. I do want to just…

1437
03:44:28.720 --> 03:44:34.490
Boardroom: quickly give the reasoning for why I think 7 stories is the right

1438
03:44:34.490 --> 03:44:54.280
Boardroom: height for this entire corridor. One is, keep in mind, the West Berkeley plan is from 1993, and we are not updating it until more than 30 years later tonight. Hopefully we can take this vote, you know, 2026. So when I think about this plan, I'm thinking about a very long time horizon.

1439
03:44:54.340 --> 03:45:04.029
Boardroom: And so I don't… I can't risk waiting to come back to it, because there are so many people who are marginally housed in our community who…

1440
03:45:04.030 --> 03:45:15.429
Boardroom: who couch surf, who sleep in cars, who aren't sure if they're going to be able to make rent in the next month. So I want us to be… to err on the side of more rather than less.

1441
03:45:15.440 --> 03:45:17.600
Boardroom: And when we look at.

1442

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03:45:18.080 --> 03:45:33.010
Boardroom: how much a 7-story building has to pay into the, housing trust fund, Mr. Klein. Can you explain how much that is, and how many affordable units that can create? Yeah, as we noted.

1443
03:45:33.010 --> 03:45:40.780
Boardroom: Projects in Berkeley typically take advantage of the state density bonus and include units on site. If a project were to,

1444
03:45:41.390 --> 03:45:50.840
Boardroom: you know, just some back of the envelope math, say, 150 unit project tip average unit size is 900 square feet.

1445
03:45:51.480 --> 03:46:07.120
Boardroom: our affordable housing and Lufi is $63 per residential floor area. That's about 8 and a half 1 million dollars that goes to our affordable Housing Trust fund that could

1446
03:46:07.440 --> 03:46:12.869
Boardroom: provide the local match of, you know, over 40 units.

1447
03:46:12.980 --> 03:46:26.709
Boardroom: So it's significant, makes a significant impact to the supply of affordable housing in this community. Okay, and you know, the other point I want to make about those 100% affordable housing

1448
03:46:26.710 --> 03:46:38.280
Boardroom: projects, when they are serving the formerly homeless people, you know, that some of the commenters talked about. They want affordable housing units for the unsheltered people in our community.

1449
03:46:38.280 --> 03:47:00.940
Boardroom: Those buildings can offer the onsite medical services and social services and connections to other supports that this population really needs that you don't find in these buildings where you have the inclusionary onsite mixed with market rate buildings. So I think that's an important point as well. And then I did want to respond to this.

1450
03:47:01.210 --> 03:47:15.090
Boardroom: point that was made towards the end that somehow developers would resubmit and not do density bonus projects. I just want to remind us that this density bonus law, when developers take advantage of it, they're not just

1451

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03:47:15.090 --> 03:47:27.279
Boardroom: seeking density. Mr. Klein, can you explain the other benefits that are conferred, and why a developer would likely still pursue a density bonus for those other benefits?

1452
03:47:28.840 --> 03:47:35.740
Boardroom: Yeah. So density bonus projects are eligible to take advantage of waivers and concessions.

1453
03:47:35.740 --> 03:47:49.450
Boardroom: of local requirements that either physically preclude the project or that impact the economic feasibility of the project. And so I do anticipate that actually, even with the 7-story base height.

1454
03:47:49.780 --> 03:47:56.910
Boardroom: Projects will still include on-site units in order to qualify for waivers and concessions.

1455
03:47:57.030 --> 03:48:04.420
Boardroom: Okay, thank you very much, Mr. Klein. So, in the interest of time and moving us along, I want to make a motion

1456
03:48:05.400 --> 03:48:08.420
Boardroom: Is that in order? Do we need to close the public hearing?

1457
03:48:10.440 --> 03:48:14.779
Boardroom: Typically prior to the motion, we close the public hearing.

1458
03:48:14.980 --> 03:48:15.890
Boardroom: So moved.

1459
03:48:16.250 --> 03:48:31.710
Boardroom: Second. Okay. Can we take the roll, please, to close the public hearing? Sure. Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Tragop? Aye. O'Keefe? Yes. Blackaby? Yes. Munapara?

1460
03:48:31.710 --> 03:48:32.500
Cecilia Lunaparra: Yes.

1461
03:48:32.760 --> 03:48:33.550
Boardroom: Humbert?

1462

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03:48:33.550 --> 03:48:34.340
Mark Humbert: Yes.

1463
03:48:34.490 --> 03:48:35.800
Boardroom: Mayor Ishii.

1464
03:48:36.230 --> 03:48:38.200
Boardroom: Yes.

1465
03:48:39.040 --> 03:48:43.880
Boardroom: Okay, so I'm going to make a motion to adopt a resolution

1466
03:48:44.030 --> 03:48:51.269
Boardroom: And do I need to read A, B, C, D in the record as they appear on the first page of the report?

1467
03:48:53.290 --> 03:49:05.550
Boardroom: If you're adopting staff's recommendation, you could simply state that. Staff's recommendation from the item. OK, I'm adopting the resolution as proposed by staff.

1468
03:49:05.880 --> 03:49:24.070
Boardroom: And then I also want to adopt the first reading of an ordinance to amend the Berkeley Municipal Code to create the San Pablo Commercial District, Chapter 23.202.160, and additional conforming amendments to other sections of the Municipal Code.

1469
03:49:24.170 --> 03:49:42.829
Boardroom: And with that, I want to include the four amendments that I had shown previously with one tweak. I can show the screen again at a later point when we're getting closer to a vote, but the tweak I want to make is for the family-sized units, I want to require 35%.

1470
03:49:42.830 --> 03:50:00.879
Boardroom: family-sized units, instead of the 20% I had proposed earlier. And I also… I'll just state that this motion includes the language proposed by Councilmember Tregube, and then what was added by Councilmember O'Keefe, and open to, you know, further discussion about that. So that's the motion. Second.

1471
03:50:00.880 --> 03:50:21.370
Boardroom: Thank you very much. May I ask a clarifying question? Does the motion include the supplemental material in the supplemental one, or maybe the director can clarify that? Yes, it does. Okay. With the

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amendment to the supplemental material to lower the minimum dwelling units per acre from 145 to 100.

1472
03:50:22.150 --> 03:50:24.119
Boardroom: Thank you. Thank you so much.

1473
03:50:24.860 --> 03:50:34.250
Boardroom: Thank you. Councilmember Taplin. Thank you very much, and thank you, Director Klein, and Councilmember Cerwane, and, and everyone, and Madam Mayor, and I also want to…

1474
03:50:34.250 --> 03:50:54.729
Boardroom: I thank my housing advisor, Commissioner, and the Commission chair, and all of the businesses that participated in my office's roundtables around this over the years, the San Pablo merchants, the University Avenue merchants, all the neighbors who participated in my early working group around this, and everyone who participated and shared their feedback at the open houses and with city staff, and I'm so happy to see so many of those ideas

1475
03:50:54.730 --> 03:50:57.060
Boardroom: President tonight.

1476
03:50:57.070 --> 03:51:01.389
Boardroom: You know, I… I'm so lucky to not only

1477
03:51:02.110 --> 03:51:19.140
Boardroom: serve the city and district I grew up in, but the neighborhood that I grew up in still live in. I think one of the speakers recently moved to my neighborhood, so welcome to my neighborhood. I grew up in section housing. I live across the street from my mom in a tiny studio in a mixed

1478
03:51:19.470 --> 03:51:25.010
Boardroom: In a middle housing building with several family units, and then a tiny studio that is…

1479
03:51:25.250 --> 03:51:29.199
Boardroom: where me and my books live, where I and my books live, and

1480
03:51:30.390 --> 03:51:40.250
Boardroom: You know, I spend my entire life on this avenue. I go, I bike on San Pablo to take my laundry to the laundromat. I go meet Tiara like three times a week.

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1481
03:51:40.650 --> 03:51:46.900
Boardroom: I buy plants from the East Bay Nursery. I get my COVID shots at the Kaiser on 10th.

1482
03:51:47.290 --> 03:52:06.120
Boardroom: And, you know, all of us who live on both sides of San Pablo Avenue on this end of the district, we all hang out, Missouri Lounge, Heads and Tails, Acme, Middle East Cafe and Market, and, you know, people are talking about their concerns that the new residents won't engage in the community, but

1483
03:52:06.330 --> 03:52:09.780
Boardroom: If you go to the places where we're engaging, you don't know who lives in what building.

1484
03:52:10.260 --> 03:52:16.560
Boardroom: If we create this vibrant… you know, I love the part I live on, and I want that for the entire avenue.

1485
03:52:16.690 --> 03:52:35.069
Boardroom: You know, from Amoryville to Albany, I want all of us to have this beautiful walking experience with these pedestrian plazas for events and markets and everything. And I totally understand the need for protections and things like that, but the way that we create protections is by adopting a plan to do so.

1486
03:52:35.070 --> 03:52:38.060
Boardroom: So I will be supporting the motion, and…

1487
03:52:38.580 --> 03:52:57.499
Boardroom: I, really thought I would be speaking for much longer, but I guess that's… sort of… That's okay, it's 10.30, so… Alright, Councilmember Bartlett. Thank you, Madam Mayor. And I think, Councilmember Taplin, that was really a wonderful illustration. And, Hessent Hills is good.

1488
03:52:57.900 --> 03:53:18.539
Boardroom: I remember I was — Yeah. No, but I'm so sorry. I know it's out of — no, but this question about the HTF, I care very deeply about maximizing our Housing Trust Fund dollars so that we can deeply invest in these projects serving vulnerable populations.

1489
03:53:18.540 --> 03:53:23.910

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Boardroom: with sensitive needs. And I also support us having the flexibility to also create mixed-income

1490
03:53:23.910 --> 03:53:37.580
Boardroom: residential communities. I think both of these things are important, but when we are able to deeply invest using the HCF, we can have greater determinacy around the populations that we're choosing to serve, and I do think that matters a lot. Thank you.

1491
03:53:39.260 --> 03:53:56.380
Boardroom: Thank you. Okay, Councilmember Bartlett, back to you. Thank you, Madam Mayor, and thank you for getting that addition. Yeah, it's interesting, the, this last number of years that I've served in Council, this debate has come back over and over, and I've grappled with it every single time. You know, this notion of.

1492
03:53:56.380 --> 03:54:03.429
Boardroom: on-site affordability versus in lieu monies to develop our own affordable housing.

1493
03:54:03.430 --> 03:54:10.570
Boardroom: And the trade-offs are very — they're varied for each option.

1494
03:54:10.790 --> 03:54:20.830
Boardroom: And, you know, and I grapple with it every time. Every couple years, I really grapple with this, and this is one of those nights. And, where I am grappling with it. You know, on the one hand.

1495
03:54:20.930 --> 03:54:26.239
Boardroom: You know, a functioning ecosystem requires economic diversity.

1496
03:54:26.550 --> 03:54:40.929
Boardroom: Right? So a building being a microcosm of the city and of the country and of the world would have different people living in there, right? Different strata. And that interaction produces a sustainable community.

1497
03:54:40.930 --> 03:54:54.780
Boardroom: And what's not sustainable, of course, is what's causing our country to topple right now, which is the ultra haves, ultra have-nots. And we've talked about this before with the projection of people who oppose all housing except for affordable.

1498
03:54:54.780 --> 03:55:13.470

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Boardroom: And fast-forwarding, the homeowners will, you know, when they pass on, a multimillionaire will buy their house for $3 million or $4 million, and then the only person who is not a multimillionaire will be someone living in affordable housing, right? And that's a very top-heavy society that was not going to last.

1499
03:55:13.910 --> 03:55:15.070
Boardroom: And then…

1500
03:55:15.120 --> 03:55:29.220
Boardroom: We're confronted with the result of that larger economic system is resulting in untold devastation. People are dying on the streets all over the country, all over Berkeley, everywhere. Homelessness on the rise.

1501
03:55:29.220 --> 03:55:43.359
Boardroom: There's a senior population bomb, people who need supportive care and not getting it. We have a trillion dollars cut from health care in this country, resulting in more people destitute, unable to get help, in need of supportive care.

1502
03:55:43.610 --> 03:55:53.439
Boardroom: And so I look back at my greatest hits, if you will, the senior Bill of Rights.

1503
03:55:53.640 --> 03:55:56.820
Boardroom: It has to be a transit village. It has to be BART station.

1504
03:55:57.240 --> 03:55:59.070
Boardroom: I look at step up housing.

1505
03:55:59.630 --> 03:56:09.509
Boardroom: This supportive care, this new model we created, I'm so proud. It's winning global awards, by the way. It's really amazing work. And small sites, my baby.

1506
03:56:09.900 --> 03:56:17.510
Boardroom: where we've bought buildings and stopped displacement for families. And this all comes from the Housing Trust Fund.

1507
03:56:18.140 --> 03:56:20.129
Boardroom: All this stuff. And so…

1508

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03:56:20.830 --> 03:56:34.440
Boardroom: You know, I think tonight, as I grapple with it, I have to confront the emergency that is our community, and I got to get money for the people. And so, and also, to answer the point as well regarding the…

1509
03:56:34.440 --> 03:56:59.440
Boardroom: The predictive nature of the five story, and then take the people taking advantage of the, of the, the density bonus to get to seven by having people live inside of it. My understanding and my observation from the new developments that I'm seeing that are 10 stories and so whatever, they're all taking advantage of it as well. They're doing the, they're feeing out, if you will, to us, and they're also taking advantage of the density bonus.

1510
03:56:59.440 --> 03:57:11.700
Boardroom: bonus and putting people inside the building. So this this you know this may be a chance to have our cake and eat it too if you will or hogs and tails if you're on the in the barbecue which you know I am.

1511
03:57:11.740 --> 03:57:20.330
Boardroom: And on a quick aside, you might know this. Paul, you know the city manager. What did I get in my SAT test?

1512
03:57:21.510 --> 03:57:36.190
Boardroom: Barbecue sauce. Barbecue sauce. That's a city manager joke. Yeah, so, you know, so again, so all that inside, you know, all that, all that unbalance, you know, I'm going to definitely be supporting the 7-story measure. I think it is…

1513
03:57:36.190 --> 03:57:45.100
Boardroom: the right thing to do, for the people, and I think it does lead to economic integration, in spite of the fee-out capacity.

1514
03:57:47.100 --> 03:58:02.159
Boardroom: Thank you, Councilmember. Okay, we are gonna go Councilmember Blackaby, then online to Councilmember Humbert, and then back in person to Councilmember Trickup. So, starting with Councilmember Blackaby. Great. Thank you, Madam Mayor. I just want to thank, everyone in the public who commented, and thank,

1515
03:58:02.160 --> 03:58:09.659
Boardroom: my colleagues for a really interesting discussion and debate on an issue I know we all really care about, which is how do we provide and produce more

1516

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03:58:09.660 --> 03:58:14.149
Boardroom: housing at all price points for people to be welcome here in Berkeley.

1517
03:58:14.150 --> 03:58:30.949
Boardroom: I wanted to comment first, and offer potentially a friendly amendment, to the, the, to the main motion. Let me share my screen. This is building on some of the business, support work that,

1518
03:58:30.950 --> 03:58:47.999
Boardroom: Councilmember Tragub and Councilmember O'Keefe did, just adding a little more… so I mentioned to, Rashi, a little more flair, to the… to the… to the… for folks who are Office Space fans. But just to flesh out a little more of what we were thinking about in the second paragraph, and that's, so the stuff in yellow is stuff we added, so…

1519
03:58:48.000 --> 03:59:03.119
Boardroom: I'm thinking that in addition to the potential business license tax waiver, things like, establishing marketing and promotional programs to boost activity to impacted businesses that OED, could potentially coordinate with community partners. So if you're a business in an area that's

1520
03:59:03.120 --> 03:59:13.730
Boardroom: being impacted, and you've got construction going on, hey, can we give some extra promotional and marketing support to drive foot traffic to those businesses while they're in that period of impact?

1521
03:59:13.730 --> 03:59:37.000
Boardroom: you know, there's been… we've seen some success at setting up meetings between the folks who are managing construction and impacting businesses to find some potential accommodations to help people in that period. So it's just formalizing some of that, and also suggesting that there could be some other policy changes or waivers during some period that might also be there. So it's really just expanding the list of possible solutions

1522
03:59:37.000 --> 03:59:55.209
Boardroom: to give more color, more ideas for the city manager and team to consider, but it's really thinking, hey, we need to be very creative here at how we would reduce impact on the businesses. But it's in the same spirit from Councilmember Tragab and Councilmember Shoshana O'Keefe, but just adding a few more specific ideas. If the

1523
03:59:55.210 --> 04:00:19.269

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Boardroom: mover would be open to this friendly amendment. Yes, Councilmember Blackaby, absolutely. I think I want to thank the three of you, and thank you, Councilmember Blackaby, for these additions, which I think are important to have our city manager look into. And maybe this is now a Halloween costume idea flair that is amendments to a land use proposal on the Berkeley City Council

1524
04:00:19.520 --> 04:00:44.409
Boardroom: You know, because I need something. So thank you so much. I accept all of this and — Yes. And we're good. OK. Great. And then I do — That's fine. Look, and I appreciate the discussion about the seven stories by right or the five stories. I still think any way we slice it, whether you zone for seven and get some sort of in lieu fees paid to the housing trust fund, or you zone for five with state density bonus and you also get money.

1525
04:00:44.410 --> 04:00:49.429
Boardroom: paid to the Housing Trust Fund. We're going to fund the Housing Trust Fund more or less.

1526
04:00:49.430 --> 04:01:08.050
Boardroom: I do think there is value in having more affordable units on site, and so, I offer a substitute motion that's the same as the entire base motion that we've just laid on the table, including the friendly amendment, and make one change, which is to change the base

1527
04:01:08.050 --> 04:01:21.139
Boardroom: to 5 stories for residential, and again, in the hopes that we're still aiming for the 7 and 8 stories, but we start with the base of 5, and then let the density bonus do the work. So that's my substitute motion. I'll second that.

1528
04:01:21.920 --> 04:01:36.179
Boardroom: although we can. I actually sorry. Are you making a friendly amendment, or you're making a substitute motion only change. It's the same as everything that Councilmember Kesarwani outlined with the friendly amendment, but setting the base to 5.

1529
04:01:36.210 --> 04:01:59.409
Boardroom: with the expectation that the density bonus will still get us to the same place with more on-site affordable. And so, Councilmember Blackaby, are you also going to keep the commercial… the non-residential building height would… it would be lower stories, but the same feet as 5 stories, so it's the similar thing is… I hope that's clear to the clerk. Okay, that's clear to me. Okay. Okay, yeah.

1530

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04:01:59.620 --> 04:02:03.120
Boardroom: I'm sorry, just making sure, Clerk, is that clear to you?

1531
04:02:03.400 --> 04:02:05.440
Boardroom: Maybe just repeat it for me one more time.

1532
04:02:05.560 --> 04:02:11.290
Boardroom: So my only amendment is to take the same base motion. Right. And then, Rashi, you're —

1533
04:02:12.170 --> 04:02:20.040
Boardroom: confirmation to the clerk? Because you're looking for the… go ahead. The only change with the substitute is that

1534
04:02:20.040 --> 04:02:37.120
Boardroom: Everything from the main motion, with the change being the base is now going to be 5 stories for residential. Correct. It was that next part I didn't… Sorry, can I just… can I just ask for clarity that, because they're so similar, I think it just makes sense that we just…

1535
04:02:37.140 --> 04:02:53.750
Boardroom: sever, and we vote separately on the height piece instead of having a separate motion. Thank you. I think we just still need clarity. So, a 5-story building that's residential or multi-use, how many feet is that?

1536
04:02:54.980 --> 04:02:57.670
Boardroom: to do the conversion to the non-residential.

1537
04:02:58.340 --> 04:03:10.209
Boardroom: Under the proposed zoning? Yeah. The… yeah, residential only, or mixed-use residential, the maximum height is 75 feet and 7 stories. So I'd say, like, 560, for example.

1538
04:03:10.700 --> 04:03:15.069
Boardroom: So it's 60 feet to do 5 stories, then?

1539
04:03:18.640 --> 04:03:23.809
Boardroom: So it would be 4 stories for a non-residential building.

1540
04:03:25.060 --> 04:03:31.300

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Boardroom: Okay, and we can make that, and we can wrap all that into the severable motion. But that'll be severed. We can wrap all that into the severable motion. Okay.

1541
04:03:31.490 --> 04:03:43.360
Boardroom: Do we have that right? So, Councilmember Blackaby's sever is 5 stories for residential and mixed-use buildings, which you're saying is 60 feet.

1542
04:03:44.090 --> 04:04:05.609
Boardroom: We're not saying the proposed is 75 feet and 7 stories. So there's basically a 5 foot bonus which often allows for taller heights on the ground floor, so the ground floor commercial space could get up to 15. So if you wanted to do 5 stories, you could do 5

1543
04:04:05.810 --> 04:04:07.580
Boardroom: At 55. Okay.

1544
04:04:08.100 --> 04:04:32.919
Boardroom: Okay, so it's because it's like you need to be clear. So it's 5 stories and 55 feet, and and then it's still 55 feet for the non residential buildings, the commercial buildings. And but that would get you 4 stories roughly. Just so. It's clear what that is. That is still, I feel like, okay, I feel like that's still not clear. I don't know how the public is supposed to follow that. So I'm going to ask that we have something written so we can just

1545
04:04:32.990 --> 04:04:50.390
Boardroom: if someone could write something so we can see the difference. We still have some more comments, and I think that will help, but in the meantime, I would like to have something in writing so we can just be clear what we're voting on. Okay, thank you. I apologize for interrupting. If I could just interject real quick here. As we're kind of contemplating the motion and the motions.

1546
04:04:50.390 --> 04:04:59.890
Boardroom: If we could think about what is being severed exactly, typically when something is severed, it means that it's a stand-alone

1547
04:04:59.890 --> 04:05:01.050
Boardroom: Motion?

1548
04:05:01.570 --> 04:05:17.979
Boardroom: And so, I just want to be clear that the severed portion is something that is adoptable and can stand alone, excuse me, on its own. I

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think it needs to be a substitute motion, so I'll craft it with adjusted language and make it very clear.

1549
04:05:18.660 --> 04:05:31.939
Boardroom: Thank you very much. Okay, thank you. All right, I know you both are going to be typing away for a moment. So, okay, so we're going to go Councilmember Tragueb, then Humbert, then O'Keefe, then Lunapara.

1550
04:05:35.570 --> 04:05:37.580
Boardroom: Thank you.

1551
04:05:39.820 --> 04:05:46.690
Boardroom: First of all, I too just want to acknowledge all the

1552
04:05:47.100 --> 04:06:06.579
Boardroom: immense effort and work, many commissions, particularly planning, that were engaged in this multi-year effort, and thank you so much, Director Klein and staff, for getting us to this point.

1553
04:06:09.550 --> 04:06:11.969
Boardroom: I have.

1554
04:06:12.500 --> 04:06:19.460
Boardroom: Met with a number of stakeholders, as has my office, of course.

1555
04:06:21.880 --> 04:06:38.010
Boardroom: There is going to be deference to the West Berkeley representatives. But this is something that impacts the entire city. I

1556
04:06:38.100 --> 04:06:41.600
Boardroom: I want to be part of,

1557
04:06:41.600 --> 04:07:00.640
Boardroom: making sure that whatever decision we arrive at, is the highest and best use for the most number of people, and, in particular, those who have the fewest resources right now, for a Berkeley that truly

1558
04:07:00.640 --> 04:07:03.789
Boardroom: As many people as possible can call home.

1559
04:07:06.750 --> 04:07:07.830

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Boardroom: I am…

1560
04:07:07.830 --> 04:07:32.450
Boardroom: grateful that the small business anti-displacement language and commercial mitigation language was added. Thank you so much to Council Member Kesarwani for being amenable to that in your motion and thank you to my colleagues for putting this together. I think this is really going to be a great representation of

1561
04:07:32.830 --> 04:07:37.209
Boardroom: Where we are going as we try to,

1562
04:07:37.730 --> 04:07:53.050
Boardroom: not just balance, but try to find a win-win between vibrant neighborhoods and maximizing housing opportunities, affordable housing.

1563
04:07:53.200 --> 04:07:57.300
Boardroom: and as we affirmatively further fair housing as well.

1564
04:07:59.280 --> 04:08:08.210
Boardroom: I want to briefly, before I get to the crux of the matter, on 5 versus 7 stories, just mention to,

1565
04:08:08.280 --> 04:08:27.350
Boardroom: I appreciate that the language is, or the plan, contemplates a local density bonus for conduization, and that is an item that I co-sponsored, that Councilmember Kesarwani authored.

1566
04:08:28.590 --> 04:08:37.550
Boardroom: I will say that, should this come back to a future council?

1567
04:08:37.690 --> 04:08:48.540
Boardroom: I would like to make sure that any residential ownership or condominium pilot, including the one devised here.

1568
04:08:49.750 --> 04:09:01.560
Boardroom: shall require on-site inclusionary affordable units, and that such owner-occupied units shall be exempt from, just.

1569
04:09:01.770 --> 04:09:18.860
Boardroom: making sure, basically, that it is sold as Condos, and it stays as Condos, and it cannot be gamed to become something different in the future, in order to maximize,

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1570
04:09:18.860 --> 04:09:24.349
Boardroom: home ownership, including first-time home ownership opportunities or housing for seniors.

1571
04:09:24.380 --> 04:09:38.859
Boardroom: Now, getting to the, 5 versus 7, I have, struggled mightily with this question, because I personally think that there are benefits to both,

1572
04:09:39.740 --> 04:09:46.479
Boardroom: I think about, the Housing Trust Fund was really

1573
04:09:46.970 --> 04:10:01.950
Boardroom: The funding that was in there is what made possible projects such as the one in my district, the Hope Center, which provides 60 beds, 60 units of deeply affordable housing.

1574
04:10:01.950 --> 04:10:20.119
Boardroom: for those, coming out of homelessness, co-located with on-site supportive services. And while that is in downtown and not West Berkeley, and I… I would, love to see, as many deeply affordable housing opportunities in West Berkeley,

1575
04:10:21.830 --> 04:10:36.889
Boardroom: in order to maximize highest and best use, I am going to be, arriving at the 7-story variant, in terms of the residential height. Thank you.

1576
04:10:37.040 --> 04:10:47.299
Boardroom: Thank you. I just want to be clear, were you suggesting any additions? You were mentioning something. No, so, thank you.

1577
04:10:47.720 --> 04:11:01.530
Boardroom: So Councilmember Luna Parra, the response to Councilmember Luna Parra's question, which I think was about this, is that, and maybe I'll just ask staff to reiterate the local density bonus

1578
04:11:01.770 --> 04:11:03.200
Boardroom: for condos.

1579
04:11:03.410 --> 04:11:06.289
Boardroom: That is something that is…

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1580
04:11:06.560 --> 04:11:24.950
Boardroom: referred to in a conceptual way, but still needs to be studied, got it. …before it comes back to the Council, correct? That's correct. It requires more staff analysis and would have to be… go back before the Planning Commission, then come back before…

1581
04:11:25.780 --> 04:11:40.860
Boardroom: City Council before adoption. Yeah. So I I am comfortable with not adding language. But but I do hope that this is something that staff takes under serious consideration.

1582
04:11:40.940 --> 04:12:00.550
Boardroom: when this comes back. Thank you. Okay, thank you for clarifying. So, okay, now we have Councilmember Humbert, Councilmember O'Keefe, Councilmember Lunapara, then Councilmember Taplin, and Councilor Wani. I'll run you through it, just to be clear, because the parliamentarian and versus the online thing is confusing. Okay, and yeah, second, to 11.30 p.m? Yeah. 11.30.

1583
04:12:01.880 --> 04:12:19.399
Boardroom: Okay, very good. Councilmember Humbert? Would you like me to take the roll? Oh, sorry, yes. Thank you. Okay, to suspend the rules and extend the meeting to 1130, Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Tragop? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara?

1584
04:12:19.400 --> 04:12:20.000
Cecilia Lunaparra: Yes.

1585
04:12:20.300 --> 04:12:21.050
Boardroom: Humbert?

1586
04:12:21.050 --> 04:12:22.220
Mark Humbert: Yes.

1587
04:12:22.390 --> 04:12:27.129
Boardroom: And Mayor Ishii, yes, thank you. All right, thank you very much. OK, Council Member Humbert.

1588
04:12:27.500 --> 04:12:39.159
Mark Humbert: Okay, thank you, Madam Mayor. And I want to start out with thank yous, of course, to Director Klein, Justin Horner, Phil Erickson, Ann Hirsch, members of the Planning Commission.

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1589
04:12:39.160 --> 04:12:48.490
Mark Humbert: Council members, Kesarwani and Taplin, and all the members of the public for their engagement on this. I've appreciated the comments made about the Housing Trust Fund.

1590
04:12:48.630 --> 04:12:58.760
Mark Humbert: It's really provided a tremendous number of deeply affordable, supportive units in this town, and it's really been valuable.

1591
04:12:58.760 --> 04:13:12.330
Mark Humbert: I'm thinking of Councilmember Bartlett's step up housing. I'm thinking of the Hope Center. I'm thinking of Jordan Court. I'm thinking of the Model Shirak building, which is just not too far from

1592
04:13:12.380 --> 04:13:32.350
Mark Humbert: from my district and in Council Member Bartlett's district. These are all really critical housing units for those people who need wraparound services. So you know, the Housing Trust Fund is doing great great things.

1593
04:13:32.440 --> 04:13:41.389
Mark Humbert: and we're actually able to use the Housing Trust Fund monies to leverage at some really significant percentage and get additional monies added.

1594
04:13:41.640 --> 04:13:52.889
Mark Humbert: The biggest unresolved questions, as I see them, are the heights, commercial building heights and minimum density standards, and I'm happy where we're kind of winding up.

1595
04:13:53.170 --> 04:14:04.119
Mark Humbert: on building heights. Of course, you know there are arguments on both sides. Strong argument that maybe 5 stories encourages the maximum provision of affordable housing.

1596
04:14:04.260 --> 04:14:19.569
Mark Humbert: At the same time, I think there's also an argument for a street as wide as San Pablo supporting taller heights, and that perhaps in the future there will be construction types, like mass timber, that will allow the buildings to go even higher. But so far, we haven't seen that in Berkeley.

1597
04:14:19.690 --> 04:14:31.489

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Mark Humbert: What I do not agree with is this idea that we've heard that if we allow 7 stories on San Pablo, we are automatically required, or even obliged, to allow that on any commercial corridor in the city.

1598
04:14:31.490 --> 04:14:47.470
Mark Humbert: Frankly, I think this is false, and I don't think people should make the argument, whether sincerely or as a scare tactic. Affirmatively furthering fair housing does not mean every single street, with commercial uses or not, needs to have the same building heights across

1599
04:14:48.180 --> 04:15:03.860
Mark Humbert: of roadway width. We've already adopted different zoning in downtown on South Side along Adeline, and this has not resulted in legal or Hcd. Action against the city with respect to affirmatively furthering fair housing.

1600
04:15:04.090 --> 04:15:19.099
Mark Humbert: We already have multiple pieces of State legislation, including AB 2011 and AB 893, which use roadway width as a determining factor for building heights. So I don't think we're going to have any problem if we continue to factor that in.

1601
04:15:19.160 --> 04:15:26.130
Mark Humbert: With respect to commercial density, I don't think it makes sense to restrict this to 3 stories, and I think we're past that.

1602
04:15:27.350 --> 04:15:43.199
Mark Humbert: and as far as minimum density standards, I see both sides of it, and I think that council members suggestion of 100 units dwelling units per acre makes sense. I think that's a good. That's a good place to land. I think it helps encourage family size units.

1603
04:15:45.600 --> 04:15:57.669
Mark Humbert: And that's really it. These are, you know, this has been a really interesting discussion. I've liked… I've really enjoyed hearing from everyone, and I'm waiting to.

1604
04:15:57.830 --> 04:16:01.399
Mark Humbert: to vote on it, and I'm glad that we're gonna get there tonight.

1605
04:16:01.400 --> 04:16:03.960
Boardroom: Thank you. Okay, Councilmember O'Keefe.

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1606
04:16:08.080 --> 04:16:15.000
Boardroom: San Pablo is such a nice part of town. Can we all agree? I'm just really glad to be giving it the love that it deserves.

1607
04:16:15.980 --> 04:16:33.849
Boardroom: It's actually, like, it's, you know, it's a really long street. If you look outside of Berkeley, it's one of the longest, kind of most important streets in the East Bay, and there's so much going on. And our segment of it is especially nice. I just wanted to call that out. We've got trees, we've got so many small businesses, we already have a lot of housing.

1608
04:16:33.850 --> 04:16:36.670
Boardroom: It's just, it's great. So I'm just, I want to start with that.

1609
04:16:39.430 --> 04:16:58.019
Boardroom: I'm really glad to see we're expanding where housing is allowed. There's a couple lots that we're adding from the Muley. I think that's really great. We're expanding the uses that are allowed. This is just really a good… it's a good plan. It's opening up a lot… a lot of opportunity to… to make this, make this great part of town even better.

1610
04:16:58.850 --> 04:17:07.919
Boardroom: I think that's all I have to say about that. In terms of, like, the nitty-gritty, I, will be supporting the five-story plan,

1611
04:17:08.140 --> 04:17:13.289
Boardroom: I think, you know, no one is exactly right or wrong in this argument. I think there's good arguments on both sides.

1612
04:17:13.510 --> 04:17:34.030
Boardroom: I'm personally, I've always been very philosophically drawn to the value of economic integration. I think that's just really important whenever we're building housing. If we can make sure that people of all incomes can live together. That to me is just a value that I want to promote. So that's my reason for voting for the 5 story limit. But

1613
04:17:34.200 --> 04:17:42.519
Boardroom: I don't have super large confidence it's going to pass, and that's okay. I think we're going to pass a great plan tonight, and I'm really excited for that. And those are my comments.

1614
04:17:43.650 --> 04:17:46.829
Boardroom: Thank you very much. Councilmember Luna Parra.

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1615
04:17:48.290 --> 04:17:49.760
Cecilia Lunaparra: Thank you.

1616
04:17:49.800 --> 04:18:04.379
Cecilia Lunaparra: I want to talk some more about this policy question that we're having about on-site units versus 100% affordable housing, because it's a very interesting one, especially as someone with a planning background. This is something that the academic field in housing actually grapples with a lot.

1617
04:18:04.400 --> 04:18:13.869
Cecilia Lunaparra: There is no single answer as the best form of affordable housing. Low-income folks looking for affordable housing want different things because low-income people are not a monolith.

1618
04:18:14.220 --> 04:18:30.150
Cecilia Lunaparra: Some want units in a mixed income building, and some want to live in an 100% affordable building that is tailored to their specific needs. Some want the city to help keep them housed in cooperatively managed small sites buildings, and we have heard a lot from community input for all these types of affordable housing.

1619
04:18:30.280 --> 04:18:38.200
Cecilia Lunaparra: Some would also benefit strongly from permanent supportive housing units for formerly unhoused folks, and we can use the Housing Trust Fund money to pay for all of these.

1620
04:18:38.670 --> 04:18:53.459
Cecilia Lunaparra: I also want to assure everyone, all the speakers, that this inclusionary fee is not a small amount. Our planning director spoke to it earlier, but a single project can add millions of dollars into the Housing Trust Fund that can help fight displacement and build new units. That's huge.

1621
04:18:53.720 --> 04:19:02.969
Cecilia Lunaparra: All of this to say that I think on-site affordable units are fantastic, but they are not the only answer, and I think 7 stories base height is the right way to embrace this diversity.

1622
04:19:03.200 --> 04:19:04.020
Cecilia Lunaparra: Thank you.

1623
04:19:04.310 --> 04:19:05.859

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Cecilia Lunaparra: And thank you to planning staff.

1624
04:19:06.460 --> 04:19:16.059
Boardroom: Thank you, Councilmember Lunapara. Councilmember Taplin. Thank you very much. In addition to everything we've just heard, I would just offer that

1625
04:19:16.060 --> 04:19:32.439
Boardroom: as a multimodal person, a representative of transit-dependent persons and households, and as the city's representative on the ACTC, San Pablo Avenue is a interregional mixed-use commercial corridor. It's a transit corridor, and we know that

1626
04:19:32.630 --> 04:19:39.719
Boardroom: With more people riding transit, this will help us increase ridership to save our transit agencies and our transit partners.

1627
04:19:39.840 --> 04:19:44.570
Boardroom: And I think that you know, looking at our where our emissions are coming from as a city.

1628
04:19:45.280 --> 04:19:46.110
Boardroom: This…

1629
04:19:47.020 --> 04:19:55.250
Boardroom: is what I feel is the most appropriate height, base height to achieve our climate goals, our housing goals, and our transit goals. Thank you.

1630
04:19:56.310 --> 04:19:59.010
Boardroom: Thank you very much, Councilmember Kesarwani.

1631
04:19:59.940 --> 04:20:08.789
Boardroom: No, I'm ready to vote. I'm not in the queue. Okay, Councilmember Blackaby. So I will, so we have, let's roll the tape here.

1632
04:20:10.310 --> 04:20:14.770
Boardroom: This is the final… Comparison…

1633
04:20:16.390 --> 04:20:27.639
Boardroom: Okay, so just for clarity. So in the current in the packet, this is what's coming from planning commission planning staff non-residential. This is page 9, 42, table 23, 2, 0, 4, 4, 5.

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1634
04:20:27.900 --> 04:20:32.140
Boardroom: So non-residential is 40 feet and 3 stories, residential is 75 and 7.

1635
04:20:32.270 --> 04:20:45.130
Boardroom: The main motion from Councilmember Kesarwani makes an adjust keeps residential at 75 and 7, and changes non-residential to 75 and 5. Right? Okay? And then my substitute motion.

1636
04:20:45.390 --> 04:20:59.050
Boardroom: moves non-residential to 55 and 4 stories, and residential to 55 and 5, with the assumption that with the density bonus, again, we get back to… we get back to 7 or 8. So, I believe those are the… those are the key changes between

1637
04:20:59.190 --> 04:21:06.229
Boardroom: The only just quick, minor thing is, so technically, Mr. Klein, we had talked about

1638
04:21:06.230 --> 04:21:25.739
Boardroom: non-residential could be as much as 15 feet per floor. Is this… when we say 55 feet and 4 stories, it doesn't allow for 15 feet, it's like 13 and 3 quarters. Is that close enough for this? Yeah, or, I mean, if somebody was dead set on 15 feet, they could do a 3-story.

1639
04:21:25.740 --> 04:21:30.990
Boardroom: Right, so it's a possibility that the 55 feet only leads to 3 stories.

1640
04:21:31.210 --> 04:21:38.599
Boardroom: So it's 3 to 4, it depends how they want to build their building. Correct. I just wanted to make that point. Okay, thank you.

1641
04:21:38.700 --> 04:22:03.680
Boardroom: Great. Okay. So, thank you very much for doing that. I appreciate it. I just think it's really helpful for the public because there's so many numbers. It gets we get very wonky at the end of the night and I just want to make sure the public really understands. So, I I did just have a few comments. I I would say that I want to align myself with Council Member Bartlett's comments. I think he really beautifully described that tension between our sort of options around the height and I want to address that first because actually

1642

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04:22:03.680 --> 04:22:09.719
Boardroom: That's really kind of the smallest piece of what we're talking about today, in some ways, in terms of our differences, at least.

1643
04:22:09.720 --> 04:22:26.229
Boardroom: and and yeah, I do want to recognize that although I am someone who understands the benefit of having a mix of different units within one building. I also know that we have a number of different projects that could really benefit from Housing Trust Fund.

1644
04:22:26.230 --> 04:22:27.050
Boardroom: funds.

1645
04:22:27.050 --> 04:22:47.660
Boardroom: And I really want to thank all of the work that staff has done. I know you all have put a massive amount of time and energy and thought into this, and so I really want to thank you, not only for your work, but also for you advising us and reading all of these different things that we've sent to you and reviewing them, so thank you to all of you, and

1646
04:22:47.660 --> 04:22:49.929
Boardroom: to our city attorney's office as well.

1647
04:22:49.950 --> 04:22:51.640
Boardroom: And,

1648
04:22:51.760 --> 04:23:16.719
Boardroom: you know, I… and taking a step back from this as well, you know, this is a really exciting opportunity for us. There's so much excitement to me to really be able to breathe some more life into this corridor, and so I really want to thank Councilmember Taplin for his work in reaching out to the community, and also just your, like, joy around your

1649
04:23:16.720 --> 04:23:36.219
Boardroom: neighborhood, I think that that is really a beautiful thing, being able to walk to all of these different restaurants and doctor's appointments and grocery stores, different establishments in your neighborhood. Like, that's kind of the dream. We want that for our city, and so I really want to thank you for kind of keeping that in our, kind of, our site.

1650
04:23:37.380 --> 04:24:02.330

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Boardroom: And I do just also wanna say, a thank you to the council members who have all put in things around supporting our businesses. That's something that's also really important to me. I just did my state of the city on doing business in Berkeley, and one of the things that we talked about was support for like mid-size spaces, that we want places for smaller businesses to be able to grow into as well. And so I, I do support having more commercial spaces for, for that.

1651
04:24:02.330 --> 04:24:02.920
Boardroom: you

1652
04:24:02.920 --> 04:24:15.970
Boardroom: In particular, and I think that's all I wanted to say, just thank you all so much for your thought and, working together. Really appreciate when we're able to kind of have compromise and have this discussion, it's very rich.

1653
04:24:16.160 --> 04:24:25.919
Boardroom: Alright, so, we have a motion and a substitute motion that was made earlier, so we will vote on the substitute motion first.

1654
04:24:26.280 --> 04:24:32.660
Boardroom: Okay, on the substitute motion. Councilmember Kesarwani. No.

1655
04:24:32.970 --> 04:24:34.380
Boardroom: Taplin? No.

1656
04:24:34.550 --> 04:24:39.120
Boardroom: Bartlett? No. Traga? No. O'Keefe? Yes.

1657
04:24:39.540 --> 04:24:42.250
Boardroom: Blackaby? Yes. Munapara?

1658
04:24:42.250 --> 04:24:42.930
Cecilia Lunaparra: No.

1659
04:24:43.780 --> 04:24:44.750
Boardroom: Humbert.

1660
04:24:44.750 --> 04:24:45.480
Mark Humbert: No.

1661

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04:24:46.370 --> 04:24:47.930
Boardroom: Mayor Ishii? No.

1662
04:24:48.180 --> 04:24:49.440
Boardroom: Motion fails.

1663
04:24:50.470 --> 04:25:04.939
Boardroom: Okay, let's vote on the main motion, please. On the main motion. Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Tragup? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara?

1664
04:25:04.940 --> 04:25:05.580
Cecilia Lunaparra: Yes.

1665
04:25:06.100 --> 04:25:06.960
Boardroom: Humbert.

1666
04:25:06.960 --> 04:25:07.720
Mark Humbert: Yes.

1667
04:25:08.220 --> 04:25:14.369
Boardroom: Mayor Ishii. Yes. Motion passes. Motion passes. Thank you, everyone.

1668
04:25:14.610 --> 04:25:21.650
Boardroom: Thank you all. Okay, so… We need to vote to…

1669
04:25:21.720 --> 04:25:26.559
Boardroom: What the proper terminology goes. I'm sorry. So

1670
04:25:26.560 --> 04:25:42.350
Boardroom: My understanding is we will not be getting to item 35 tonight having to do with affordable housing preference policy. If council would like to continue this item to a future meeting date, a motion would be in order and a date certain for the item. I will entertain a motion. So moved.

1671
04:25:42.350 --> 04:25:47.770
Boardroom: Can we have a second? Mayor, can I ask that you move that to 1013?

1672
04:25:47.920 --> 04:25:49.560

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Boardroom: Thank you. Yes.

1673
04:25:50.310 --> 04:25:57.949
Boardroom: And yeah, dates are in 1013. Yes. Okay. And is there a second? A second from Councilmember Bartlett. Okay.

1674
04:25:58.690 --> 04:26:07.399
Boardroom: All right, so, to continue item 35 to the October 13th Council meeting, Councilmember Kesarwani?

1675
04:26:08.060 --> 04:26:08.970
Boardroom: Yes.

1676
04:26:09.200 --> 04:26:15.060
Boardroom: Taplin? Yes. Bartlett? Yes. Tragup? Aye. O'Keefe? Yeah.

1677
04:26:15.370 --> 04:26:18.629
Boardroom: Blackaby? Yes. Luna Parra?

1678
04:26:18.630 --> 04:26:19.270
Cecilia Lunaparra: Yes.

1679
04:26:19.700 --> 04:26:20.700
Boardroom: Humbert?

1680
04:26:20.700 --> 04:26:21.440
Mark Humbert: Yes.

1681
04:26:21.840 --> 04:26:23.710
Boardroom: Mayor Ishii? Yes.

1682
04:26:24.560 --> 04:26:27.670
Boardroom: All right. Thank you very much. Everyone.

1683
04:26:27.930 --> 04:26:35.149
Boardroom: Is there any public comment for items not listed on the agenda since we moved? Item 36 already.

1684
04:26:36.050 --> 04:26:38.229
Boardroom: I see a couple hands.

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1685
04:26:38.360 --> 04:26:44.069
Boardroom: Alright, our first speaker is the caller with the number ending in 211.

1686
04:26:45.640 --> 04:26:47.530
1510****211: Hi, yeah, I'd just like to make.

1687
04:26:47.530 --> 04:26:48.530
Boardroom: equipment.

1688
04:26:48.530 --> 04:26:50.339
1510****211: But, this is a genocide.

1689
04:26:50.790 --> 04:26:55.450
1510****211: The Lancet Institute made the actual figure of how many people died in Gaza.

1690
04:26:55.670 --> 04:26:57.540
1510****211: Over 600,000.

1691
04:26:57.650 --> 04:27:01.870
1510****211: Boston and Shoe is wrong. Half of them are children and babies.

1692
04:27:02.240 --> 04:27:03.699
1510****211: They will answer it.

1693
04:27:03.810 --> 04:27:07.240
1510****211: They would destroy it, they were… Evaporated.

1694
04:27:07.820 --> 04:27:20.750
1510****211: Israel dropped over 6 Hiroshima atom bombs on the small, tiny picture of Gaza. Poor humans, when we come to this horrible Earth, we're never given a choice. Where are you going to be born at? Germany? Egypt?

1695
04:27:21.050 --> 04:27:27.300
1510****211: America, this is a horrible mess, and the biggest loser in the process, as a result, is the most hated

1696
04:27:27.560 --> 04:27:29.799

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1510****211: Word in the whole world right now.

1697
04:27:30.100 --> 04:27:34.570
1510****211: Netanyahu is a criminal. He'll be in prison. Not a president. Both Trump.

1698
04:27:34.780 --> 04:27:37.320
1510****211: Thank you, and have a beautiful… Evening.

1699
04:27:37.460 --> 04:27:38.700
Boardroom: Thank you.

1700
04:27:39.050 --> 04:27:39.730
Boardroom: Yes.

1701
04:27:39.870 --> 04:27:46.059
Boardroom: Oh, we have people in person. But we also have someone else online. But let's just finish the online first, st and we'll come in. Go ahead.

1702
04:27:46.750 --> 04:27:52.269
Boardroom: Sure, our final online speaker is CLP.

1703
04:27:52.950 --> 04:27:58.840
CLP: Hi, thank you. This is Casey again from D2. Thanks for an exciting meeting tonight.

1704
04:27:59.190 --> 04:28:09.349
CLP: As somebody who chooses to not drive as much as possible, I want to — and I know some of you do that as well.

1705
04:28:09.500 --> 04:28:27.310
CLP: I wanted to let you all know that this week, starting October 1st, is a week without driving. I have the option to drive, but a lot of people in this country do not, including many members of our community here in Berkeley. I'll send you an email

1706
04:28:27.310 --> 04:28:34.729
CLP: With some follow up, but I would like you all to take a moment and think what would change in your life if driving was not an option.

1707
04:28:35.880 --> 04:28:43.790

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CLP: And so there's tons of people who cannot drive, whether they're too young, too old, too disabled, too poor.

1708
04:28:43.790 --> 04:29:01.339
CLP: To be able to afford a car. And so Week Without Driving, was started by non-drivers up in Washington State. It's a nationwide, movement at this point. And I'd love to encourage you all to participate. I'm not on social media, so I can't, like, encourage and support you there.

1709
04:29:01.550 --> 04:29:10.630
CLP: But it's a great way to start to think about members of our community who cannot drive. And how do they get around? And

1710
04:29:10.630 --> 04:29:22.239
CLP: And what is life like for them when transportation is a constant struggle? So thank you all, and I look forward to hearing your week without driving stories.

1711
04:29:22.530 --> 04:29:25.170
Boardroom: Thank you. Anyone else online?

1712
04:29:25.270 --> 04:29:43.710
Boardroom: Alright, we'll take… That's our last online speaker. Thank you very much. Kelly, take it away. Okay, I got 2 minutes. I wish I'd brought my phone camera up here so I could take pictures of you on your phones. If we're gonna have back-to-back meetings.

1713
04:29:44.050 --> 04:30:02.839
Boardroom: I think it'd be really nice if we had a food truck down here, so that we could have a little snack, since we're… some of us are here from 4 until 11.30, and we could make that so different,

1714
04:30:02.960 --> 04:30:18.829
Boardroom: suppliers of food in our city would have an opportunity to share that with us, so why don't we think about a food truck, here? I think it'd be a great idea, and I see some thumbs up, so I'd really like that.

1715
04:30:19.240 --> 04:30:29.779
Boardroom: I'd also like to suggest, at meetings like this, where we have back-to-back meetings, and we have the heaviest item at the end of the evening.

1716
04:30:29.780 --> 04:30:49.580

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Boardroom: I would really ask you to reconsider the order of your agenda items. It would be really nice to have these items that require a lot of thought at the beginning of the meeting, rather than at the end of the meeting, and that we had the easy stuff on consent at the end, that we could just pass

1717
04:30:49.700 --> 04:30:51.000
Boardroom: And get rid of.

1718
04:30:51.340 --> 04:30:58.179
Boardroom: And then we have one theater left in our city, the Elmwood.

1719
04:30:58.610 --> 04:31:18.030
Boardroom: I don't count the Pacific Archives, because they're not really showing current film most of the time, but we do have the Omelette. And there is a film that I would like to recommend to all of you, and it's probably not going to be an easy film to watch, and that is NASA.

1720
04:31:18.570 --> 04:31:33.560
Boardroom: And it opens on the 9th at the Elmwood, and it received 25 minutes standing ovation at the Venice Film Festival, and I would ask you all to go. Thank you. Thanks, Kelly.

1721
04:31:33.600 --> 04:31:39.060
Boardroom: I support food trucks outside. All right.

1722
04:31:44.750 --> 04:31:54.140
Boardroom: Good evening, everyone. Esteemed Council members, thank you for the opportunity to offer a recommendation for strengthening the housing preference process.

1723
04:31:54.190 --> 04:32:11.920
Boardroom: As a Model Miller-Schurek resident, the application process illustrates why organizations paid to conduct outreach for the Affordable Housing Preference Policy must be evaluated based on advocacy efforts that continue after someone joins a waiting list.

1724
04:32:11.950 --> 04:32:20.269
Boardroom: My application was submitted through Model Miller Shirek Leasing Team, which consisted of RCD and John Stewart.

1725
04:32:20.270 --> 04:32:27.860
Boardroom: where I was notified via email that applicants' positions could change based on preferences they were able to verify.

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1726
04:32:27.860 --> 04:32:44.720
Boardroom: At the interview stage, applicants were told that arriving 30 minutes late would require rescheduling, that only one reschedule was allowed, and that a $15 fee per adult had to be paid by money order or cashier's check at the time of the interview.

1727
04:32:44.860 --> 04:33:02.459
Boardroom: I firmly believe these requirements created loopholes through which an eligible applicant could lose an opportunity despite qualifying for a housing preference. Therefore, organizations funded to conduct outreach should serve as applicant advocates.

1728
04:33:02.460 --> 04:33:07.069
Boardroom: Helping descendants and other eligible applicants complete applications.

1729
04:33:07.070 --> 04:33:17.669
Boardroom: Gather verification documents, prepare for appointments and fees, and respond promptly when an appointment is missed or paperwork remains incomplete.

1730
04:33:17.689 --> 04:33:28.639
Boardroom: Their deliverables should include completed and incomplete applications, verified preferences, and reporting on how many applicants ultimately secure housing.

1731
04:33:28.640 --> 04:33:38.460
Boardroom: A clear handoff between outreach advocates and the leasing team would help applicants navigate through every stage of the housing preference process.

1732
04:33:38.460 --> 04:33:43.909
Boardroom: where no eligible applicant will be left behind. Thank you, and I am complete.

1733
04:33:44.240 --> 04:33:54.290
Boardroom: Thank you for your perfectly timed comment. All right. Any other public comment this evening? Off agenda? Okay. Is there a motion to adjourn?

1734
04:33:55.930 --> 04:34:15.119
Boardroom: So moved. Second. I was like, no motion, all right. Okay, can we take the roll on that, please? All right, to adjourn, Councilmember

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Kesarwani? Yes. Kaplan? Aye. Bartlett? Yes. Traeger? Aye. O'Keefe? Yeah. Blackaby? Yes. Munapara? Yes.

1735
04:34:15.590 --> 04:34:16.610
Boardroom: Humbert.

1736
04:34:16.619 --> 04:34:17.449
Mark Humbert: Yes.

1737
04:34:17.669 --> 04:34:27.769
Boardroom: Mayor Ishi. Yes, we are adjourned. Thanks everybody. Have a good evening. Get home safely.

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